

**CITY OF RICHMOND
GOODS AND SERVICES CONTRACT**

This Contract, dated this 7/11/2024 day of 7/11/2024, 2024 (the “Commencement Date”) between the City of Richmond, Virginia (the “City”) and Corvel Enterprise Comp, Inc. (the “Contractor”), is binding among and between these parties as of the date of the City’s final signature.

WHEREAS, the City has awarded the Contractor this Contract pursuant to Request for Proposals No. 230014198 as modified by Addendum 1, dated August 9, 2023, Addendum 2, dated August 15, 2023, and Addendum 3 dated August 17, 2023, Addendum 4 dated August 24, 2023, and Addendum 4 dated August 28 2023 (the “Request for Proposals No. 230014198”), for Third Party Administration Services Workers’ Compensation, General Liability, and Automobile Liability Claims and Loss Control Services.

THEREFORE, in consideration of the Recital set forth above and good and valuable consideration as set forth below, the parties agree as follows:

1. **Scope of Contract; Agreement to Use of Electronic Signatures.** The Contractor shall provide the goods and services to the City as set forth in the Contract Documents enumerated in Section 3 below. By signing this Contract, the Contractor acknowledges and certifies the Contractor’s agreement to the acceptance and use of electronic signatures for purposes of this Contract and any amendments or modifications thereto. The Contractor hereby agrees that electronic signatures shall be treated the same as handwritten signatures for the purposes of validity, enforceability, and admissibility.
2. **Contract Amount.** The maximum authorized contract amount for this Contract is One Million Seven Hundred Eighty-Eight Thousand Five Hundred and Fifty and 00/100 US Dollars (\$1,788,550.00). The aggregate of all payments by the City under this Contract shall not exceed this amount. All payments shall be as provided in the Contract Documents.
3. **Contract Documents.** This Contract shall consist of the following Contract Documents, listed in order of precedence from highest to lowest:
 - A. This Goods and Services Contract between the City and the Contractor.
 - B. The Negotiated Modifications to Contract Documents for Contract No.24000012493, attached hereto as Attachment A.
 - C. The General Terms and Conditions attached to the Request for Proposals.
 - D. The Statement of Needs attached to the Request for Proposals.
 - E. The Contractor’s Cost Proposal dated June 10, 2024, consisting of six pages, attached hereto as Attachment B.
 - F. The Contractor’s proposal dated August 30, 2024.
 - G. The CareMC License Agreement, consisting of five pages, attached hereto as Attachment C.
 - H. The Instructions to Offerors attached to the Request for Proposals.

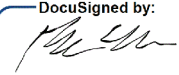
All of these documents are incorporated herein by reference.

IN WITNESS WHEREOF, the parties hereto on the latest day and year written below have executed this Contract.

[SIGNATURES APPEAR ON FOLLOWING PAGE]

CONTRACT NO. 24000012493

For the CONTRACTOR:

By:  6/27/2024
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Date

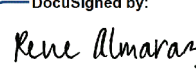
Brandon Obrien

(typed name)

CFO

(typed title)

For the CITY:

By:  7/11/2024
8FF59121222F4E7...
Rene M. Almaraz
Director of Procurement Services

IF A CORPORATION, AFFIX CORPORATE SEAL

**ATTACHMENT A:
NEGOTIATED MODIFICATIONS TO CONTRACT DOCUMENTS FOR
CONTRACT NO. 24000012493**

These Negotiated Modifications are hereby incorporated into Contract No. 24000012493 (the "Contract") for Third Party Administration Services Workers' Compensation, General Liability, and Automobile Liability Claims and Loss Control Services as of the date of the City's final signature.

WHEREAS, the City and the Contractor desire to agree in writing to modify the final terms and conditions of Contract No. 24000012493.

THEREFORE, in consideration of the Recital set forth above and good and valuable consideration as set forth in the Contract, the parties agree that the Contract Documents are modified as follows as of the Commencement Date of the Contract:

1. Section 4.2.2 ("Policy Requirements") of Part III ("General Terms and Conditions") of Request for Proposals No. 230014198 is hereby modified in its entirety to read as follows:

4.2.2 Policy Requirements. All insurance contracts and policies shall provide, or be endorsed to provide, as follows:

- (i) Subrogation against the City shall be waived for Commercial General Liability Insurance, Automobile Liability Insurance, and Statutory Workers' Compensation.
- (ii) The City, and its officers, employees, agent and volunteers shall be listed as an additional insured, except for Workers Compensation, Cyber/Privacy and Professional Liability.
- (iii) Coverage will not be canceled, non-renewed or materially modified in a way adverse to the City without 30 days' written notice to the City.
- (iv) The insolvency or bankruptcy of any of the insured shall not release the insurer from its obligation to satisfy claims otherwise within the coverage of such policies.

No insurance contract or policy shall be expanded to afford coverage which is greater than the maximum coverage of such policies.

2. Section 4.2.3.1 ("Endorsements") of Part III ("General Terms and Conditions") of Request for Proposals No. 230014198 is hereby modified in its entirety to read as follows:

4.2.3.1 Endorsements. The Contractor shall furnish the City with a copy of the policy blanket endorsement listing the City, and its officers, employees, agents and volunteers as an additional insured for each policy, other than Workers Compensation, Cyber/Privacy and Professional Liability, required under this section 4.2 ("Insurance"). The Contractor shall furnish the City with copies of such endorsements as may be required under this Contract upon request by the City therefor.

3. Section 4.2.3.2 ("Certificates of Insurance") of Part III ("General Terms and Conditions") of Request for Proposals No. 230014198 is hereby modified in its entirety to read as follows:

4.2.3.2 Certificates of Insurance. The Contractor shall furnish the City with a certificate of insurance evidencing the above coverage, indicating that the City, and its officers, employees, agents and volunteers are listed as additional insured for each policy, other than Workers Compensation, Cyber/Privacy and Professional Liability, and that the coverage will not be canceled, non-renewed or materially modified in a way adverse to the City without 30 days' written notice to the City. All certificates of insurance shall show the Contract Number assigned to this Contract by the City.

4. Section 5.2 ("Assignments") of Part III ("General Terms and Conditions") of Request for Proposals No. 230014198 is hereby modified in its entirety to read as follows:

5.2 By Contractor. The Contractor shall provide written notice to the City as soon as is practicable of any anticipated or potential assignment of its rights or delegation of its duties, or any part thereof, under this Contract. The Contractor shall provide written notice to the City as soon as is practicable of an assignment, sublet, or transfer of its interest or any part thereof in this Contract occurring by means or as part of any sale, merger, consolidation, assignment or any other event that would result in a new or different ownership, control, operation or administration of the Contractor's business affairs. Upon notice of such transfer of rights or duties, or assumption of delegated duties, the City, in its sole discretion, may provide written consent to the assignment in the form of a written Contract Modification or the City may terminate this Contract in accordance with section 6.3 ("Termination without Cause").

5. Section 2.2.1(F) ("Workers' Compensation Claims") of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby modified to read in its entirety as follows:

F. Within one business day of receipt of a claim, the Contractor shall initiate a detailed investigation that addresses all the necessary information required to make a compensability determination for workers' compensation claims and includes a strategy to move the claim to resolution. The investigation must be completed by the Contractor no later than 14 calendar days from the date of the Contractor's receipt of a claim. The Contractor's adjuster must make a final determination of compensability or a request to extend the compensability decision for an additional 14 calendar days to allow for more investigation within 14 calendar days of receipt of the claim by the Contractor or earlier pursuant to Virginia state law. The Contractor shall provide such final determination and request for extension to the City's Chief Risk Manager and the City's Risk Manager.

6. Section 2.2.1(T) of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby modified to read in its entirety as follows:

T. The Contract must provide at least two full time liability adjusters, two full time lost time adjusters, and at least one full time medical only adjuster for claims handling services, with each discipline having a minimum of 3 years' experience. Senior level adjusters are strongly preferred.

7. Section 2.2.1(U) of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby modified to read in its entirety as follows:

U. The Contractor must provide additional adjusters to the City's account in the event of a workload increase for any single adjuster exceeding 145 workers' compensation open

indemnity claims, or 150 workers' compensation open medical only claims, or 150 open liability claims.

8. Section 2.2.1 of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby revised to include a new section 2.2.1(V) reading in its entirety as follows:

- V. The Contractor shall make a registered nurse licensed in Virginia available 24 hours a day, 7 days a week by telephone to provide triage to evaluate employee claims of incident or injury and to determine immediate medical needs.

9. Section 2.2.1 of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby revised to include a new section 2.2.1(W) reading in its entirety as follows:

- W. The Contractor shall assist the City in the selection of the panel of primary and secondary physicians.

10. Section 2.2.2 ("Auto and General Liability") of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby revised to include a new section 2.2.2(F) reading in its entirety as follows:

- F. **Record of Vehicle Collisions.** The electronic claims information system meeting the requirements of Section 2.6 ("Electronic Claims Information System") of this Statement of Needs shall allow the City to enter data to track all first-party vehicle collisions involving City-owned vehicles occurring during the term of the Contract.

11. Section 2.2.2(A)(7) of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby modified to read in its entirety as follows:

7. The Contract must provide at least two full time liability adjusters, two full time lost time adjusters, and at least one full time medical only adjuster for claims handling services, with each discipline having a minimum of 3 years' experience. Senior level adjusters are strongly preferred.

12. Section 2.5 ("Loss Control Services") of Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby modified to read in its entirety as follows:

2.5 Loss Control Services.

- A. The Contractor shall provide safety recommendations for recurring claim causes, recommendations for safety training, and recommendations for life safety inspection surveys in the Contractor's stewardship report. The Contractor shall provide the stewardship report to the City each year during the term of the Contract on the anniversary of the Commencement Date of the Contract.

- B. The Contractor shall provide OSHA 10 and OSHA 30 training for up to fifteen City employees on an annual basis, at Contractor's cost.

13. Part I ("Statement of Needs") of Request for Proposals No. 230014198 is hereby revised to include a new section 2.11 ("Service Level Agreement") reading in its entirety as follows:

2.11 Service Level Agreement.

- A. For each calendar year of the Contract, the Contractor shall meet the determination of compensability timeline set forth in section 2.2.1(F) of this Statement of Needs for a minimum of 90% of the claims submitted to the Contractor within that calendar year (the “Compensability Determination SLA”). If Contractor fails to meet that Compensability Determination SLA for a given calendar year (as determined by the City), then the City may reduce the flat annual fee paid to the Contractor for that calendar year by \$10,000.00. This right shall be in addition to any other rights available to the City under this Contract.
 - B. For each calendar year of the Contract, the Contractor shall meet the required contact timeline set forth in section 2.2.1(B) of this Statement of Needs for a minimum of 90% of the claims submitted to the Contractor under that section 2.2.1(B) within that calendar year (the “Initial Contact SLA”). For each calendar year of the Contract, the Contractor shall meet the required contact timeline set forth in section 2.2.1(C) of this Statement of Needs for a minimum of 90% of the notes submitted to the Contractor by treating physicians falling under that section 2.2.1(C) within that calendar year (the “Treating Physician Contact SLA”). If the Contractor fails to meet either the Initial Contact SLA or the Treating Physician Contact SLA, or both, for a given calendar year (as determined by the City) then the City may reduce the flat annual fee paid to the Contractor for that calendar year by \$10,000.00. This right shall be in addition to any other rights available to the City under this Contract.
 - C. For each calendar year of the Contract, the Contractor shall meet the required contact timeline set forth in section 2.2.2(C)(1) of this Statement of Needs for a minimum of 90% of the claims submitted to the Contractor under that section 2.2.2(C)(1) within that calendar year (the “Recorded Statement SLA”). For each calendar year of the Contract, the Contractor shall meet the required contact timeline set forth in section 2.2.2(C)(2) of this Statement of Needs for a minimum of 90% of the reports submitted to the Contractor under that section 2.2.2(C)(2) within that calendar year (the “City Department Contact SLA”). If the Contractor fails to meet either the Recorded Statement SLA or the City Department Contact SLA, or both, for a given calendar year as determined by the City, then the City may reduce the flat annual fee paid to the Contractor for that calendar year by \$10,000. This right shall be in addition to any other rights available to the City under this Contract.
14. Part I (“Statement of Needs”), Section 2.2.2(E) (“Reporting Requirements of Contractor”), of Request for Proposals No. 230014198 is hereby deleted.
15. Part I (“Statement of Needs”) of Request for Proposals No. 230014198 is hereby revised to include a new section 2.12 (“Reporting Requirements of Contractor”) reading in its entirety as follows:

2.12. Reporting Requirements of Contractor

- 1. The Contractor shall acknowledge all claims in writing to the City. The acknowledgement must be sent by the Contractor to the City’s Risk Manager within two business days of the Contractor’s receipt of the first report.

2. For any claim reserved at \$10,000.00 and above, or for any claim involving one or more of the serious injuries listed in section 2.2.2(E)(3) below, the Contractor shall meet the following requirements:
 - i. The Contractor must report the loss immediately to the City's Chief Risk Officer and the City's Risk Manager.
 - ii. The Contractor must complete an initial written report within 21 calendar days after the Contractor's receipt of the claim including information specified in a status report and submitted to the City's Risk Manager and copy the City's Chief Risk Officer and must include any pertinent information received by the Contractor that could reasonably affect future activity on the claim (i.e., categories listed in the status report shown below):
 - a. Claimant's name
 - b. Accident location
 - c. Date of loss
 - d. The Contractor's assigned adjuster's name and phone number
 - e. Details of the claim
 - f. Results of the investigation
 - g. Nature of injury
 - h. Exposure
 - i. Recommendations for future handling
 - j. Subrogation
 - k. Reserves, including amount paid by category
 - l. Recommendations and basis for settlement
 - iii. The Contractor shall complete supplemental written status reports and submit them to the City's Risk Manager, City's Risk Management Analyst, Sr. and a copy to City's Chief Risk Officer at least every 90 days following the initial report. These reports must include all of the information listed in section 2.2.2(E)(2)(ii) above, and any other pertinent information that could reasonably affect the future activity on the claim.
 - iv. If the Contractor identifies information that will change the estimated probable cost of the claim and such information results in a change of \$10,000.00 or more of the estimated probable cost, then the Contractor must, no fewer than ten days after the date of the Contractor becoming aware of the information, adjust the reserve and provide the City's Risk Manager, and the Chief Risk Officer a written notification of the fact of the increase and the basis for the increase.
3. The Contractor shall send a status report to the City's Risk Manager, City's Risk Management Analyst, Sr. and the Chief Risk Officer by email immediately when any claim is reserved for \$100,000.00 or more, or when the Contractor has notice of any one of the following types of injuries:
 - i. A fatality
 - ii. Quadriplegia
 - iii. Paraplegia
 - iv. Amputation of a major extremity (e.g., hands, feet, arms, legs)

- v. Heart attack
 - vi. Back problems involving surgery
 - vii. Serious burns or disfigurement
 - viii. Loss of sight or hearing
 - ix. Brain damage
 - x. Any other extreme, permanent injury
4. The Contractor must report the information set forth in section 2.2.2(E)(3) above, as required by the City's insurance policy, to the City's excess carrier. The City's Chief Risk Officer will provide the Contractor with the City's insurance carriers and policy numbers within 10 days of the Commencement Date of the Contract. The City's Chief Risk Officer will notify the Contractor of any changes to the carriers or policy numbers within 10 days of the renewal date of any such policy during the life of the Contract.
 5. The Contractor must provide a status report to the City's Chief Risk Officer and the City Risk Manager immediately (i) when a lawsuit is received with an ad damnum in excess of the policy limits, (ii) when the ad damnum is unstated, or (iii) if there is a claim for punitive or exemplary damages.
 6. The Contractor shall report to the City the results of the customer satisfaction survey performed by Contractor no less than quarterly each year. The customer satisfaction survey shall seek feedback on customer service of claims staff, medical care, and claim handling experience.
 7. The Contractor shall provide the City the ability to create customized fields to run customized reports.

16. Appendix I of the Contractor's proposal dated August 30, 2024, is hereby deleted in its entirety.

By signing the Contract, the parties thereto have approved these Negotiated Modifications.

PART III

GENERAL TERMS AND CONDITIONS

1.0 Duration of Contract.

1.1 Commencement and Expiration. This Contract shall commence on the Commencement Date set forth in the Goods and Services Contract and shall expire 5 years later, unless terminated earlier in accordance with the provisions of this Contract.

1.2 Extension of Contract. The City reserves the right to extend the Contract for any reason for a period or periods up to but not to exceed 12 months. This extension clause may be exercised when the City determines that an extension of the Contract is advantageous to the City. Any extension beyond 12 months will be subject to section 1.3 ("Renewal"). This provision in no way affects or alters the ability of the City to renew the Contract consistent with section 1.3 ("Renewal"). If it is then decided to renew the Contract, the renewal date will commence on the day following the last day of the contract extension.

1.3 Renewal. The City may, at its sole option, renew this Contract for up to 2 two-year renewal terms by furnishing the Contractor with written notice of its decision to renew the Contract at least 60 calendar days before the expiration of the preceding term.

2.0 Contractor Responsibilities.

2.1 Independent Contractor. The Contractor shall provide the services required under this Contract as an independent contractor.

2.2 Advertising. The Contractor shall not use any indication of its services to the City for commercial or advertising purposes. However, the Contractor may list the City as a reference account for prospective customers.

2.3 Anti-Kickback Provision. The Contractor warrants that it has not employed or retained any company or person other than a bona fide employee working solely for the Contractor to solicit or secure this Contract and that it has not paid or agreed to pay any company or person other than a bona fide employee working solely for the Contractor any fee, commission, percentage, brokerage fee, gifts or other consideration contingent upon or resulting from the award or making of this Contract. For breach or violation of this warranty, the City shall have the right to annul or void this Contract without liability or, in its sole discretion, to deduct from the contract price or consideration, or otherwise recover the full amount of such fee, commission, percentage, brokerage fee, gift or contingent fee.

2.4 Century Compliance. The Contractor warrants that the hardware, software and firmware products, provided for use by the City or used by the Contractor to provide

any service or commodity that is the subject of this Contract, individually and in combination, shall successfully process, store and perform calculations with dates regardless of the century in which the dates occur.

2.5 Compliance with Laws. The Contractor shall comply with the provisions of any statutes, ordinances, rules, regulations, or other laws enacted or otherwise made effective by any local, state, or federal governmental entity which may be applicable to the performance of this Contract and shall obtain all necessary licenses and permits thereunder.

2.6 Contractor Misrepresentation.

2.6.1 In General. If the Contractor knowingly makes a material misrepresentation in submitting information to the City, such misrepresentation will be sufficient grounds for rescinding the award of this Contract.

2.6.2 MBE/ESB Participation. By issuing the Request for Proposals, the City intends that MBE / ESB participation proposed as part of any proposal in response hereto be binding on the Contractor. Consequently, if the Contractor falsely representing proposed MBE/ESB participation, or failing to comply with proposed participation, may be in breach of contract. Upon determination of a breach, the City shall have all available remedies for breach of contract, which may include, but is not limited to, one or more of the following: (i) forfeiture, (ii) investigation, and (iii) debarment.

2.7 Drug-Free Workplace.

2.7.1 Policy. City Council Resolution No. 2000-R197-191 prohibits the City from contracting with any contractor that fails to comply with this policy. The Contractor certifies that it has taken and will continue to take appropriate and effective action to (i) educate its employees about the dangers of drug abuse in the workplace, (ii) provide its employees with effective drug counseling, rehabilitation and employee assistance programs, any or all, (iii) discipline employees who violate the requirement of a drug-free workplace, and (iv) minimize, to the greatest extent possible, the risks of drugs entering the workplace. The Contractor is also prohibited from contracting with any other party that fails to comply with this policy. Failure by the Contractor or its subcontractor to comply with the provisions outlined above will be cause for termination of the Contract.

2.7.2 Contractor's Plan. The Contractor shall implement and maintain a Drug-Free Workplace Plan specific to the services and work covered by this Contract that is implemented and effectively used throughout the duration of this Contract to accomplish the requirements of section 2.7.1 ("Policy") above.

2.8 Human Rights.

- 2.8.1 **Civil Rights Act Compliance.** During the performance of this Contract, the Contractor agrees, pursuant to Resolution No. 74-R8-11 adopted February 25, 1974 by the Council of the City of Richmond, to comply fully with Titles VI and VII of the Civil Rights Act of 1964, as amended, and all regulations promulgated thereunder.

The essence of this requirement is found in the United States Code Annotated, Title 42, Section 2000e-2, which states in part:

- “a. It shall be an unlawful employment practice for an employer:
- (1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or
 - (2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex or national origin.”

By entering into this Contract, the Contractor certifies that it has complied with Titles VI and VII of the Civil Rights Act of 1964, as amended.

- 2.8.2 **Richmond City Code Compliance.** Pursuant to section 21-70 of the Code of the City of Richmond (2004), as amended:

- (a) During the performance of this Contract, the Contractor agrees as follows:
- (1) The Contractor shall not discriminate against any employee or applicant for employment because of race, religion, color, sex, national origin, age, disability, or other basis prohibited by state law relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the Contractor. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.
 - (2) The Contractor, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, shall state that such Contractor is an equal opportunity employer.

- (3) Notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this section.
 - (b) During the performance of this Contract, the Contractor shall include the provisions of subsection (1) of the section in every subcontract or purchase order of over \$10,000.00, so that the provisions will be binding upon each subcontractor or vendor.
- 2.9 **Intellectual Property.** The Contractor represents and warrants that all goods and services that it will furnish under this Contract do not and will not infringe on any valid copyright, patent, service mark or trademark. The Contractor shall pay all royalties and license fees which may be due on the inclusion of any patented or copyrighted materials, methods or systems selected by the Contractor or used by the Contractor in the performance of its services. The Contractor shall defend, hold harmless and indemnify the City from all suits or claims for infringement of any patent rights or copyrights arising out of such selection.
- 2.10 **Personnel.** The Contractor shall not replace a person indicated in the Contractor's proposal as being assigned to perform services under this Contract for the City except in accordance with the provisions of this section. If the Contractor wishes to replace such a person, the Contractor shall provide the contract administrator of the City with a résumé of any proposed substitute, the opportunity to interview the proposed substitute and an explanation of the reason the substitution is necessary. The contract administrator of the City will only approve such a substitution when, in their opinion, the proposed substitute has equal or greater qualifications and experience than the person replaced.
- 2.11 **Property of Work.**
 - 2.11.1 **Work Product.** Any material, report or product, whether in electronic or paper form, that results from the execution of this Contract shall be the sole property of the City. The Contractor shall not copyright any material or reports. Upon request, the Contractor shall turn over all work papers and related documents to the City.
 - 2.11.2 **City Property.** Any data or material with which the City furnishes the Contractor shall remain the property of the City. When it no longer needs such data or material for its performance of this Contract, the Contractor shall return such data or material to the City or destroy such data or material using a method approved by the City.
- 3.0 **Payment.**
 - 3.1 **Basis.** The City shall pay the Contractor for all goods delivered and services performed under this Contract in accordance with the pricing provisions set forth in the Contract Documents.

- 3.2 **Schedule.** The Contractor shall invoice the City on a schedule in accordance with the Contract Documents.
- 3.3 **Terms.** The City shall pay the Contractor as follows: Net 45 days.
- 3.4 **Subject-to-Appropriations.** All payments and other performance by the City under this Contract are subject to annual appropriations by the City Council; consequently, this Contract shall bind the City only to the extent that the City Council appropriates sufficient funds for the City to perform its obligations hereunder.
- 3.5 **When City Obligated to Pay.** The City shall not be obligated to purchase or pay for any goods or services covered by this Contract unless and until they are ordered and either delivered or performed, as the case may be.
- 3.6 **Offset Clause.** Pursuant to the Richmond City Charter, the City may withhold the payment of any claim or demand by any person, firm or corporation against the City until any delinquent indebtedness or other liability due the City from such person, firm or corporation shall first have been settled and adjusted.
- 3.7 **Taxes.** All prices shall be submitted exclusive of direct Federal, State and Local Taxes. The City shall not be liable for the payment of any taxes levied by any local, state, or federal governmental entity against the Contractor, and the Contractor shall pay all such taxes; furthermore, should the City nevertheless pay any such taxes, the Contractor shall reimburse the City therefor.
- 3.8 **Invoices.** The Contractor shall submit invoices that include a unique invoice number, the applicable City purchase order number, and the Contractor's federal Taxpayer Identification Number. All invoices submitted by the Contractor must set forth each item billed in sufficient detail to enable the City to ensure that the item was ordered and corresponds with the contract price for such item. If the Contractor does not include all of the required information on the invoice, the City may reject and return the invoice unpaid. The Contractor shall submit the original invoice to the City's Department of Finance at either:

accounts payable@richmondgov.com

or

City of Richmond
Accounts Payable
900 East Broad Street
Richmond, VA 23219.

The City prefers that the original invoice be sent to the above electronic mail address to facilitate timely payment. The Contractor shall submit a duplicate invoice to the attention of the "Requester" identified on the purchase order at the "Ship To" address identified on the purchase order.

- 3.9 MBE/ESB Participation—Reporting Requirement.** In cases where the Contractor uses a minority subcontractor or vendor, it shall indicate the percentage of the invoiced amount that such minority subcontractor or vendor performed on the MBE-3 form available on the City's website. The Contractor shall submit this form directly to the Office of Minority Business Development. The Contractor may contact the City's Office of Minority Business Development at (804) 646-3985 for questions or clarifications on the reporting policy. At the end of its performance of this Contract, the Contractor shall submit a summary in a format designated by the City of all payments made to minority subcontractors or contractors.
- 3.10 Payment by ACH.** The Contractor agrees that the City may make all payments to the Contractor, at the option of the City, of any or all amounts due under this Contract through the Automated Clearing House network.
- 4.0 Indemnification and Insurance.**
- 4.1 Indemnification.** The Contractor shall indemnify, defend and hold harmless the City, its officers, agents and employees from and against any and all losses, liabilities, claims, damages and expenses (including court costs and reasonable attorneys' fees) arising from any material default or breach by the Contractor of its obligations specified in this Contract, as well as all claims arising from errors, omissions, negligent acts or intentional acts of the Contractor, its officers, agents and employees. Further, the Contractor shall assume the entire responsibility and liability for any and all damages to persons or property caused by or resulting from or arising out of any act or omission on the part of the Contractor, its subcontractors, its agents or its employees under or in connection with this Contract. The Contractor shall hold harmless and indemnify the City, and its agents, volunteers, servants, employees, and officers from and against any and all claims, losses or expenses, including but not limited to court costs and attorneys' fees, which any of them may suffer, pay or incur as the result of claims or suits due to, arising out of or in connection with any and all such damage, real or alleged. The Contractor shall, upon written demand by the City, assume and defend at the Contractor's sole expense any and all such claims or legal actions.
- 4.2 Insurance.** The Contractor shall provide and maintain throughout the life of this Contract insurance in the kinds and amounts specified in this section with an insurer licensed to transact insurance business in the Commonwealth of Virginia. Each insurance policy, endorsement and certificate of insurance shall be signed by duly authorized representatives of such insurers and shall be countersigned by duly authorized local agents of such insurers.
- 4.2.1 Costs and Premiums.** The Contractor shall pay all premiums and other costs of such insurance. The consideration paid or to be paid to the Contractor for the performance of the Contract includes the premiums and other costs of such insurance, and neither the City shall be responsible therefor.

4.2.2 Policy Requirements. All insurance contracts and policies shall provide, or be endorsed to provide, as follows:

- (i) Subrogation against the City shall be waived.
- (ii) The City, and its officers, employees, agents and volunteers shall be listed as an additional insured, except for Workers Compensation and Professional Liability.
- (iii) Coverage will not be canceled, non-renewed or materially modified in a way adverse to the City without 30 days' written notice to the City.
- (iv) The insolvency or bankruptcy of any of the insured shall not release the insurer from its obligation to satisfy claims otherwise within the coverage of such policies.

No insurance contract or policy shall be expanded to afford coverage which is greater than the maximum coverage approved for writing in the Commonwealth of Virginia.

4.2.3 Evidence to Be Furnished.

4.2.3.1 Endorsements. The Contractor shall furnish the City with a copy of the policy endorsement listing the City, and its officers, employees, agents and volunteers as an additional insured for each policy, other than Workers Compensation and Professional Liability, required under this section 4.2 ("Insurance"). The Contractor shall furnish the City with copies of such other endorsements as may be required under this Contract upon request by the City therefor.

4.2.3.2 Certificates of Insurance. The Contractor shall furnish the City with a certificate of insurance evidencing the above coverage, indicating that the City, and its officers, employees, agents and volunteers are listed as additional insured for each policy, other than Workers Compensation and Professional Liability, and that the coverage will not be canceled, non-renewed or materially modified in a way adverse to the City without 30 days' written notice to the City. All certificates of insurance shall show the Contract Number assigned to this Contract by the City.

4.2.3.3 Contracts and Policies. The Contractor is not required to furnish the City with copies of insurance contracts or policies required by this section 4.2 ("Insurance") unless requested at any time by the City's Director of Procurement Services.

4.2.4 Schedule of Coverage. The Contractor shall provide and maintain the following types of insurance in accordance with the requirements of this section 4.2 ("Insurance"):

- (i) Commercial General Liability Insurance with a combined limit of not less than \$1,000,000 per occurrence.
- (ii) Automobile Liability Insurance with a combined limit of not less than \$1,000,000 per occurrence.
- (iii) Statutory Workers' Compensation and Employers' Liability Insurance with the Alternate Employer Endorsement WC 000301.
- (iv) Either (a) for professional services, Professional Liability Insurance with limits of not less than \$1,000,000 per claim, or (b) for non-professional services, Errors and Omissions Insurance with limits of not less than \$1,000,000 per occurrence.

5.0 Assignment, Delegation and Subcontracting.

5.1 By City. The City may assign their rights or delegate their duties, in whole or in part, under this Contract by written notice delivered to the Contractor. Such transfer of rights or duties shall take effect upon the date specified in the notice or upon the assumption, if necessary, of the delegated duties by the assignee, whichever is later.

5.2 By Contractor. The Contractor shall not assign its rights or delegate its duties, or any part thereof, under this Contract without the prior written consent of the City. Further, the Contractor shall not assign, sublet or transfer its interest or any part thereof in this Contract by means or as part of any sale, merger, consolidation, assignment or any other event that would result in new or different ownership, control, operation or administration of the Contractor's business affairs without the prior written consent of the City.

5.3 Subcontracting. This Contract shall not be subcontracted without the prior written approval of the City's Director of Procurement Services.

6.0 Remedies and Termination.

6.1 Default. In case of default of the Contractor or if the Contractor fails to deliver the supplies or services ordered by the time specified, the City, after due notice in writing, may procure them from other sources and hold the Contractor responsible for any excess cost occasioned thereby. This remedy shall be in addition to any other remedies available to the City.

6.2 Termination with Cause.

6.2.1 Notice. The City may terminate this Contract with cause at any time for the Contractor's failure to perform its obligations under this Contract or to otherwise adhere to the terms and conditions of this Contract by delivery of written notice to the Contractor of the intent of the City to so terminate. Such notice shall be delivered at

least seven calendar days prior to the date of termination and shall otherwise be given in accordance with the requirements of this Contract for the delivery of notices.

6.2.2 **Cure.** If the Contractor cures the failure to perform or otherwise adhere to the terms and conditions of this Contract to the satisfaction of the City, indicated in writing to the Contractor, during this seven calendar day period, then the notice of termination with cause shall be deemed null and void.

6.2.3 **Effect.** Upon such termination, the City shall be liable only to the extent of costs which may be reimbursable under this Contract that have been submitted by the Contractor and approved by the City up to the time of termination and only upon delivery to the City of all completed or partially completed work performed by the Contractor. The City shall have full right to use such work in any manner when and where it may designate without claim on the part of the Contractor for additional compensation.

6.3 **Termination without Cause.**

6.3.1 **Notice.** The City may terminate this Contract without cause by delivery of written notice to the Contractor of the City's intent to so terminate. Such notice must be delivered at least 90 calendar days prior to the date of termination and must otherwise be given in accordance with the requirements of this Contract for the delivery of notices.

6.3.2 **Effect.** Upon such termination, the City shall be liable only to the extent of any (i) costs which may be reimbursable under this Contract that have been submitted by the Contractor and approved by the City up to the time of termination and (ii) fees to which the Contractor may be entitled under this Contract as a result and only upon delivery to the City of completed or partially completed work. The City shall have full right to use such work in any manner when and where it may designate without claim on the part of the Contractor for additional compensation. No termination notice will relieve the Contractor of the obligation to deliver or perform on all outstanding orders issued prior to the effective date of termination.

6.4 **Termination by Contractor.**

6.4.1 **Notice.** The Contractor may terminate this Contract if the City Council does not appropriate sufficient funds for the City to perform its obligations under this Contract by delivery of written notice to the City of the Contractor's intent to so terminate. Such notice shall be delivered at least 45 calendar days prior to the date of termination and shall otherwise be given in accordance with the requirements of this Contract for the delivery of notices.

6.4.2 **Cure.** If the City cures the non-appropriation of funds by appropriating sufficient funds during this 45 calendar day period, then the Contractor's notice of termination shall be deemed null and void.

- 6.4.3 **Effect.** Upon such termination, the Contractor shall have no further obligations under this Contract.
- 6.5 **Waiver.** The waiver by any party of any term or condition of this Contract shall not be deemed to constitute either a continuing waiver thereof or a waiver of any further or additional right that such party may hold under this Contract.
- 7.0 **Dispute Resolution.**
- 7.1 **Governing Law.** All issues and questions concerning the construction, enforcement, interpretation and validity of this Contract, or the rights and obligations of the City and the Contractor in connection with this Contract, shall be governed by, and construed and interpreted in accordance with, the laws of the Commonwealth of Virginia, without giving effect to any choice of law or conflict of laws rules or provisions, whether of the Commonwealth of Virginia or any other jurisdiction, that would cause the application of the laws of any jurisdiction other than those of the Commonwealth of Virginia.
- 7.2 **Construction and Interpretation.** Each of the parties has had the opportunity to have its legal counsel review this Contract on its behalf. If an ambiguity or question of intent arises with respect to any provision of this Contract, this Contract will be construed as if drafted jointly by the parties. Neither the form of this Contract, nor any language herein, shall be construed or interpreted in favor of or against any party hereto as the sole drafter thereof.
- 7.3 **Contractual Claims.**
- 7.3.1 **Notice and Submission.** The Contractor shall give written notice of its intention to file a contractual claim at the time of the occurrence or the beginning of the work upon which the claim is based. In addition to such notice of its intention to file a claim, the Contractor shall submit all contractual claims, whether for money or other relief, in writing to the City's Director of Procurement Services no later than 60 calendar days after final payment. (*See City Code § 21-167(a); see also Va. Code § 2.2-4363(A).*)
- 7.3.2 **Required Contents of Claim Submission.** The Contractor's claim submission shall (i) set forth the primary, secondary and indirect claim issues in a clear, concise manner, (ii) identify the specific contract provisions, schedule impact and cost consequences related to each claim issue, and (iii) include all factual data supporting the claim as well as all supporting cost and delay data. The City's Director of Procurement Services, in the Director's sole discretion, may return claim submissions lacking any of the elements enumerated in the preceding sentence for resubmission or review the claim as though the missing elements are not factually present to support the claim. Such return of a claim submission shall not toll the 60-day period within which the Contractor must submit a claim.

- 7.3.3 Procedures and Time Limit.** The procedures set forth in this section 7.3 (“Contractual Claims”) and in City Code § 21-167 shall govern the consideration of contractual claims. The City’s Director of Procurement Services shall issue a written decision on a claim no later than 90 calendar days after receipt of such claim in writing from the Contractor. (*See* City Code § 21-167(b); *see also* Va. Code § 2.2-4363(B).)
- 7.3.4 No Action before Decision.** The Contractor may not invoke administrative procedures as provided in City Code § 21-168 or institute legal action as provided in City Code § 21-169 prior to receipt of the decision on the claim, unless the City’s Director of Procurement Services fails to render such decision within the 90-day time limit. A failure of the City’s Director of Procurement Services to render a final decision within the 90-day time limit shall be deemed a final decision by the City denying the claim. (*See* City Code § 21-167(c); *see also* Va. Code § 2.2-4363(D).)
- 7.3.5 Finality of Decision.** The decision of the City’s Director of Procurement Services shall be final and conclusive unless the Contractor appeals within 30 calendar days of the date of the final decision on the claim by the Director either as provided in City Code § 21-168 for administrative appeals or, in the alternative, by instituting legal action as provided in City Code § 21-167. (*See* City Code § 21-167(d); *see also* Va. Code § 2.2-4363(E).)
- 7.3.6 No Cessation of Performance.** Nothing in this section 7.3 (“Contractual Claims”) shall be construed to authorize or permit the Contractor, while pursuing, by any available procedure, an appeal of a contractual claim or dispute, to cease performance of the Contract while such claim or dispute is pending. (*See* City Code § 21-167(e).)
- 7.4 Alternative Dispute Resolution.** The City’s Director of Procurement Services, with the concurrence of the City Attorney, may agree in writing on behalf of the City to submit particular disputes arising from this Contract to arbitration and to utilize mediation and other alternative dispute resolution procedures; however, any such procedures entered into by the City shall be nonbinding. (*See* City Code § 21-170; *see also* Va. Code § 2.2-4366.)
- 7.5 Forum and Venue Choice.** Any and all disputes, claims and causes of action arising out of or in connection with this Contract, or any performances made hereunder, shall be brought, and any judicial proceeding shall take place, only in a federal or state court located in the city of Richmond, Virginia. The Contractor accepts the personal jurisdiction of any court in which an action is brought pursuant to this article for purposes of that action and waives all jurisdiction- and venue-related defenses to the maintenance of such action.
- 8.0 Miscellaneous Provisions.**

- 8.1 **Audit.** The City reserves the right to audit all aspects of this Contract, including but not necessarily limited to (i) the Contractor's financial capability and accounting system, (ii) the basis for progress payments, (iii) the Contractor's compliance with applicable laws and (iv) appropriate vendor records. The City further reserves the right to review, on demand and without notice, all files of the Contractor or any subcontractor or vendor employed by the Contractor to provide services or commodities under this Contract where payments by the City are based on records of time, salaries, materials or actual expenses. The Contractor shall maintain all records subject to audit under this provision locally or in a manner deliverable at the Contractor's expense to a location in the metropolitan Richmond area.
- 8.2 **Captions.** This Contract includes the captions, headings and titles appearing herein for convenience only, and such captions, headings and titles shall not affect the construal, interpretation or meaning of this Contract.
- 8.3 **Force Majeure.** If any party is unable to perform its obligations under this Contract due to acts of God or circumstances beyond its reasonable control, such obligations shall be suspended as long as those circumstances persist, provided that the delaying party promptly notifies the other party of the delay and the causes. Except where the delay is caused by an act or omission of the delaying party, any costs arising from such delay shall be borne by the party incurring the delay.
- 8.4 **Merger / Entire Agreement.** This Contract, including the exhibits incorporated herein, constitutes both a complete and exclusive statement and the final written expression of all the terms of this Contract and of the entire understanding between the City and the Contractor regarding those terms. No prior written agreements or contemporaneous or prior oral agreements between the City and the Contractor regarding this Contract's subject matter shall be of any effect.
- 8.5 **Modification.** This Contract shall not be amended, modified, supplemented, or otherwise changed except in the form of a City Contract Modification signed by the authorized representatives of the City and the Contractor in accordance with the City's Purchasing Policies and Procedures.
- 8.6 **No Third-Party Beneficiaries.** Notwithstanding any other provision of this Contract, the City and the Contractor hereby agree that: (i) no individual or entity shall be considered, deemed or otherwise recognized to be a third-party beneficiary of this Contract; (ii) the provisions of this Contract are not intended to be for the benefit of any individual or entity other than the City or the Contractor; (iii) no individual or entity shall obtain any right to make any claim against the City or the Contractor under the provisions of this Contract; and (iv) no provision of this Contract shall be construed or interpreted to confer third-party beneficiary status on any individual or entity. For purposes of this section, the phrase "individual or entity" means any individual or entity, including, but not limited to, individuals, contractors, subcontractors, vendors, sub-vendors, assignees, licensors and sub-licensors, regardless of whether such individual or entity is named in this Contract.

8.7 Notices.

8.7.1 In General. Any written notice by any party to the Contract shall be sufficiently given by any one or combination of the following, whichever shall first occur: (i) delivered by hand to the last known business address of the person to whom the notice is due, (ii) delivered by hand to the person's authorized agent, representative or officer wherever they may be found or (iii) enclosed in a postage prepaid envelope addressed to such last known business address and delivered to a United States Postal Service official or mailbox. Notice is effective upon such delivery.

8.7.2 Address. All notices to the City shall clearly indicate the Contract Number assigned to this Contract by the City and shall be directed to:

Director of Procurement Services
Department of Procurement Services
City of Richmond
900 East Broad Street, Room 1104
Richmond, Virginia 23219

All notices to the Contractor shall be directed to the contact person stated at the address given in the Contractor's proposal.

END OF GENERAL TERMS AND CONDITIONS

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1.0 Introduction:

1.1 Purpose. The purpose of this Request for Proposals is to solicit proposals to establish a contract through competitive negotiation for the purchase of third party administration services for Workers' Compensation, General Liability and Automobile Liability claims, and loss control services.

1.2 Background. The City of Richmond is the capital of the Commonwealth of Virginia, located in central Virginia with an estimated population of over 226,000 persons. The geographic area of the city of Richmond is 60 square miles. The City is a Mayor/Council entity that employs nearly 4,000 employees. The City hosts or provides a full range of municipal service; including public safety, public works, criminal justice, recreation and entertainment, and human and social services and The City is seeking a third party administrator to process approximately 1,100 claims a year, on its behalf that may arise from the operations described above. A summary of claims history by line of business for the past five years is included as **Attachment A**.

1.3 Pre-Proposal Meeting. There will be a non- mandatory pre-proposal meeting at 11:00 on Thursday August 3, 2023 through a TEAMS Meeting. Call in # is 804-316-9457 and the code for the meeting is: **203 868 166 #**

1.4 Definitions. The following words and phrases, when used in this Request for Proposals, have the meanings ascribed to them in this section, except where the context clearly indicates that and the meaning is intended:

A. City. "City" means the City of Richmond, a municipal corporation and political subdivision of the Commonwealth of Virginia, acting through its duly authorized representatives.

B. Contract. "Contract" means the Goods and Services Contract, a sample of which is attached to this Request for Proposals, together with all Contract Documents referred to therein, awarded to the Contractor as a result of this solicitation.

C. Contractor. "Contractor" means the offeror to whom the City awards the Contract.

D. Offeror. "Offeror" means any person or legal entity that may choose to submit a proposal in response to this solicitation.

E. PERI. "PERI" means the Public Entity Risk Institute.

F. WCRI. "WCRI" means the Workers' Compensation Research Institute.

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2.0 Requirements and Deliverables.

2.1. General Information. The Contractor must provide third party administration of Workers' Compensation, General Liability and Automobile Liability claims, for the City as specified herein. The Contractor, along with the City Of Richmond, must determine and process timely payments to all appropriate providers of medical services, ancillary services and claimants for whom compensability or liability has been accepted on behalf of the City or determined by the Virginia Workers' Compensation Commission

2.2.1 Workers' Compensation Claims.

- A. Prior to individual claim activity, the Contractor's adjuster (either an employee of the Contractor or a subcontractor of the Contractor) will review all procedural guidelines for claim handling set forth in writing and approved by the City, including the claims handling instructions required by section 2.7 ("Claims Handling Instructions").
- B. The Contractor must make telephone contact with the City's Risk Manager and the claimant within 24 hours of the Contractor's receipt of the following types of claims:
 - i. Lost time injury claims,
 - ii. Back claims,
 - iii. Knee injury,
 - iv. Shoulder injury,
 - v. All occupational disease claims,
 - vi. All cumulative trauma claims,
 - vii. Or as requested by City.
- C. If the Contractor, upon review of the disability note from the treating physician, determines that the claimant's disability will exceed the waiting period defined in the Workers' Compensation Act for eligibility for indemnity benefits, the Contractor must make contact with the treating physician within 24 hours of the Contractor's receipt of the disability note to determine the diagnosis, prognosis, instructions, and modified duty opportunities.
- D. The Contractor must follow-up with the treating physician and rehabilitation nurse with a telephone conversation every 30 days (or earlier) after the 24-hour contact required by section 2.2.1(C) above, if indicated to verify the claimant's

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status on the injury, physical therapy and ability to work in a light or full duty capacity. The Contractor must request documentation of ongoing disability through reports at least monthly from the treating physician.

- E. The Contractor must take recorded statements or written statements, or both, from the claimant and any witnesses within 48 hours of the Contractor's receipt of the claim or notification of existence of a witness for:

- i. Questionable cases,
- ii. Occupational disease,
- iii. Cumulative trauma,
- iv. Back injury,
- v. Head injury,
- vi. Knee injury,
- vii. Shoulder injury,
- viii. Catastrophic injury,
- ix. Subrogation injury,
- x. Others as directed by the City.

The Contractor must notify the person providing the statement that the phone conversation is being recorded to create a recorded statement.

- F. The investigation must be completed by the Contractor within seven days from the date of the Contractor's receipt of a claim. The Contractor's adjuster must make a final determination of compensability or a request to extend the compensability decision to allow for more investigation within 14 days of receipt of the claim by the Contractor, or earlier pursuant to Virginia state law.
- G. A preliminary plan of action must be clearly identified and documented by the Contractor in the file within 21 days from receipt of the claim by the Contractor and the Contractor must update the plan every 30 days thereafter.

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H. The Contractor must provide status reports to the City's Risk Manager and Risk Management Analyst, Sr. every 30 days for all claims. The status reports must include:

- i. Claimant's name,
- ii. Accident location,
- iii. Date of loss,
- iv. The Contractor's assigned adjuster's name and phone number,
- v. The claimant's supervisor's name and phone number,
- vi. Details of the claim,
- vii. Results of investigation,
- viii. Nature of injury,
- ix. Exposure,
- x. Recommendations for future handling,
- xi. Subrogation,
- xii. Second injury fund,
- xiii. Reserves, and
- xiv. Paid amount listed by category.

I. The Contractor must establish a reserve within 21 days of the Contractor's receipt of the first report, and the Contractor must reevaluate the reserve every 90 days thereafter. The Contractor must provide reserve advisors to the City's Risk Manager and Chief Risk Officer by email on all cases over \$25,000, with copies and outline for status reports to be used.

J. The Contractor must report all claims electronically to the Central Index Bureau within 30 calendar days after receipt of the first report by the Contractor. The Contractor must check with the Central Index Bureau for claims by the claimant with other insurers every nine to twelve months thereafter until the case is closed by the Contractor.

K. The Contractor must consider rehabilitation services on all cases where disability exceeds three weeks or where the length of disability is undetermined prior to assignment of rehabilitation services, the Contractor must contact the claimant's employing department to discuss the possibility of limited or modified duty.

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- L. The Contractor must review medical provider bills to determine compliance with fee schedules, to evaluate whether reasonable and customary fees were charged for the injury and provision of services, and to confirm that preferred provider network discounts were applied. The Worker's Compensation fee schedule for medical bills for Worker's Compensation care became effective (January 1, 2018), therefore, the Contractor must adjust medical costs to comply with the applicable fee schedule. The Contractor must perform hospital bill audits on all inpatient care expenses when a claimant's inpatient care expenses exceed \$10,000.
- M. Within ten days of receipt by the Contractor of a lawsuit or hearing notice, the Contractor must develop a preliminary litigation plan including a cost forecast and provide the plan to the City's Chief Risk Officer, Risk Manager and the lawyer in the City Attorney's Office assigned to handle worker's compensation matters. The Contractor must review this litigation plan every 90 days and must send a copy to both the City's Chief Risk Officer and Risk Manager and the lawyer in the City Attorney's office assigned to handle worker's compensation matters.
- N. The Contractor must obtain from the City all necessary settlement approvals in accordance with the City's settlement authority policy requirements prior to entering into negotiations on cases in excess of \$10,000. The City will provide a copy of the City's settlement authority policy to the Contractor after the Commencement Date of the Contract. The settlement authority policy defines who in the City administration may authorize settlements based on the value to be paid. The Contractor must provide the following information to the City's Chief Risk Officer and Risk Manager when the Contractor requests settlement approval:

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- i. Claimant's name,
- ii. Accident location,
- iii. Date of loss,
- iv. The Contractor's assigned adjuster's name and phone number,
- v. The claimant's supervisor's name and phone number,
- vi. Details of the claim,
- vii. Results of investigation,
- viii. Nature of injury,
- ix. Exposure,
- x. Recommendations for future handling,
- xi. Subrogation,
- xii. Second injury fund,
- xiii. Reserves, including amount paid by category,
- xiv. Recommendations, and
- xv. Basis for settlement.

- O .Upon request, the Contractor must provide a status report or update to the City's Chief Risk Officer, so the City's Chief Risk Office can update the City employee with knowledge of the event (e.g., the supervisor, the safety officer).
- P. If a claim is denied by the Contractor, the claim must remain in the Contractor's electronic claims information system indefinitely and be held to see if litigation is pursued by the claimant. If a claim is litigated, the Contractor must follow the guidelines noted in section 2.2.1(M) above in regard to establishing a litigation plan to be monitored by the Risk Manager, Risk Management Analyst, Sr. and the City Attorney's Office.
- Q. Where a medical evaluation is questioned by the Contractor, after discussion with the City's Risk Manager and Chief Risk Officer, the Contractor must schedule an independent medical examination with a qualified physician board certified in the specialty associated with the body part injured. The Contractor must provide job descriptions and physical requirement information that could affect the physician's objective medical evaluation.

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- R. Where the length of disability is questioned by the Contractor or the City, the Contractor must conduct an outside activity check, including surveillance, in order to determine the physical activities of the claimant and evaluate alleged disability. No surveillance must be completed by the Contractor until that surveillance is approved in writing by the City's Chief Risk Officer or Risk Manager.
- S. The Contractor must provide Senior levels Adjusters with no less than 3 years of experience for all claims, with the exception of Medical Only Workers Compensation claims.
- T. The Contractor must provide at least two (2) full time lost time Adjusters and at least one (1) full time medical only Adjuster for claims handling services, with each discipline having a minimum of 3 years' experience. Senior level Adjusters are strongly preferred.
- U. The Contract must provide additional Adjusters to the City's account in the event of an increase in the volume of workers' compensation claims.

2.2.2 Auto and General Liability.

- A. Processing.
 - I. Within three business days of receipt of the first report by the Contractor, the Contractor must create electronic files, establish reserves, and assign the proper department budget code number. The Contractor must enter all necessary data into the Contractor's electronic claims information system required by section 2.6 ("Electronic Claims Information System") herein.
 - 2. A diary system must be established by the Contractor so that i) the Contractor must review each claim forty-five calendar days after the Contractor's receipt of the first report and at least every sixty calendar days thereafter, or more frequently as otherwise appropriate, and ii) at each review, the Contractor must place a status report in the electronic file notes of the Contractor's electronic claims information system.

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3. The Contractor must make payments to medical care providers, appraisers and ancillary service providers and claimants in a timely manner.
4. The Contractor must enter payments, reserve revisions and file closings promptly into the Contractor's electronic claims information system with accurate assignment of department budget codes.
5. The Contractor must report bodily injury cases electronically to the Central Index Bureau within 30 calendar days after receipt of the first report by the Contractor. The Contractor must check with the Central Index Bureau for claims by the claimant with other insurers every nine to twelve months thereafter until the case is closed by the Contractor.
6. The Contractor's assigned claim reserve must take into consideration probable payments related to the loss, including liability, allocated expenses, and claim service fees. The Contractor's assigned claim reserves must take into consideration liability, damages, expenses and all factors necessary to determine the estimated amount the City will be required to pay for each claim.
7. The Contractor must provide at least two (2) full-time liability adjusters with a minimum of three (3) years' experience.

B. File Documentation.

1. The Contractor must enter all reserve, reserve revisions and payments made by the Contractor and record all vouchers for payments made by the City related to the claim pursuant to section 2.2.2 into the Contractor's electronic claims information system, and the Contractor must record all information clearly with full explanations in the file notes.
2. Supervision of the Contractor's claims adjuster assigned to any questionable liability cases is at the discretion of the Contractor's claims manager, taking into consideration the experience level of the Contractor's adjuster to whom the claim is assigned. The Contractor may request additional direction from the City's Risk Manager or Chief Risk Officer.
3. An initial file summary, including the information set forth in the appropriate report format for reporting to the Workers' Compensation Commission or to the Central Index Bureau must be completed and submitted by the Contractor within forty-five days of the claim being assigned to the Contractor to the City and must be placed by the Contractor in the file notes within the Contractor's electronic claims information system.

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4. The Contractor must complete an updated status report on any file remaining open every ninety days following the initial report, and will include information outlining further work to be done, case evaluation, verdict potential, laws affecting the case, settlement/defense strategy and a target day for completing the outstanding work.
5. The Contractor must document phone conversations, discussions, meetings, and similar events held on the case clearly in each file's notes within the Contractor's electronic claims information system contemporaneously with the event.
6. The diary schedule within the Contractor's electronic claims information system must be maintained by the Contractor and used to ensure proper follow up and contact for requested reports from medical providers, nurse case managers, appraisers, City staff aiding in claim investigation.

C. Investigation.

1. Contact with any claimant must be made by the Contractor within 24 hours of the Contractor's receipt of the first report and, where warranted by the damage exposure, efforts to obtain a recorded statement must be taken by the Contractor from the claimant within that 24 hour period or as soon as possible thereafter where there is a question on liability or injury, or both. The Contractor must notify the claimant providing the statement that the phone conversation is being recorded to create a record of the statement.
2. Within one business day of the Contractor's receipt of the first report, the Contractor must make contact with the City department or agency involved when there is a need for initial discussion of the case.
3. Where warranted by the damages and legal liability exposures, the Contractor must, as soon as practicable, take the necessary recorded statement from employees involved in the work that gave rise to the claim. The Contractor must notify the person providing the statement that the phone conversation is being recorded to create a recorded statement.
4. Within 30 days of receipt by the Contractor of the first report, the Contractor must conduct an investigation of the facts of the accident and injury with the appropriate City staff sufficient to determine liability and to substantiate the initial reserve to meet the probable liability arising from the known facts to the event. If additional information is later received by the Contractor, the Contractor must adjust the reserves accordingly.

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5. The Contractor must arrange for proper inspection by a licensed appraiser of any alleged property damage in excess of \$7,500. The inspection must be completed within five business days of the Contractor's receipt of the first report. An estimate from a licensed auto repair shop will suffice on claims under \$7,500. Payments will be reviewed by the Contractor and processed promptly by the Contractor.
6. The Contractor will maintain contact with claimants and document all activity in the Contractor's electronic claims information system's file notes, on an ongoing basis, to control the medical progress by confining claimant compliance with medical treatment and physical therapy recommendations.
7. Where the length of disability is questioned by the Contractor or the City, the Contractor must conduct an outside activity check, including surveillance, in order to determine the physical activities of the claimant and evaluate alleged disability. No surveillance must be completed by the Contractor until that surveillance is approved in writing by the City's Chief Risk Officer or City's Risk Manager.
8. On any file where settlement is being considered, the Contractor must solicit medical bills, medical reports and records, and lost wage documentation (where applicable) from the claimant.
9. The Contractor must review all medical bills submitted by the claimant for payment for causal relationship to the accident.
10. The Contractor shall retain outside services such as nurse case management, vocational rehabilitation services or other ancillary services necessary to aid in the recovery of, or return to work by, the claimant only after receipt of written approval from the Chief Risk Officer for each outside service to be retained. When requesting approval from the City's Chief Risk Officer for the retainer of an outside service, the Contractor shall provide a specific goal and period of time for the use of the outside service.
11. The Contractor shall recognize subrogation and contribution possibilities promptly and shall preserve necessary evidence and utilize experts where needed. The Contractor shall not take any portion of subrogation recoveries made on behalf of the City. No third party who may be rightfully liable for the claim made against the City will be put on notice by the Contractor without prior written approval from the City's Chief Risk Officer or Risk Manager.

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12. The Contractor shall evaluate reserves and settlement potential every time the Contractor reviews the file based on information already gathered in the investigation.
13. Where warranted, settlement will be pursued by the Contractor in an expedient manner, and all negotiations will be handled or managed internally by the Contractor's adjuster assigned the file unless there is a documented basis (i.e., liability is in question) to have the claim handled by the City Attorney staff or by the Chief Risk Officer.
14. The Contractor shall obtain from the City all necessary settlement approvals in accordance with the City's settlement authority policy requirements prior to entering into negotiations. The City will provide a copy of the City's settlement authority policy to the Contractor after the Commencement Date of the Contract. The settlement authority policy defines who in the City administration may authorize settlements based on the value to be paid.

D. Litigation Management

1. If a lawsuit is filed, the Contractor shall work with the Office of the City Attorney, City Risk Manager and the City's Chief Risk Officer to determine whether to settle or defend the case. Upon request by the Contractor, the City Attorney or his designee will provide the Contractor with a settlement evaluation of the case. The evaluation of the settlement value, conducted by either the Contractor or the City Attorney's Office, will be clearly documented in the file notes.
2. Where the case is to be defended, the claim will be referred to the City Attorney's Office. The City Attorney's Office may defend the claim, or the City Attorney may choose to hire outside counsel.
3. A memo must accompany the file or the referral to the City Attorney's Office outlining (i) the work on the claim that remains to be done, (ii) any reasons the claim was not settled, (iii) suggested defenses (e.g., contributory negligence, sovereign immunity, inconsistencies among witnesses and evidence), and (iv) any remaining deadlines to be met.

E. Reporting Requirements of Contractor

1. The Contractor shall acknowledge all claims in writing to the City. The acknowledgement must be sent by the Contractor to the City's Risk Manager within two business days of the Contractor's receipt of the first report.

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STATEMENT OF NEEDS

2. For any claim reserved at \$10,000 and above, or for any claim involving one or more of the serious injuries listed in section 2.2.2(E)(3) below, the Contractor shall meet the following requirements:
 1. The Contractor must report the loss immediately to the City's Chief Risk Officer and the City's Risk Manager.
 11. The Contractor must complete an initial written report within 21 calendar days after the Contractor's receipt of the claim including information specified in a status report and submitted to the City's Risk Manager and copy the City's Chief Risk Officer and must include any pertinent information received by the Contractor that could reasonably affect future activity on the claim (i.e., categories listed in the status report shown below):
 - a. Claimant's name,
 - b. Accident location,
 - c. Date of loss,
 - d. The Contractor's assigned adjuster's name and phone number,
 - e. Details of the claim,
 - f. Results of the investigation,
 - g. Nature of injury,
 - h. Exposure,
 - i. Recommendations for future handling,
 - j. Subrogation,
 - k. Reserves, including amount paid by category,
 - l. Recommendations, and Basis for settlement.
 - m. The Contractor shall complete supplemental written status reports and submit them to the City's Risk Manager, City's Risk Management Analyst, Sr. and a copy to City's Chief Risk Officer at least every 90 days following the initial report. These reports must include all of the information listed in section 2.2.2(E)(2)(ii) above, and any other pertinent information that could reasonably affect the future activity on the claim.
 - n. If the Contractor identifies information that will change the estimated probable cost of the claim and such information results in a change of \$10,000 or more of the estimated probable cost, then the Contractor must, no fewer than ten days after the date of the Contractor becoming aware of the information, adjust the reserve and provide the City's Risk Manager, and the Chief Risk Officer a written notification of the fact of the increase and the basis for the increase.

PART I

STATEMENT OF NEEDS

3. The Contractor shall send a status report to the City's Risk Manager, City's Risk Management Analyst, Sr. and the Chief Risk Officer by email immediately when any claim is reserved for \$100,000 or more, or when the Contractor has notice of any one of the following types of injuries:
 - i. A fatality
 - ii. Quadriplegia
 - iii. Paraplegia
 - iv. Amputation of a major extremity (e.g., hands, feet, arms, legs)
 - v. Heart attack
 - vi. Back problems involving surgery
 - vii. Serious burns or disfigurement
 - viii. Loss of sight or hearing
 - ix. Brain damage
 - x. Any other extreme, permanent injury
 4. The Contractor must report the information set forth in section 2.2.2(E)(3) above, as required by the City's insurance policy, to the City's excess carrier. The City's Chief Risk Officer will provide the Contractor with the City's insurance carriers and policy numbers within 10 days of the Commencement Date of the Contract. The City's Chief Risk Officer will notify the Contractor of any changes to the carriers or policy numbers within 10 days of the renewal date of any such policy during the life of the Contract.
 5. The Contractor must provide a status report to the City's Chief Risk Officer and the City Risk Manager immediately (i) when a lawsuit is received with an ad damnum in excess of the policy limits, (ii) when the ad damnum is unstated, or (iii) if there is a claim for punitive or exemplary damages.
- 2.3 **Transition of Claims.** The Contractor will start with all new claims received by the City as of the Commencement Date. The transition of historical claims and open claims will occur up to 15 days prior and no later than 10 days after the Commencement Date.
- 2.4 **Claims Payment.**
- A. The Contractor shall obtain invoices and supporting documentation, including, but not limited to, physician office notes and repair bills, for review. The Contractor shall review the invoices and documentation for adjustment to reasonable and customary costs.

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- B. The Contractor shall use a checking account established by the City for the payment of claims. The Contractor shall use the checking account only in accordance with this Contract, directives from the City's Department of Finance and the City's Chief Risk Officer, and any policies that the City's Chief Officer provides the Contractor. The City will provide an initial sum (the amount to be determined by the City) to fund the checking account. All other funds will be provided by the City in accordance with the procedures set forth in subsection (C) herein. The Contractor shall draw all checks from this account to pay invoices and bills associated with claims administered by the Contractor pursuant to this Contract, including, but not limited to, medical bills, indemnity wages for lost time, surveillance, and vocational rehabilitation for Worker's Compensation claims, and repairs, medical bills, and property damage claims for automobile and general liability claims.
- C. The Contractor must submit to the City's Risk Manager on a weekly basis 1) a check register of the account sorted by line of business and 2) a corresponding request for replenishment of account funds. The City's Chief of Risk Management will review the check register and request for replenishment of account funds. If the City's Chief of Risk Management approves the request, the City will process a funding request in the form of a wire transfer to replenish the account funds.
- D. The Contractor must make payments if requested by the City Attorney's Office or the City's Chief of Risk Management.

2.5 Loss Control Services

The Contractor must provide safety recommendations for recurring claim causes, recommendations for safety training, and recommendations for life safety inspection surveys in the Contractor's stewardship report provided by the Contractor to the City each year during the term of the Contract on the anniversary of the Commencement Date of the Contract.

2.6 Electronic Claims Information System.

- A. The Contractor must provide an electronic claims information system to track claims handled by the Contractor pursuant to the Contract. The Contractor's electronic claims information system must be capable of providing real-time online financial data on a claim- by-claim basis, as well as access to adjuster file notes, current reserves, and payments and reserve history. The Contractor's electronic claims information system must be capable of tailoring reports to meet the needs of national data-marts, such as the PERI or the WCRI. The Contractor must provide the City with "review only" access for certain employees to access the claim files within the Contractor's electronic claims information system. The City will identify for the Contractor the City employees that must have "review only" access after the Commencement Date of the Contract. The Contractor will not be required to provide any City employees with edit capabilities within the Contractor's electronic claims information system.

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STATEMENT OF NEEDS

- B. Within 30 days of the Commencement Date of the Contract, the Contractor must provide training to up to 15 City employees on claim access and report writing within the Contractor's electronic claims information system. Upon request by the City and at any time during the term of the Contract, the Contractor must repeat the training on claim access and report writing within the Contractor's electronic claims information system for up to 15 City employees.
 - C. The Contractor must maintain an electronic file in the electronic claims information system for every claim for Worker's Compensation, Automobile Liability, and General Liability received by the Contractor. In addition to the requirements set forth in section 2.0 ("Requirements and Deliverables") herein, the file must contain a description of the incident, the claimant's name, the claimant's address, the claimant's telephone number, and a copy of either the claim letter or the First Report of injury.
- 2.7 **Claims Handling Instructions.** At any point during the term of the Contract and if requested in writing by the City, the Contractor must, no later than 10 business days after receipt of the City's request, revise the Contractor's claim handling procedures provided with the Contractor's proposal as requested by the City. The Contractor must continue to revise the claim handling procedures until the City provides written approval of the claim handling procedures. Throughout the term of the Contract, the Contractor must comply with the claim handling procedures as approved by the City.
- 2.8 **Transition of Services upon Termination of Contract.** Upon termination of the Contract, the Contractor must provide transition of all electronic claim files to the vendor designated by the City, or to the City, or both, no later than 15 days after the termination date of the Contract. The Contractor must provide any additional claim material such as recorded statements and video surveillance tapes to the City's Chief of Risk Management within 15 days of the termination date of the Contract. The Contractor must clearly mark all materials with the claim number and a description of content.
- 2.9 **Audit of Claim Files.**
 - A. The City, its contracted insurance broker, or its contracted auditor will perform an annual review of the Contractor's claim files. The City will provide the Contractor with thirty days' notice prior to the City's review of paper files.

PART I

STATEMENT OF NEEDS

- B. The Contractor must make available to the City's Chief of Risk Management, or their designee, upon demand and with notice reasonable under the circumstances, all records in its possession concerning claims handled for the City under this Contract. No charge must be made for allowing the City's representatives to examine such records. If the City desires copies of any such records, the City must pay only the actual costs of the Contractor in making such copies or having such copies made. Any legal or managerial reviews associated with this production are specifically excluded from these actual costs. In the event records are required to be made available to a party other than the City pursuant to a subpoena or other lawful order issued by a governmental body and such requirement is not made upon the demand of the City, then the City must not be liable for any costs associated with the Contractor's provision of such records pursuant to such subpoena or other order.
 - C. The Contractor must assist the City, its contracted insurance broker, and its contracted auditor in the conduct of audits. This assistance must include the provision of secure, quiet office space, including furnishings and telephones needed by the City, the brokers, and the auditors.
 - D. Notwithstanding the requirements of section 2.8 ("Transition of Services upon Termination of Contract") herein, the Contractor agrees to retain all books, records, and other documents relative to the Contract in accordance with the applicable records retention and disposition schedule issued by the Library of Virginia. The City and its authorized agents must have full access to, and the right to examine, any of the Contractor's materials relevant to the Contract.
- 2.10 **Application of Work Product Doctrine.** The parties agree and acknowledge that all records created by the Contractor in the preparation of litigation pursuant to this Contract must be governed by the work-product doctrine as allowed bylaw.
- 3.0 **Proposal Contents.** The proposal must include all of the information set forth in this section and be organized as set forth in this section. In addition to the original, the offeror must submit two copies of complete, bound paper copies of its proposal and six electronic copies in a portable document format readable by the Adobe Reader program and in a Microsoft Word format that can be searched and edited.

PART I

STATEMENT OF NEEDS

3.1 Tab 1- Executive Summary. This tab should provide a brief summary of the proposal's contents, emphasizing any unique aspects or strengths of the proposal. The Executive Summary should not exceed two pages.

3.2 Tab 2- Exceptions. to the City's Terms and Conditions.

3.2.1 Tab 3- Capabilities and Approach. This tab should describe in detail the offeror's proposal for providing the services solicited by this Request for Proposals. A statement should be included that the offeror is capable and willing to comply with all requirements set forth in this Statement of Needs.

3.4 Tab 4 - Claim Administration Capabilities - This tab should provide a full description of the offeror's claim administration capabilities, including a list of all claim offices currently in operation in Virginia. This tab should describe all available options for claim reporting and claim acknowledgment. This tab should provide a list of municipal cities in Virginia and years of affiliation with the municipalities.

Tab 5- Staffing - This tab must provide a full description of how claim offices are organized and staffed along with a description of national services available and how they interface with local claim offices. This tab must include the resume of the individual who will serve as the overall account coordinator for the City of Richmond's account.

3.4.1 Tab 6- Claim Practices - This tab should provide a detailed description of the offeror's standard claim handling procedures. The City's claim administration requirements are included in section 2.0. This tab should indicate and explain any deviation from these requirements the offeror would recommend or require. A copy of the offeror's best practices or claim handling standards should be included in this tab.

3.5

Tab 7 - Medical Management and Cost Containment - This tab should provide a description of the offeror's medical management and medical cost containment capabilities including, but not limited to, the following items:

3. Hospital bill audit service
4. Other medical fee service reviews
5. Chiropractic utilization review
6. Dental review
7. Pharmacy cost management
8. Review for unauthorized treatment
9. Review for unrelated treatment
10. Review for excessive use of treatment by allied health professionals
11. Price review for durable medical equipment
12. Review for duplicate billings

This tab may also include any suggestions for medical management not listed above.

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- 3.6 **Tab 8 - Electronic Claims Information System** - This tab should include a comprehensive description of the offeror's electronic claims information system capability. A list of reports which can be generated by the system should be included, along with information regarding the ability to custom design report formats and samples of frequently requested reports. This tab should provide a description of on-line reporting of claims capability, security features, ability to interface with data feeds from the City's Department of Human Resources(i.e., payroll) to allow automated population of personal fields on the Virginia Worker's Compensation Commission State First Report of Injury Form that will reduce the need to re-input such data by the City. Additionally, this tab should provide information on tracking of OSHA reporting and provision of department specific reports as well as City wide summaries.
- 3.7 **Tab 9 - Claim Service Coordination** - This tab should describe how the offeror will provide account coordination. This tab should describe how claim meetings and reviews are conducted. This tab should include the procedure the offeror normally utilizes for selecting claims to be reviewed, the frequency and locations for meetings. This tab should describe how the offeror would ensure that its various offices comply with all claims handling instructions.
- 3.8 **Tab 10 - Banking and Payment Options** - This tab should describe the available options for payment of claims, claim service fees, and other expenses. This tab should describe all requirements for escrow accounts or pre-payments, billing options, and cash flow management. This tab should provide a sample of a detailed billing statement for a large city and a description of your procedure for reconciliation of financial discrepancies.
- 3.9 **Tab 11 - Miscellaneous.** This Request for Proposals is intended to solicit proposals for Workers' Compensation, General Liability, and Automobile Liability claims administration, and loss control and related services. The offeror may provide any additional information to assist the City with its selection.
- 3.10 **Tab 12- Offeror History.** This tab should provide a comprehensive narrative history of the Offeror's organization, including the development of its experience in providing the solicited services, the depth of its resources to provide those services, an explanation of the size of the organization, and the organization's number of years in business, office locations, and legal structure. This section of the proposal must contain the following organizational information and data for the Offeror's organization:

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3.11 Tab 13-Key Personnel. This tab should include the resumes or curriculum vitae of the offeror's key staff members. It should identify the specific employees assigned to provide the services solicited by this Request for Proposals. For each key person identified by the offeror, this tab should include the following information, provided in resume format:

- A. Name and title.
- B. Office location and city of residence.
- C. Project responsibilities and roles.
- D. Educational background.
- E. Professional registrations and memberships (if applicable).
- F. Years of relevant experience.

3.12 Tab 14 - References. This tab should include the names, addresses and telephone numbers of at least four other municipalities or public schools utilizing multiple claim offices with whom offeror has worked during the last five years. The tab should briefly identify the project, location and services performed. The tab should also include an affirmative statement that the offeror grants its consent for the City to contact the offeror's references for purposes of evaluating the offeror for this Contract and acknowledges that any information obtained from the offeror's references will not be disclosed to the offeror.

3.13 Tab 15 - Subcontracting. This tab should identify any of the required services that you intend to subcontract, if any, providing the following information:

- A. Reasons for subcontracting
- B. Proposed subcontractor responsibilities.
- C. Identity of proposed subcontractors including location, relevant personnel and experience, previous use as a subcontractor, and any other relevant supporting information.

3.14 Tab 16 - Price Proposal. A brief description of terms must accompany this section. The price must be offered as a **single package price** for claims services, see Attachment B.

PART I **STATEMENT OF NEEDS**

4.0 Evaluation Criteria. The Evaluation Committee will use the following evaluation criteria in ranking and selecting offerors for negotiation pursuant to this Request for Proposals:

Staffing.....	10 pts.
Experience.....	10 pts.
Information Systems.....	10 pts.
Price (allowed by City Code§ 21-67(e)).....	20 pts.
Cost Containment.....	15 pts.
Accessibility (required by City Code § 21-69).....	5 pts
MBE/ESB Commitment.	30 pts.

In accordance with City Code§ 21-67(e), this criterion considers the offeror's "good faith minority business enterprise and emerging small business participation efforts" as defined in City Code § 21-

4. Pursuant to City Code§ 21-67(e), an offeror must receive at least 15 points under this criteria in order to be selected for negotiations, unless granted a waiver by the Chief Administrative Officer. The MBE/ESB participation goal for this contract is **10%**. See sections 2.4 of the Instructions to Offerors and 2.6.2 and 3.9 of the General Terms and Conditions for the MBE/ESB provisions.

Total Available Evaluation Points.....	100 pts.
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END OF STATEMENT OF NEEDS



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Attachment B

Cost Proposal

City of Richmond

Administration Services Workers' Compensation, General Liability, and
Automobile Liability Claims and Loss Control Services

RFP # 230014198

June 10, 2024



JASON WORLEY, ACCOUNT EXECUTIVE CORVEL CORPORATION
JASON_WORLEY@CORVEL.COM T 804.418.7100



Workers' Compensation Claims Administration

City of Richmond

Description	Pricing
Life of Contract Flat Annual Fee	
Up to 125 Indemnity Claims, 225 Medical Only Claims, 450 Total Combined General Liability Claims & Auto Liability Claims	
Workers' Compensation	\$125,125
General Liability	\$143,935
Auto Liability	\$67,750
Per claim Fee after maximum number of claims:	
Medical-Only	\$155
Indemnity	\$950
Indemnity Tail Claims	Waived
Medical-Only Tail Claims	Waived

² Claim fee applies to AOS with the exception of premium states (CA, HI, AK, NY, TX and FL).

Auto and General Liability Claims Administration

Description	Pricing
Liability Handling Fee - Per Claimant ¹	
Per claim Fee after maximum number of claims:	
Fast Track ²	\$225
Auto Liability	
Bodily Injury	\$695
Property Damage	\$395
Auto Physical Damage	
Auto Collision Damage	\$395
Auto Comprehensive Damage	\$395
General Liability	
Bodily Injury	\$750
Property Damage	\$395

¹ Liability pricing for both life of claim and life of contract for all class codes

² Claim must be Non-Complex, open for 60 days or less and have a total paid of less than \$3,500

Other Liability Claim type pricing may apply

Program Management

Description	Pricing
Data Conversion - Per Data Source	\$5,300
Administration Fee - Per Annum ¹	\$15,900
Implementation Fee - One Time Fee	\$10,600
CareMC Access - Per Annum ²	
First 25 Full Access Users	\$5,000

¹ Includes Assistance with Self-Insured Data for State Reports, State Statistical Reporting & All State Filing Requirements

² Includes Executive Dashboard, Claim Details, Claims Summary Screen & Claims Reporting

Account Management and Technical Support

Description	Pricing
Account Management Staff	Included
Electronic Data Transmission - (Per Month, Based on Frequency)	
Monthly File	\$212

C O S T P R O P O S A L



Weekly File	\$636
Daily File	\$2,120
Training – Onsite and Online	Included
Technical Support	Included
State EDI Files	Included
Monthly Reporting	Included
Ad hoc Report Programming - Per Hour	\$212
Communication Materials/Posters	Pass through printing cost
Annual Banking Fees	One account included
Additional Account(s) - Per Account	\$1,060
Carrier TPA Oversight Fees ¹	Bill from Carrier to Client

¹ Fees charged by the carrier (Oversight fees, Tail Claim transfer / takeover fees, etc.) are the responsibility of the client and will be billed directly to the client by the carrier or by CorVel should CorVel be invoiced for such fees.

Intake and Immediate Intervention Services

Description	Pricing
Claim Intake (includes one FNOL distribution) - Per Intake	Waived
Incident Only Reporting - Per Incident	Waived
Advocacy 24/7 - Per Call	Waived
Telehealth Services	Fee Schedule or U&C value by CPT code

Allocated Expense Fees

Legal Services

Description	Pricing
Subrogation	20% of Recoveries
Legal Bill Auditing ¹	2.5% of gross legal charges reviewed
Indexing and OFAC Compliance - Per Index	\$21

¹ Fees will never exceed the savings generated. No mark-up on services from Bottomline.

² Minimum transaction fee (MTF) per bill transaction. Applied per transaction if all other applicable fees do not meet the minimum transaction fee. Applies to all transactions, including but not limited to, Specialty Bills, Duplicate Bills and bills sent for Re-consideration or Re-evaluation. Maximum fee per bill of \$9,000.

Description	Pricing
Bill Review: Includes Standard Fee Schedule and UCR - Per Bill ^{1,2}	\$9.55
+ Network Solutions Includes: ² Clinical Review, Implant Analysis, Line Item Bill Review, Negotiations, PPO Network Access, Substantive Denials, Technical Evaluation	27% of Savings
Minimum Transaction Fee ²	\$6.95
State EDI, Scanning/OCR, Initial 1099 Provider Notification Letter	Included

¹ Includes bill intake, document imaging, file upload, state EDI's, and initial 1099 provider notification letters.

² Minimum transaction fee (MTF) per bill transaction. Applied per transaction if all other applicable fees do not meet the minimum transaction fee. Applies to all transactions, including but not limited to, Specialty Bills, Duplicate Bills and bills sent for Re-consideration or Re-evaluation. Maximum fee per bill of \$9,000.

Provider and Nurse Review Services

Description	Pricing
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C O S T P R O P O S A L



Liability Bill Review (Reasonable and necessary and related) – Per Bill	\$21
Liability Nurse Review	
Option 1 – Per Hour	\$164
Option 2 – Flat Rate	\$95 up to 1,000 pages \$265 per each additional 500 pages
Peer Review / Physician Advisor – Per Hour	\$212
Independent Medical Reviews	
Chiropractic	See 2023 IME/Peer Fee Schedule
Orthopedic	See 2023 IME/Peer Fee Schedule
Neurologic	See 2023 IME/Peer Fee Schedule
Physical Medicine and Rehabilitation	See 2023 IME/Peer Fee Schedule

Patient Management

Description	Pricing
Telephonic Case Management, Field Case Management and Return to Work Coordinator - Per Hour	
Alaska, California, Hawaii and New York	\$164
All Other States ^{1,2}	\$115
Vocational Rehabilitation - Per Hour ²	\$175
Specialty Services (Catastrophic, Life Care Plan, Medicare Conditional Payments, Medicare Set Asides, Bilingual, Critical Incident Stress Debriefing (CISD)) - Per Hour	\$218
Nurse Utilization Review - Per Review	\$159
UR Authorization Only (Adjuster Review) - CA - Per Review	\$42
Care Advocate - Per Claim	\$53

¹ Fee applies to all States with the exception of premium states (CA, HI, AK, and NY).

² Statutory rates supersede if applicable.

Prevailing IRS Mileage Rate applies.

Each invoice for Case Management Services shall have an additional professional service fee of \$39.00 billed to Customer.

Pharmacy Solutions

Description	Pricing
Retail Pharmacies	
Brand	AWP -10% + \$3.00 dispensing fee
Generic	AWP -35% + \$3.00 dispensing fee
Mail Order	
Brand	AWP -13% + \$1.50 dispensing fee
Generic	AWP -45% + \$1.50 dispensing fee
Clinical Modeling	
Integration of Pharmacy Data	Included
Dynamic Calculation/Display in Care ^{MC}	Included
Pharmacy Interventions	
Certified Pharmacy Technician	Included
Rx Nurse	Included
Nurse Management	Case Management hourly rate
Pharmacy Review - Per Review	\$405
Cognitive Behavioral Therapy - Per Hour	\$270



Medication Review - Per Hour	\$270
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Ancillary Benefit Management Services

Description	Pricing
Medical Imaging Services	Varies by State and Diagnostic
Independent Medical Exam	See 2023 IME/Peer Fee Schedule
Physical and Occupational Therapy	Varies by State
Durable Medical Equipment	Varies by State and Equipment
IME Peer Review - Per Hour	See 2023 IME/Peer Fee Schedule
Transportation	Varies by State and Service
Translation	Varies by State and Service Level

Medicare Agent Reporting

Description	Pricing
Set up and engagement	\$3,000
Monthly Maintenance	\$1,000

The above pricing per claim is based on handling of all claims that occur and are reported during the agreement period.

If life of contract pricing is selected, claims will be handled until closed or until the end of the agreement period, whichever comes first. If life of claim pricing is selected, claims will be handled until closed. Pricing is valid for first year of the contract. At the end of the first year and each year thereafter, all fees outlined on the claims and managed care pricing sheet shall increase the greater of CPI or 3.5%.

Any service not identified in this proposal will be provided at a later time.

EXHIBIT B Price Sheet	
RFP 230014198	Item 1
Administrative Services Workers' Compensation, General Liability, and Automobile Liability Claims and Loss Control	Package Price for All Services
	\$ 357,710.00
	-

Corvel



City of Richmond

RFP Number 23001419

Enterprise Comp Service

August 30, 202



Request for Proposal



August 21, 2023

City of Richmond
900 East Broad Street, 11th Floor, Room 1104
Richmond, VA
Attn: Jerry A. Tuttle, Senior Procurement Analyst

Re: 230014198, Administration Services Workers' Compensation, General Liability, and Automobile Liability Claims and Loss Control Services

Dear Mr. Tuttle:

Thank you for considering CorVel as a strategic partner to help the City reach its risk management goals. We offer extensive experience in the municipality industry and our top priority is to return your employees back to work with efficiency and care and promptly resolve liability claims. We appreciate the opportunity to present this proposal and believe it'll confirm why CorVel is the right choice.

Our approach to claims management is distinguished by these key differentiators:

- **Improved claim outcomes with immediate access to care.** Connecting employees with appropriate, quality care is the cornerstone of our solution that achieves optimal cost savings. Our in-house Advocacy 24/7 service provides immediate intervention after a workplace injury where our nurses can offer your employees first aid advice, make a referral to telehealth, or schedule an appointment with a medical doctor. With Advocacy 24/7, our customers have experienced a 26% decrease in average days open, 31% decrease in average cost, and 63% decrease in average litigated claims.
- **Reduced claim costs through in-house claims and managed care program.** At CorVel, everyone working on a claim, including the Adjuster, Case Manager and Bill Review Analyst, are our employees. This enables seamless collaboration among individuals who are held to the same high-quality standards in service delivery and performance. We support our teams with advanced technology that delivers extensive, real-time information and predictive modeling capabilities so they can better assist injured workers, reduce medical expenses, and improve overall outcomes.
- **End-to-end strategy for liability claims management.** CorVel's liability services include detailed investigation, file documentation, litigation management, preparation of mandated reports, as well as coordination and communication with your employees. Our claims handling experience, in-depth knowledge, and swift investigation from the onset of the claim, can significantly reduce your costs—including administrative and litigation fees. From initial claim prioritization through resolution, CorVel stays fully engaged and focused intently on closing liability claims promptly, precisely, and fairly.
- **Innovative technology that assists Adjusters in highly effective claims management.** Care^{MC} Edge is CorVel's collaborative claims management platform designed to improve claims results by increasing the speed of data gathering, decision making and care delivery. It turns data into insights by consolidating and prioritizing complex information across claims such as financials, litigation, treatment guidelines, drug utilization, and work status and flags the most urgent items so the Adjuster can proactively act on them. Care^{MC} Edge helps Adjusters take informed action on claims, drive better outcomes, and reduce the total cost of risk.



- **Knowledgeable staff and mobile apps to support injured workers.** Work injuries can be an unsettling experience for employees so we're here to serve as their advocate to help navigate them through their recovery while answering questions about the workers' compensation process. Our My Care App offers added support through mobile access to their claim details including medical appointments, disability payment information and CorVel contacts so employees feel well cared for, resulting in better claim outcomes and lower litigation rates.
- **Effective risk identification and mitigation using live data analytics.** Decisions are only as good as the data used to make them — our solution offers a valuable advantage by providing online access to real-time claims and managed data so decisions can be made with confidence. Our Executive Dashboard displays a high-level overview of your total program that helps identify claim trends and safety concerns while allowing you to drill down into specific details driving outcomes. Data can also be benchmarked against CorVel's book of business or by industry, allowing you to compare your results with similar clients and make a comprehensive analysis of your program.
- **Responsive service with tailored programs and local account management.** We understand that each customer is unique and so are the challenges of managing their workers' compensation and liability programs. Since all services, systems and staff are direct resources of CorVel, we can easily tailor a program to meet the City's specific requirements. We also provide claims handling and account management on a local level, so we remain attentive to your needs while serving as a jurisdictional expert to ensure your program is managed in compliance with local laws and regulations.

In business, it's the personal connections that are often the biggest contributors of success. At CorVel, you will find that every associate is committed to making the claims experience a more positive one. We look forward to creating win-win strategies that can help you achieve your most important claims management goals. It is the strength that comes from over three decades of experience, a passion for a better solution, together with the personal attention of our entire team that delivers meaningful results.

I will serve as the primary contact for this proposal and look forward to answering any questions you may have. I can be reached by phone at 804-837-4050 or by email at jason_worley@corvel.com. Thanks again for your consideration. We look forward to working together.

Sincerely,

A handwritten signature in blue ink, appearing to read 'J Worley', with a stylized flourish at the end.

Jason Worley
Account Executive



City of Richmond

Response to Request for Proposal

**Administration Services Workers' Compensation, General Liability, and
Automobile Liability Claims and Loss Control Services**

RFP 230014198



CorVel Enterprise Comp, Inc.

Jason Worley, Account Executive

Jason_Worley@corvel.com

804-418-7100

August 21, 2023



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TAB 1- EXECUTIVE SUMMARY

CorVel begins all of our programs with a single philosophy – partnership. Together with our clients, we innovate ways to improve risk management programs and return injured employees to work. Through partnership and collaboration, we can implement a proactive, healthcare driven process for injured employees while simultaneously working towards cost-conscious solutions that reduce your company's costs. We support our partnerships by investing in technology and the critical tools we use to communicate with you every day. This integrated ecosystem is the foundation for our service offering. It allows us to work side by side with you, and deliver your program vision.

Caring for Your Employees

Our role is to care for your employees and return them to work. We provide immediate intervention for your employees with Advocacy 24/7 and access to our innovative telehealth services. Early interaction with a doctor can facilitate expedited prescriptions and referrals for additional care services. Telehealth is just one of the ways CorVel is here for your employees. By connecting your employees to appropriate care from the onset of an injury, we deliver better care in a timely manner.

Your Organization is Secure

We protect your organization as if it were our own. By embodying the City's values as an extension of our service offering, we facilitate collaborative, strategic processes for prompt claims resolution. In and out with minimal exposure – that's our philosophy and our promise.

Communication is Critical

We're by your side for your day to day operations while strategically developing program initiatives to achieve your long term goals. We know that constant communication and access to vital information are essential factors to program success. The invaluable partnerships we've developed with clients like you allow us to learn every day, which helps us to create and execute innovative ways to manage your risk.

A Single Source Solution

With CorVel, you have complete visibility into your entire program – from claims reserves and case notes to dashboards and analytics. We are the only partner that offers integrated claims management and managed care services via one platform. Our services are provided by CorVel employees all working together in real time. No silos, no delays. More access, more action. This means you have more control of your program, facilitating faster and better decision making.

Money Matters

We know what you're thinking – every dollar counts. By doing more for your injured workers, we also impact your bottom line. We make it our business to save you money because we know your money is your business.

Partnership – it's so simple, yet it makes all the difference. We work side by side with you to deliver the solutions your program needs and the care your employees deserve.



TAB 2- EXCEPTIONS

Tab 2- Exceptions to the City's Terms and Conditions.

CorVel reserves the right to negotiate the terms and conditions of the Agreement if awarded the RFP.

Page 6 of 13 Part III Section 4.2.2(i) CorVel can provide waivers of subrogation solely under its Workers' Compensation, General Liability and Auto Liability coverages.

Page 7 of 13 Part III Section 4.2.2(ii) CorVel can provide additional insured status solely under the General Liability, Auto Liability and Umbrella excess coverages.

Page 7 of 13 Part III Section 4.2.3.1 Endorsements – CorVel shall provide blanket endorsements for the Additional Insured Status solely for the General Liability, Auto Liability and Umbrella excess coverages.

Page 7 of 13 Part III Section 4.2.3.2 Certificates of Insurance – CorVel shall provide COIs stating the Additional Insured Status solely for the General Liability, Auto Liability and Umbrella excess coverages; the COIs will not define the timeframe for 30 Days but refer to as pursuant to the policies.

Page 8 Part III Section 5.2 Assignment, Delegation and Subcontracting by Contractor – CorVel cannot, as pursuant to SEC laws, give prior notice to any third party till after the Assignment has occurred.



TAB 3- CAPABILITIES AND APPROACH

This tab should describe in detail the offeror's proposal for providing the services solicited by this Request for Proposals. A statement should be included that the offerer is capable and willing to comply with all requirements set forth in this Statement of Needs.

Workers' Compensation

CorVel's approach to claims management is focused on immediate intervention, complete integration, and continuous innovation – these serve as the foundation of our solution that allows us to deliver consistent, quality claims handling that offers proven results.

Immediate Intervention

Our Advocacy 24/7 program offers injured workers immediate medical support at the time of an injury. Our Registered Nurses are available 24/7 to evaluate the nature of the employee's injury and determine their medical needs, which may include self-care, telehealth, or a referral to a brick-and-mortar provider (physician, urgent care, or emergency room). Immediate medical intervention often prevents a minor injury from becoming an expensive claim, improves the injured worker's recovery process, and ensures they feel well cared for. This leads to lower litigation rates, faster return-to-work, and improved savings for our clients.

Complete Integration

We offer superior results with our in-house claims management and managed care solution. Because all services are delivered by our employees and integrated on a single platform, our claims, medical management, and bill review staff can work together seamlessly to manage claims. Our solution also provides complete transparency and delivers actionable insight over your whole program, eliminating costly delays that are typical in programs with multiple vendors. Our employees have the advantage of real-time program information and easy online collaboration so they can work together to best assist injured workers and ensure optimal claim outcomes.

Continuous Innovation

Our commitment to innovation extends from every CorVel employee to every client and their injured workers. We became a TPA to be different in an environment where information was not forthcoming or transparent, and there wasn't a push for a resolution. The cornerstone of CorVel has been the combination of our high-touch model and advanced technology to deliver complete transparency and helpful tools to all parties involved in claim resolution. We believe in thinking outside the box to provide actionable data, better workflow efficiencies, and smart technology to improve service and lower costs. We are committed to change, growing to become a better organization, and bringing innovation to a slow-adapting environment.

Liability

CorVel offers an innovative approach to liability claims administration that focuses on closing claims promptly, precisely, and fairly to improve outcomes and reduce total claim costs.

Our philosophy is as follows:

- Promptly investigate claims to mitigate potential losses



- Proactively manage litigation along with investigative techniques to reduce costs
- Mitigate potential bodily injury exposure
- Enhance communication and reporting capabilities to improve service delivery

Special Claim Handling Instructions

In order to provide the City with an effective program, the CorVel Account Manager will work with the City during the implementation process to create a tailored procedure for administering claims. The procedures will be tailored to best fit the City's needs and preferences. Once finalized, special instructions will be made available through the claims system to all CorVel team members that are involved with the City's program. The special instructions are then accessed during the review of claims associated with the specific instructions.

CorVel represents and warrants that we have the necessary knowledge, skills and experience to perform the Third Party Administration services in accordance with the scope of work. We can and will perform the services in a diligent, professional manner using an appropriate number of qualified individuals and in accordance with applicable industry standards.



TAB 4- CLAIM ADMINISTRATION CAPABILITIES

This tab should provide a full description of the offeror's claim administration capabilities, including a list of all claim offices currently in operation in Virginia. This tab should describe all available options for claim reporting and claim acknowledgment. This tab should provide a list of municipal cities in Virginia and years of affiliation with the municipalities.

Workers' Compensation

CorVel offers an innovative approach to claims and healthcare management. This integrated service model controls claims at inception by advocating medical management at the onset of the injury to decrease the overall cost of risk and shorten the length of disability. Our automated solution offers a personalized treatment program for each injured worker, using precise treatment protocols to meet the changing needs of patients. We advocate timely, quality care for each employee. This tailored, proactive service model allows more control over your claims program, expediting claim closure and reducing the total cost of claims.

In addition to claims management, we provide the following in-house managed care services:

- Advocacy 24/7
- Telehealth
- Medical Bill Review
- Preferred Provider Network
- Case Management
- Utilization Review
- Vocational Rehabilitation
- Pharmacy Benefit Management
- Ancillary Care Solutions
- Medicare Services

Liability

CorVel manages liability claims from incident notification, file documentation, and investigation to litigation management. Our Liability Adjusters average 15 years of experience and use proven best practices to achieve better results and higher savings for our clients.

We provide national support for all lines of coverage, including:

- **Auto** – transportation, commercial vehicles, physical damage, and third party auto damage claims
- **General** – bodily injury and property damage for premises and other incident types
- **Product** – consumer goods, clothing, food, and other product types
- **Personal injury** – sexual harassment, molestation, discrimination, etc.
- **Employment Practices Liability** – sexual harassment, wrongful termination, etc.
- **Professional Liability** – medical malpractice, chiropractor, veterinarian, architect, etc.
- **Liquor Liability** - Dram Shop claims
- **Public Entities/Government Liabilities** – personal injury, property damage, excessive force police, fire/paramedic claims, etc.



- **Employer's Liability** – WC 1 B coverage claims for alleged gross negligence by employers

Through prompt claims handling and investigative expertise at the start of a claim, CorVel can reduce the City's costs, including administrative fees, litigation fees, and reserves. By focusing on a long-term partnership, our goal is to establish collaborative, strategic processes that are measurable and meet the specific needs of your program.

Virginia Claim Offices

CorVel's Glen Allen office will provide workers' compensation claim services to the City.

120 Eastshore Drive, Suite 210
Glen Allen, VA 23059
Phone: 804-418-7100
Fax: 804-273-9817

Liability Claim Office

CorVel's Charlotte office will provide liability claim services to the City.

3530 Toringdon Way, Suite 400
Charlotte, NC 28277
Phone: 704-941-2800
Fax: 866-450-4152

Reporting

Claims can be reported through CorVel's Advocacy 24/7 program, website (www.caremc.com), toll-free FNOL call center, or faxed. Our FNOL call center is available 24/7 and can accept incident or injury reports through a toll-free phone or fax. Calls to our Advocacy 24/7 program are answered by a live Registered Nurse, and calls to our FNOL call center are handled by a live customer service representative.

Liability claims can be reported on CorVel's online system, www.caremc.com, through an EDI feed, by email through an Electronic Notice of Loss Form, or by a Claim for Damage Form. They can be reported via toll-free phone, fax, or mail. Claims are assigned to an Adjuster within 24 business hours of receipt.

Claim Acknowledgement

CorVel's claims system can be tailored to meet the City's communication requirements. Users can set up custom alerts to receive automatic email notifications for specific claim events, including new claims, claim closures, reserve changes, litigation, and much more.

Municipal Cities Client List

City of Danville: 9 years
City of Virginia Beach: 9 years
County of Fairfax: 14 years
County of Chesterfield; School Board of the County of Chesterfield: >1 year
County of Loudoun: 3 years



TAB 5- STAFFING

This tab must provide a full description of how claim offices are organized and staffed along with a description of national services available and how they interface with local claim offices. This tab must include the resume of the individual who will serve as the overall account coordinator for the City of Richmond's account.

Organizational Structure

CorVel has built our organizational structure and service delivery models based on the philosophy that healthcare is a local business. An integral part of our strategy is to offer services at the local or regional level where workers' compensation claims are administered. Each location has access to national resources and software developed at the corporate level, which provides our clients with consistent service combined with local expertise. Our structure also allows each office to operate appropriately and efficiently to the particular regulatory environment in which it exists. Claims and patient data are collected at the local level, processed centrally and made available through our website for consolidated reporting at state, regional, or national levels.

The account management team is responsible for designing, implementing, and monitoring the program with the field offices involved in the servicing of the account. Account instructions and requirements are implemented and pushed out to field operations leveraging our technology to ensure consistency and continuity in the program. The Account Manager is responsible for monitoring service delivery and ensuring compliance with service requirements and standards.

Designated Claims Team

The City will have a designated claims unit based on claim volume. If an Adjuster on the City's team does not carry a full caseload of the City's claim files, that Adjuster may be used on another account. Adjusters that will be designated to the City's account and the percentage of time each individual will be designated to the account will be determined once the proposed organizational chart is finalized.

Structure of Claims Team

CorVel's claims staffing structure includes a designated team of Adjusters, Supervisors, and Managers based on claims volume and jurisdictional requirements to ensure appropriate staffing levels. Normally, the Adjuster remains on the claim for the life of the claim to provide consistency in service delivery. When possible areas for improvement are recognized, the Account Manager will make recommendations regarding changes to the City's claims team.

Please see Appendix A: Organizational Chart

Account Manager

Your Account Manager, Sylvia Kurash, will be the point of contact for the City, who is responsible for overseeing the program and ensuring compliance with established service standards and requirements. Ongoing communication will be maintained with the City to provide support for your day-to-day needs, including any reporting and training requests. Sylvia will address any inquiries that may arise and is fully empowered with the required technical and management



resources to ensure a timely resolution. She will also coordinate claim review meetings and annual stewardship meetings with the City to discuss program results and identify areas of opportunities for program enhancement.

Please see Appendix B: Sylvia Kurash Resume



TAB 6- CLAIMS PRACTICES

This tab should provide a detailed description of the offeror's standard claim handling procedures. The City's claim administration requirements are included in section 2.0. This tab should indicate and explain any deviation from these requirements the offeror would recommend or require. A copy of the offerer's best practices or claim handling standards should be included in this tab.

Workers' Compensation Claims Handling

CorVel leads the industry in innovative approaches to claims handling. We have invested heavily in a platform that enables us to provide better outcomes for our customers while also delivering optimal care and faster service.

For all claims, it is a documented fact that the faster a claim receives attention, the lower the overall costs will be. CorVel is unique in its ability to begin assisting an injured worker within minutes of an injury. Our technology continually evaluates claims for support that may be needed. For example, during claim intake, all claims meeting criteria are reviewed to determine whether it requires immediate attention, such as case management or investigation. Claims determined to require no further attention are filed, and associated medical bills are processed via CorVel's proprietary bill review solution. For claims that require additional attention, the system alerts the appropriate person (supervisor, adjuster, case manager, etc.) to answer questions concerning the claim. Once the questions are answered, the claim is re-evaluated, and any additional questions are addressed. A determination is made as to whether the claim is a medical only or indemnity. Recommendations are then made regarding the appropriate course of action for each situation, i.e. immediate referral for medical case management, PPO channeling, medical payment resolution, or vocational services.

The utilization of our innovative technology and leading medical expertise at the onset of a claim significantly reduces our customers' workers' compensation costs, including administrative fees, medical costs, and indemnity reserves. Our innovative services provide a fully integrated rules-based claims management and managed care solution that will reduce both claim and administration costs. The automation of much of the claims management process allows the claims adjuster to focus on the proper handling of claims and the elimination of the inevitable mistakes inherent in manual processes. The ability to apply sophisticated "rules-based" claims management technology to every claim from day one ensures the timely deployment of an appropriate treatment plan to set the claim on track for resolution.

CorVel has taken traditional claims management and applied state-of-the-art technology along with our long-standing ability to customize services to create our claims management program: a totally integrated medical and claims management solution. Our approach to workers' compensation services focuses on improved outcomes and overall reductions in claims costs by leveraging technology and by utilizing aggressive interventions from the very moment a claim is reported. Our early intervention procedures are designed to reduce the number of indemnity claims and minimize the costs associated with these claims when they occur. Because all services are integrated via a single platform, our claims, medical management, and bill review staff can work together seamlessly to manage claims resulting in increased efficiencies and earlier return



to work on claim files while achieving greater reductions in the overall length and costs of medical treatment.

Liability Claims Handling

CorVel manage liability claims every step of the way – from claims receipt, file documentation and investigation to litigation management. Our Liability Adjusters average up to 15 years of experience and use proven best practices to achieve improved results that will reduce the City's costs. By focusing on a long-term partnership, it is our goal to establish collaborative, strategic processes that are measurable and meet the specific needs of our customers.

We recognize the significant costs that claims involving injury and/or property damage can cause the City and we're uniquely positioned as the ideal partner in managing these exposures. Our approach to liability claims management is to control claims costs recognizing that the most costly claims are those involving injuries. Our proactive service model allows more control over your claims program by expediting early claim closure which will reduce the total cost of claims. Our innovative liability program includes government tort handling, prompt investigations and liability determinations, early assessment of government immunities, medical management, and careful litigation management with goals of final resolution and case closure. By applying all these elements at the onset of the claim, we can reduce paying settlements and provide appropriate claim denials. We carefully consider the cost/benefit ratios of pursuing economic settlement resolutions compared to incurring litigation expenses which can increase the overall cost of the claim.

Through prompt claims handling and investigative expertise at the start of a claim, CorVel can reduce the City's costs, including administrative fees, litigation fees, and reserves. By focusing on a long-term partnership, our goal is to establish collaborative, strategic processes that are measurable and meet the specific needs of your program.

Exception

Page 7 Section 2.2.1 (F) – According to CorVel's Best Practices an investigation will be complete within 14 days.

Please see Appendix C: Workers' Compensation and Liability Best Practices



TAB 7- MEDICAL MANAGEMENT AND COST CONTAINMENT

This tab should provide a description of the offeror's medical management and medical cost containment capabilities including, but not limited to, the following items:

CorVel offers the City superior results by utilizing our completely integrated claims management and managed care solution. We have extensive expertise in both claims handling and medical cost containment programs, allowing the City to achieve the best possible outcomes. All services are provided in-house, allowing efficient communication between individuals involved in the recovery process. Because all services are integrated via a single platform, our claims, medical management, and bill review staff can work together seamlessly to manage claims. The City can increase efficiency and experience earlier return to work on claim files while achieving greater reductions in the overall length and costs of medical treatment.

1. PPO networks

CorVel offers a proprietary PPO network comprised of more than 1.2 million providers to offer the City local insight with national coverage. Providers are selected from demanding criteria based on quality, range of services, and location. Each provider is thoroughly evaluated and credentialed, then re-credentialed every three years. Through this extensive evaluation process, we can provide significant hospital, physician, and ancillary medical savings while maintaining high-quality care.

Leased Networks

We also maintain leased network agreements to provide broader network access capabilities (i.e., size, demographics, and discounts), provide prompt responses to network expansion requests, and maintain all required quality assurance controls. This allows CorVel to offer the most comprehensive coverage available in the marketplace. We routinely evaluate our clients' injury profiles and patient demographics to ensure the optimal PPO mosaic alignment is in place. Our clients enjoy the opportunity to adjust their primary and complimentary PPO alignments to suit their specific injury profile needs.

Local Development

We have a nationwide team of local PPO Developers with community knowledge to develop a network that offers quality and choice. Our dedicated PPO Developers are responsible for local recruitment, contract negotiations, credentialing, re-credentialing of providers, and developing customer-specific networks. We use a proprietary, national database of CorVel providers that are managed and updated locally by our developers.

Provider Look-Up

We offer provider lookup on our website, www.corvel.com, or our healthcare portal, www.caremc.com, where users can locate providers in their area, see a map, get door-to-door driving directions, or print a directory. We offer other avenues in which to channel injured workers to our providers, including Case Manager referrals, inquiry emails, and customized provider panels.



The Advantage

Our network of providers offers the City the most comprehensive casualty-specific network available. We maintain direct contracts with our providers, allowing us to deliver significant discounts below workers' compensation fee schedules and reasonable and customary rates. We offer penetration and savings reports that are available in real-time on our healthcare portal, www.caremc.com.

Additional advantages include:

- Specific provider panels for the City's locations
- Network managed locally, supported by a national secure database
- Providers are evaluated with casualty-specific criteria
- Ability to refer care to CorVel's ancillary benefits management program
- Integrated with our proprietary bill review solution

2. Utilization review for surgery

If applicable and medically necessary, inpatient hospitalizations, outpatient surgeries, and diagnostics can be pre-certified for appropriate care setting and duration based on the diagnosis. Requests may be submitted to the CorVel pre-certification department by the City, benefits administrator, physician or hospital via telephone, email or fax.

Within hours of receipt of the request, initial demographic information is input into CorVel's pre-certification software system by an Intake Coordinator, and a confirmation email is sent to the Claims Adjuster. The email includes information that is being reviewed per the Request for Authorization (RFA), as well as the name and contact information of the Utilization Review Case Manager working on the file.

All medical records received with the RFA are uploaded into our online system for the UR Case Manager to review. The request is then ready to be reviewed for medical necessity and assigned to a UR Case Manager by the UR Supervisor.

Once all records are received, they are reviewed for medical necessity of treatment. The clinical information is input into CorVel's system and compared to evidence-based medical guidelines (ACOEM, ODG) for determination of medical necessity. If the UR Case Manager is unable to make a determination due to lack of information, or if the request does not meet the guidelines, the request will be escalated to a physician peer reviewer. Once the review is completed (usually within 24 hours), a determination is faxed and mailed to all parties.

3. Hospital bill audit service

Over 90% of facility/hospital bills contain overcharges that can include charges for services not administered, items not used, multiple billing for the same item, unbundling of global charges and data entry errors. CorVel's Professional Review Services examine the



itemization descriptions to ensure clients are only charged for appropriate billable services. Using our proprietary system and staff, we provide a complete audit and validation of facility/hospital bills. We employ an experienced and trained team of Professional Review Nurses and Certified Professional Coders to review bills against actual medical files in order to find inconsistencies between services provided and services billed. Our nurses have clinical backgrounds in all areas of medicine and our Certified Professional Coders are thoroughly versed in medical billing and coding to ensure an accurate, consistent and thorough review.

4. Other medical fee service reviews

CorVel offers an innovative medical bill review program with an average savings of 65% per bill in Virginia. We have a complete medical savings solution for all in-network and out-of-network medical bills that include PPO management, expert fee negotiations, and professional review. Each feature focuses on increasing processing efficiencies and maximizing savings opportunities. We offer a winning formula that delivers up to 28% higher savings than leading competitors.

Bill Intake

Our bill review system can receive medical bills directly from providers through an electronic data interface or online provider portal. When paper bills are received, we use IBML scanners and our own proprietary data capture software to transfer the bills into electronic form and load them directly into our bill review system for processing.

Rules Engine

Populated with millions of rules, our rules engine ensures accurate and consistent bill review to maximize savings for the City. Our rules engine is highly flexible and can be configured to meet your specific needs. Once the bill is in the system, our proprietary rules engine applies individual rules for reasonable and customary review, fee schedule analysis, and pharmacy review. It also automatically identifies CPT.4 code unbundling, fragmented billings, upcoding, etc., and will identify charges that have more accurate coding or should be re-bundled.

Bill Review Analyst

Our technology uses the rules engine application to route the bill to the most appropriate Bill Review Analyst. This provides Analysts in each diagnosis category, regulatory jurisdiction, or benefit category access to bills through our secure server so they can apply their expert knowledge and provide an optimal review for each bill.

Professional Review/Complex Review

CorVel's rules engine allows for bills meeting pre-established thresholds to be flagged and electronically forwarded for professional review. We employ an experienced team of Registered Nurses and Certified Professional Coders to review bills against actual medical files to find inconsistencies between services provided and services billed. Our nurses have



clinical backgrounds in all areas of medicine, and certified coders are thoroughly versed in medical billing and coding to ensure an accurate, consistent, and thorough review.

PPO Network Discounts

CorVel delivers additional discounts below workers' compensation fee schedules and reasonable and customary rates through integrating our proprietary PPO network and bill review service. We maintain direct contracts with our network providers, generating the maximum possible savings through negotiated discounted rates.

Payment and Explanation of Review

After the bill review process is complete, the bill is immediately available to the Adjuster through Care^{MC} Edge, CorVel's online Adjuster workstation, where they can review the bill and either approve it for payment or send it back to the Analyst for further review. Once the Adjuster approves, the EOR and attached check is mailed to the provider within 48 hours. EORs can be viewed and printed through the claims system.

5. Chiropractic utilization review

CorVel's bill review system calculates all visits for chiropractic services and will automatically deny any treatment that exceeds the 24-visit rule unless otherwise noted.

6. Dental review

CorVel's dental network is a part of our proprietary national PPO network. While we maintain some leased networks, our network is differentiated by our proprietary and directly contracted network that is at the core of our PPO. These providers comply with CorVel's expectations for return to work, communication and guidelines, as well as our utilization review criteria, as dictated within the contracts we maintain with them.

7. Pharmacy cost management

CorVel's pharmacy solution uses a high-touch model and proactive clinical interventions to minimize injured worker risk and reduce pharmacy spend. Our approach includes direct contact with pharmacies by our Certified Pharmacy Technicians to confirm the relatedness of prescriptions with the workers' compensation injury, enforced generic dispensing, and close management of opioid dispensing.

Combining these services with access to a network of over 67,000 retail pharmacies nationwide and 100% visibility into pharmacy data, we effectively manage risks from all angles and decrease total pharmacy spend. On average, we reduce pharmacy spend by 20% by identifying and denying non-workers' compensation-related prescriptions. We also reduce the day supply/limit to a 5-day supply of opioids and achieve an average savings of \$4,000 per claim.

Our pharmacy services include:



- **Prospective Management:** Reduces out-of-network bills, paper bills, and third-party bills that are more difficult to manage. Our system filters them back into our PBM program for fast resolution.
- **Drug Utilization Review:** Ensures injured workers get the most appropriate and cost-effective medications with support from pharmacists who provide expert reviews.
- **Brand-to-Generic Prescriptions:** Reduces your overall pharmacy costs with our generic model, which substitutes higher-cost brand drugs with the more cost-effective generic equivalent.
- **Clinical Modeling:** Provides insights into best treatments for employees with medication reviews that flag important information, including narcotics usage and drug history.
- **Opioid Management:** Addresses chronic pain with alternative solutions, including patient advocacy and physical therapy, which helps reduce reliance on opioids.
- **State Formulary Compliance:** Ensures pharmacy formulations comply with state requirements and enforce limitations for states with limited oversight.

8. Review for unauthorized treatment

CorVel's rules engine provides the first step in identifying inappropriate billing patterns. The second step is applying proprietary artificial intelligence coupled with our experienced bill review team and clinical experts (Registered Nurses). Our team uses highly sophisticated analytic tools to identify, document, and report potential fraud, waste, and abuse.

For example, our process can identify:

- Appropriateness of services rendered for the diagnoses
- Questionable billing practices
- Errors and duplications
- Bundled and unbundled charges
- Patterns of waste and abuse

By leveraging machine learning, our artificial intelligence identifies potentially inappropriate and abusive patterns between prescribers, treating providers, excessive prescribing patterns, geographic anomalies, and treatment (i.e. injured worker received treatment on the same day from different sides of town). Such identified behaviors are not only inappropriate, but can compromise the quality of care and outcomes. Our local, regional, and national teams along with data resources afford market-specific expertise with national support and analytics capabilities. The local expertise and knowledge of system participants, service providers, nuances, and common or unusual practices give us additional depth and potential insights into data analytics.

CorVel's ability to detect potential fraud and anomalies in billing and delivery of care can be translated into opportunities for identifying potential compromise in quality of care



which could negatively impact outcomes for injured workers and other parties of interest. Identification of such insights and findings will allow one to manage these claims proactively, address the underlying issues, and take corrective measures as indicated.

9. Review for unrelated treatment

Medical treatment guidelines are embedded into our bill review system to provide a more sophisticated level of bill processing by incorporating clinical guidelines. Our bill review system will automatically run rules to match the diagnosis (ICD-10 codes) with appropriate treatment (CPT codes) to identify appropriate, questionable, or inappropriate treatment. Based on the review, an alert is visible to the Bill Review Analyst to assist in determining the appropriateness of treatment and the next steps, if any.

The flags visible to the processor are:

- Black: Payable - Never appropriate
- Green: Payable – Always appropriate
- Red: Review - Review required as very questionable
- Yellow: Review – Review suggested as questionable

The ICD – CPT crosswalk will create a flag alerting the Bill Review Analyst of actions to be taken.

10. Review for excessive use of treatment by allied health professionals

CorVel's review for excessive use of treatment is the same process as described in the response for unauthorized treatment.

11. Price review for durable medical equipment

CorVel verifies that orders are both authorized and prescribed prior to delivery. If a referral is received without an attached physician order, we will secure the prescription prior to furnishing the equipment. The same management occurs for ongoing supplies and rented equipment; continued service prescriptions will be secured and verified prior to renewing orders.

Prospectively at the point of referral, we validate all DME prescription information, including medical necessity, and evaluate the injured worker's equipment needs. We ensure that only the most medically appropriate and cost effective equipment is provided to prevent over utilization. For equipment rentals, we follow up with the treating physician to ensure that the equipment is still needed for the injured worker's recovery as well as follow up with the injured worker to ensure they are using the equipment as directed.

Ongoing supply orders are monitored by assessing the injured worker's compliance and use of medical supplies. Monitoring supply orders allows us to identify any areas of concern to discuss with the treating provider and claims professional.



For orders not placed prospectively through CorVel, we offer utilization review services where DME orders are retrospectively reviewed for fraud and overutilization. The goal of our utilization review program is to avoid unnecessary treatments and their associated costs while ensuring quality, timely, cost effective medical care for injured workers.

12. Review for duplicate billings

As an integral process of our medical bill processing, CorVel identifies both full duplicates, partial duplicates, and possible reconsideration requests through automated data comparisons to bill history and bills in progress. Partial duplicates and potential reconsideration requests are routed for manual scrutinization by our highly trained Bill Review Analysts, ensuring that partial duplicates are accurately identified and that reconsiderations are routed for priority processing. We respond to duplicates using appropriate jurisdictional forms and regulations.

Our system uses all data elements to identify potential duplicate bills across claims and providers to eliminate potential waste from re-billers or inaccurate provider data submission. Data elements include provider, claim, date of service, and CPT code. If a match is detected, our system will notify the Bill Review Analyst of the potential duplicate so they can take appropriate action. We can also provide the City with a monthly report of duplicate billers to decrease unnecessary, costly transactional processes.

This tab may also include any suggestions for medical management not listed above.

CorVel's ancillary benefit management services provide access to specialty medical services which may be required to support an injured worker's medical treatment plan. We have contracted with the nation's best providers for diagnostic imaging, physical therapy, durable medical equipment, home health, independent medical examinations, transportation and translation services in order to ensure quality services and preferred scheduling at the best price.

Our program is focused on customer service, clinical oversight and cost management to allow us to provide significant reductions in medical and indemnity costs and improve outcomes. This is achieved by managing the entire episode of care including scheduling expedited appointments, coordinating the receipt of medical reports within 24-48 hours as needed, comprehensive reports and handling of payment resolution. In addition, we maintain preferred rates with our network providers so we can deliver savings below traditional workers' compensation fee schedule and/or reasonable and customary rates.

We track and monitor all program data which is applied to improve network utilization while allowing us to address key cost-drivers such as quality, utilization, price and timeliness of service. Through our comprehensive program, we're able to ensure that appropriate care is delivered to injured workers while maximizing savings for the City.





TAB 8- ELECTRONIC CLAIMS INFORMATION SYSTEM

This tab should include a comprehensive description of the offerer's electronic claims information system capability. A list of reports which can be generated by the system should be included, along with information regarding the ability to custom design report formats and samples of frequently requested reports. This tab should provide a description of online reporting of claims capability, security features, ability to interface with data feeds from the City's Department of Human Resources(i.e., payroll) to allow automated population of personal fields on the Virginia Worker's Compensation Commission State First Report of Injury Form that will reduce the need to re-input such data by the City. Additionally, this tab should provide information on tracking of OSHA reporting and provision of department specific reports as well as City wide summaries.

Claims System Overview

CorVel's proprietary claims management system, Care^{MC}, has been developed and supported by our in-house, full-time information systems division. We have invested millions of dollars in the development of our integrated system that offers tremendous cost and time-saving benefits. Unlike most industry platforms, we don't rely on data feeds from third parties that can delay critical information. Our system is highly codified and supports our claims and medical management teams by supplying extensive, real-time information to enable faster intervention and improved outcomes for injured workers.

Our liability claims service is also connected through the same proprietary claims system. From claim receipt to file documentation and reporting, all data is accessible from one easy-to-use software system. With direct access to your liability claims data, the City is equipped to track progress and monitor your goals.

Our claims system will provide the City with complete program visibility to keep you connected throughout the entire claims process. The City will have 24/7 online access to real-time data, including claim activities, diaries, claim notes, litigation, reserves, medical bill documentation, and financial information. Detailed reports can also be generated on demand in various time periods and formats and can be sorted in a variety of grouping and filtering options.

Features of CorVel's claim system include:

- **Report an Incident/Injury** - Provides a simplified way to report incidents and injuries to CorVel.
- **Claims Safety Dashboard** - Displays breakdown of claims by injury, body part, occupation, and nature of the injury.
- **Claims Scorecard** - Allows users to track and compare claim payments.
- **Claims Summary View** - View detailed claim information from a single location. Information is organized under a series of tabs for quick access to critical data such as the return-to-work profile.
- **Claim Reports** - Create and view reports with filtering and grouping options. Detailed reserve history, subrogation, and recovery reports are also available.
- **Claim Notes** - View notes from Adjusters and Case Managers. Search options include note type and date ranges.



- **Medical Bill Review Outcomes** - Displays claims savings, including top ICD-10 codes, top procedures, and drugs.
- **Treatment Calendar** - Displays a twelve-month rolling calendar showing treatments over time and is color coded for different types and variations of treatments. Sort by treatment type and date to view various procedures.
- **Return to Work** - View return-to-work plan, work restrictions, date last worked, estimated return-to-work date, actual return-to-work date, total days off, and claim-specific notes.
- **Drug History** - View pharmacy information, including prescriptions, generic or brand dispensing, and amount paid in and out-of-network.
- **Diagnosis Profile** - Provides predictive analysis on anticipated lost time based on the diagnosis and other factors such as comorbidities and physical requirements of the employee's work.

Having all your workers' compensation and liability information in one system provides not only total transparency but also delivers actionable insight over your whole program and eliminates costly delays that are typical in programs that rely on data feeds from external parties. Our Adjusters and medical management staff have the advantage of real-time program information and easy online collaboration, so they can work together to better assist injured workers and claimants and ensure optimal outcomes.

Please see Appendix D: Care^{MC} Screenshots

Ad Hoc Reports

CorVel's standard reporting capabilities are extensive, and we can provide ad hoc reports at the City's request for any special reporting needs. Ad hoc reports can be created based on any data element we capture in the claims system. the City will also have access to run ad hoc reports at your convenience through our online reporting center. Reports can be printed, emailed, and shared which allows all stakeholders to instantly view and analyze data related to your program.

Reporting Capabilities

Loss reports are provided on a monthly basis and are available in various time formats and history periods, including "as of" and actual time. the City can also run loss reports at your convenience through CorVel's online reporting center.

Standard workers' compensation reports include:

- Open and closed claims summary report for all years, date of injury, employee department, employee job class, claim number, employee name, cause of injury, nature of injury and body part
- Open claims summary report – all years
- Check register by check number
- Summary of losses by year
- Claims scorecard showing a summary of largest cost changes for the period and YTD, top claim repeaters and other claim diagnostic information



Standard liability reports include:

- Open and closed claims summary report - all years, date of injury, claimant, department, claim number, cause of injury, line of business, etc.
- Open claims summary report
- Check register by check number
- Summary of losses by year
- Annual list of all claims having a total incurred over \$25,000
- Reserve change reports
- Total liability incurred by coverage.

Besides providing detailed loss data, CorVel strives to provide meaningful insights into what is driving a customer's loss experience. In addition to our standard reports, we offer a wide variety of safety and analytical reporting capabilities which include loss triangle reports.

CorVel's claims system offers 25 custom fields that can be established as a specific format date, number, choice, etc., to best suit the City's program requirements. All custom fields are reportable through various claims reports.

Please see Appendix E: Sample Workers' Compensation Report Package

Please see Appendix F: Sample Liability Report Package

Online Reporting

Claims can be reported through CorVel's Advocacy 24/7 program, website (www.caremc.com), toll-free FNOL call center, or faxed. Our FNOL call center is available 24/7 and can accept incident or injury reports through a toll-free phone or fax. Calls to our Advocacy 24/7 program are answered by a live Registered Nurse, and calls to our FNOL call center are handled by a live customer service representative.

Liability

Liability claims can be reported on CorVel's online system, www.caremc.com, through an EDI feed, by email through an Electronic Notice of Loss Form, or by a Claim for Damage Form. They can be reported via toll-free phone, fax, or mail. Claims are assigned to an Adjuster within 24 business hours of receipt.

Executive Dashboard

CorVel's Executive Dashboard will provide a dynamic and interactive high-level overview of the City's entire program. It offers complete visibility and real-time updates, helping to proactively manage your program.

Features include:

- Identification of trends and safety concerns
- Dynamic display allows drilling down on details driving outcomes
- Litigation information
- Financials including a claims triangle view and cumulative financial trend graph
- Injury profile that displays injury details by body part and division



- Benchmarking view to compare book of business and industry-specific results

Data Feeds

CorVel has an extensive and documented process in place for electronic data interface (EDI) projects. We will work with the appropriate personnel at the City to review file formats and specific system requirements for data fields in both systems. We approach each desired piece of the EDI process with test file exchanges, reviews of results, and acceptance before moving on to the next piece. Data is exchanged via secure file transfer protocol (SFTP) with or without encrypting files or via file transfer protocol (FTP) with encrypted files. CorVel also supports Web Services and ANSI X12. Encryption is based on PGP's public-key cryptography and an exchange of public keys between CorVel and the City.

CorVel's electronic data interface has the ability to deliver EDI files by FTP or virtual private network (VPN). We transmit data to approximately 5,000 users and conduct hundreds of data file transfers to our customers on a daily basis. We can tailor data transfer files according to the City's specifications.

CorVel's claims system can integrate with the City's HR systems to obtain a payroll feed and load it into our claims system to populate FNOL information.

Security

CorVel is committed to protecting the confidentiality, integrity, and availability of the data and systems used by our customers. We maintain an information security and privacy program based on the NIST Cybersecurity Framework. It is supported by a dedicated full-time team and led by our Chief Information Security Officer (CISO), reporting directly to the company CEO. Our mission is to maintain the trust of our customers.

Prevent and Detect

CorVel deploys various solutions to prevent and ensure rapid detection of security events and vulnerabilities in the environment. These technologies and procedures include multifactor authentication, encryption at rest and in transit, network intrusion detection and prevention (IDS/IPS), next-generation firewall, behavior-based endpoint malware detection and response, email security gateways, continuous endpoint vulnerability management, application testing, periodic static source code analysis, industry best practice security controls, penetration testing, and comprehensive risk assessments. All technology and procedures are fully implemented and supported by appropriately trained staff. We provide all employees with annual training on identifying and reporting potential security incidents to ensure potential issues are promptly and correctly reported.

Respond and Recover

CorVel has dedicated team members to monitor and respond to all detected security events. An incident response plan and associated playbooks are documented and regularly reviewed. These plans guide timely and accurate responses during an incident. Our incident response plan is based on the Computer Security Incident Handling Guide published by the National Institute of Standards and Technology (NIST SP 800-61). The incident response plan includes preparation, rapid



detection, analysis, containment, eradication, recovery, and post-incident activities. All incident activity from initial reporting to final closure is tracked in our ticketing system with oversight by CorVel's CISO and security team. In partnership with legal counsel, our security team ensures full regulatory compliance and adherence to customer commitments related to incident notification and response.

OSHA Reporting

CorVel recognizes the rules and regulations that employers face with OSHA reporting and feels OSHA reporting requires a collaborative effort with our partners. Our claims system, Care^{MC}, provides tools for our Adjusters to maintain return-to-work information in a detailed and concise manner to support OSHA tracking. The return to work screen captures detailed reasons and statuses available for reporting. The City can indicate what claim is recordable and non-recordable in the system. The Account Manager or the City can run OSHA 300 and 301 reports out of Care^{MC}. The Account Manager will send out monthly reports for true-up in anticipation of a smooth report at year-end.



TAB 9- CLAIMS SERVICE COORDINATION

This tab should describe how the offerer will provide account coordination. This tab should describe how claim meetings and reviews are conducted. This tab should include the procedure the offeror normally utilizes for selecting claims to be reviewed, the frequency and locations for meetings. This tab should describe how the offeror would ensure that its various offices comply with all claims handling instructions.

Account Coordination

Single Point of Contact

The designated Account Manager, Sylvia Kurash, will serve as the primary point of contact for the City's account. She will be your go-to resource for all inquiries, updates, and assistance related to your workers' compensation and liability program. Having a single point of contact ensures clear communication and efficient resolution of any issues that may arise. Sylvia will also ensure that claims management is delivered in compliance with established claims handling instructions.

Claims Supervision

The Claims Supervisor is responsible for tracking the performance statistics of the Adjusters and their overall unit in areas such as file set-up, reserving, timely benefit payments, audit scores, total caseloads, and case closure ratios. They are also responsible for ensuring that maximum productivity and efficiency are achieved and that Claims Adjusters are managing claims in compliance with established claims handling instructions.

Claims Handling Instructions

The Account Manager will work with the City during implementation to create special claims handling instructions for your program that will be tailored to best fit your needs and preferences. Following the development of the special handling instructions, the Account Manager will meet with the assigned claims team to perform a detailed review of your expectations in regard to claims management and handling. Special handling instructions will be made available through our claims system to all assigned claims staff. Areas such as settlement, payment, and reserve authority levels are built into the system to ensure compliance with established authority levels.

Supervisors review compliance with special handling instructions during their regular claim review. the City's Account Manager will also review compliance regularly and work with the City to ensure expectations are being met. In addition, CorVel's internal audit team completes an annual review of each office and customer, specifically addressing special handling instruction compliance as part of their overall review.

Claim Review Meetings

CorVel will participate in claim review meetings at the frequency requested by the City. Meetings may be held telephonically or in person at CorVel's local Virginia office or at the City's location. We will work with the City to establish the parameters of the claim file review process. At a minimum, we recommend the following:



- Regular reviews of predetermined files based on mutually agreed-upon parameters. This includes the appropriate stakeholders from the City, any outside partner of the City, such as defense counsel or consultant, CorVel Account Manager, and claims team, including; Adjuster(s), Supervisor(s), and Branch Claim Manager
- Discuss the current highlights of each claim and financial picture. Discussion to support any outstanding reserves and a detailed review of the plan of action to obtain file closure
- Account Manager or Supervisor will maintain a listing of all claims reviewed and any specific action items required as a result of the review
- Follow-up on the action items and their status will be provided to the City 30 business days after the review

We use the claim file review process to ensure claims are being managed appropriately, timely, and on a clear path to closure while working in partnership with the City.

CorVel offers a highly effective process to conduct workers' compensation and liability claims review meetings through our online Claims Summary Screen. This screen displays all key elements of a claim on one screen in real-time so our claims staff can take live-action directly from this screen. All stakeholders can see the exact status of a claim including claim details, medical status, return to work status, financials, claim timeline, and actions. For liability claims, key elements include claim details, liabilities, damages, legal details, resolution, financials, claim timeline, and actions.



TAB 10- BANKING AND PAYMENT OPTIONS

This tab should describe the available options for payment of claims, claim service fees, and other expenses. This tab should describe all requirements for escrow accounts or pre-payments, billing options, and cash flow management. This tab should provide a sample of a detailed billing statement for a large city and a description of your procedure for reconciliation of financial discrepancies.

Payment of Claims

CorVel will maintain a checking account funded by the City to be used for guaranteed timely payments of all legitimate and authorized expenses associated with handling the City's claims. These include legal fees, investigation costs, and other allocated loss expenses. We will maintain ongoing reporting of payment status with the City.

Claim Charges and Invoicing

Claim charges are broken out by the month billed, claim number, claimant name, date of the accident, type of claim (medical only/indemnity), and the per-claim fee. The invoice shows the total amount billed for all claims listed on the invoice. Invoices are prepared and sent out on a monthly basis.

Banking Options

CorVel will establish a Wells Fargo checking account on behalf of the City. The City has the option to set the account up in CorVel's name and tax identification number or may use your own name and tax identification number. We will be responsible for issuing payments, performing monthly bank reconciliations, and banking fees. The City may fund the account by the following options:

- Prior to the check run, we will request additional funding when the account amount falls beneath a predetermined threshold.
- The City will fund the account or have CorVel debit an account after each check run for the exact amount of the run based on our reporting
- Acceptable funding methods: ACH credit, CorVel initiated ACH debit, wire transfer, and check.

Banking Reconciliation Process

CorVel's treasury services department records all debits and credits for CorVel-managed escrow accounts through daily and monthly reporting run out of Wells Fargo's online banking system. Reconciliations for all incoming and outgoing funds are tracked in designated ledgers for each separate escrow account. These ledgers are updated daily to record all checks processed, voided, stopped, incoming funds, and outgoing funds. These account ledgers documenting all daily activity are maintained separately by at least two accountants for verification of accuracy.

We send monthly bank reconciliation reports by email to a designated customer distribution within the first three business days of the month. The reconciliation includes the Wells Fargo bank statement, a reconciliation report showing payments that have cleared and payments that are still outstanding, a summary check register, and an audit document signed and approved by two CorVel accountants.



We generate payment reporting from the claims system, which is reconciled to the client-specific ledger to ensure replenishment requested matches payments issued from the claims system. The reporting and invoicing are prepared by our treasury services department for each customer's established reporting period. The reporting includes details for all checks issued, and it includes the details for all credits (including voided and stopped checks as well as claim refunds, subrogation, and recoveries).

Please see Appendix G: Sample Billing Statement



TAB 11- MISCELLANEOUS

This Request for Proposals is intended to solicit proposals for Workers' Compensation, General Liability, and Automobile Liability claims administration, and loss control and related services. The offeror may provide any additional information to assist the City with its selection.

CorVel's healthcare-driven model focuses on immediate intervention, integration of all services, and innovative solutions that result in faster resolution, reduction in the total cost of risk, and earlier return to work for workers' compensation claims. We apply technology, intelligence, and genuine compassion to enhance the injured worker's experience, reduce inherent delays, improve return-to-work rates, and maximize savings for our clients.

Our key differentiators include:

Advocacy 24/7: Immediate Medical Intervention for Injured Workers

CorVel offers an in-house Advocacy 24/7 nurse triage line for the City's employees. At the time of the incident, employees can call and speak with a registered nurse who will evaluate the nature of the incident or injury and determine the employee's immediate medical needs. By addressing the case when it first occurs, we can provide quick and accurate care intervention, often helping to prevent a minor injury from becoming an expensive claim.

CorVel's staff of registered nurses are licensed in all 50 states and advocate a timely return to work with quality care for your employees. Our nurses use nationally recognized triage protocols with industry standards to facilitate appropriate treatment options.

Our Advocacy 24/7 service includes access to nurses that specialize in occupational injuries, immediate intervention, and evaluation, channeling to a preferred network of providers, and the option to connect to a provider virtually through our telehealth service.

The following are the results of CorVel's Advocacy 24/7 program:



*Results from CorVel's book of business results for incidents and injuries reported between 10/1/2019 – 10/1/2020 and closed before 4/1/2021.



Telehealth: Virtual Doctor Visits with Better Results

We provide telehealth services as part of our Advocacy 24/7 program, offering injured workers a convenient way to see a doctor. With telehealth, injured workers have immediate access to providers, eliminating wait and travel times and cutting lag time and costly delays. After being screened by a triage nurse, telehealth enables injured workers to connect with a provider through a virtual visit via a computer or smart device to facilitate more immediate care.

In addition to preserving the integrity of the patient-physician relationship with confidential, HIPAA-compliant transactions, telehealth also channels injured workers to network providers for physical therapy or prescription fills when appropriate.

The following are the results from CorVel's telehealth program:

	Brick and Mortar	Virtual
Location	Avg. Travel: 20 minutes	Job Site
Wait Time	2 hours	10 Minutes
Time Away	4 hours	30 Minutes
Narcotics Prescribed	3%	0
Medications Prescribed	51%	51%
PT	46%	31%
DME	69%	27%
X-ray	59%	35%
Patient Satisfaction	3.65	4.8

Care Advocates: Early Clinical Intervention Sets Claims on a Healthy Track

The first 30 days are critical to the outcome of a claim, especially in complicated cases. We employ Care Advocates who immediately review potentially complex claims and gather any additional information needed from the physician, injured worker, and employer to make recommendations to the Claim Adjuster and ensure the best medical outcomes. As Registered Nurses, our Care Advocates use their clinical expertise to establish an appropriate treatment plan, coordinate optimal care for the injured worker, initiate the return to work data, identify barriers to return to work, determine disability duration and educate the injured worker on their injury and recovery process, all while working collaboratively with the Claim Adjuster. Through proactive management and a high level of attention at the front end of a claim, Care Advocates minimize costly delays, improve return-to-work outcomes, reduce claim costs, and increase claim closure rates.



Integrated Claims and Managed Care Solution: Delivered by CorVel Employees

Providing all services under one roof has significant advantages that can't be offered in a program with multiple vendors. At CorVel, everyone working on a claim, including the Adjuster, Case Manager, and Bill Review Analyst, are our employees. This enables seamless collaboration among individuals who are held to the same high-quality standards in service delivery and performance. We support our teams with advanced technology that delivers extensive, real-time information and predictive modeling capabilities so they can better assist injured workers, reduce medical expenses and improve overall outcomes.

Proprietary Claims System, Care^{MC}: Transparency to Your Entire Program

CorVel is one of the only TPAs to own, operate, and continuously improve our proprietary claims system, Care^{MC}. Care^{MC} is organic, built from the ground up, and has been used by our employees and clients for the past 30 years. It results from feedback from people like you – end users who gain the most from the efficacy of a platform designed and curated by peers. Our system provides complete visibility into your entire program – from claims reserves and case notes to dashboards and analytics. We are the only partner that offers integrated claims management and managed care services via one platform.

Care^{MC} Edge: Empowers Adjusters to Work Faster and Smarter

CorVel's claims system offers a prospective, proactive, engaging, and comprehensive approach to managing claims compared to traditional reactive models. Care^{MC} Edge has evolved into an intuitive data-driven guide focused on immediate intervention that eliminates the gaps traditionally seen in workers' compensation. It enhances decision-making and prioritizes workload efficiencies, empowering the Claims Adjuster to spend more time on strategic planning and connecting with the injured worker and other key stakeholders. Care^{MC} Edge supports the Claims Adjuster so that each claim benefits from a high-quality and consistent approach.

Executive Dashboard: Real-Time Data Analytics

Care^{MC} Edge includes access to an Executive Dashboard that displays a high-level overview of your total workers' compensation program, helping to identify claim trends and safety concerns while allowing you to drill down into specific details driving outcomes. Our bundled program allows us to share real-time claims and managed care data from a single platform so the City can engage in actionable analytics that support better decision-making. Data can be benchmarked against CorVel's book of business or by industry, allowing you to compare your results with similar clients and make a comprehensive analysis of your program.

Clinical Modeling: Early Identification of High-Risk Pharmacy Claims

CorVel can proactively identify significant cost drivers in pharmacy utilization before they become high-dollar claims through clinical modeling analysis of all bill review data. We have a proprietary set of rules in our system to flag specific indicators such as high narcotics usage, multiple prescribers, and certain drug combinations that can contribute to rising costs or lead to harmful conditions such as addiction and prescription abuse. Integration with our bill review system gives us full visibility into the injured worker's entire drug history, including drugs obtained from retail, mail order, out-of-network pharmacies, third-party billers, and physician-dispensed medications, so we can manage the City's total pharmacy exposure. When a potentially costly or harmful claim



is identified, it is flagged for intervention which may include nurse management, pharmacist review, medication review, cognitive behavioral therapy, or clinical pain management.

My Care App: Keeps Injured Workers Informed and Connected

CorVel's My Care App provides injured workers with access to essential claim information conveniently on their smartphone or tablet device. Injured workers have access to their initial treatment guide, permanent pharmacy card, disability payment information (including the ability to sign up for direct deposit), appointments, and their CorVel contacts' information, including their Adjuster and Case Manager, if applicable. Injured workers can also receive notifications for pending payments, change of payment status, available payments, and when a claim is closed or re-opened. The app requires a secure login and is maintained upon a secure authentication path. The My Care App is available in English and Spanish. Our technology is user-friendly and promotes efficiency – injured workers know they are receiving quality care, while employers are assured that proactive claims management will result in expedited closure rates and reduced claim costs overall.

Safety and Loss Control

CorVel delivers a variety of safety analysis reports that identify loss trends, analyze derivatives, and detail financial impacts. We offer an interactive safety report that allows the City to tailor reports with specific parameters in an intuitive and user-friendly format. Your Account Manager will regularly review loss data and inform the City of areas that may need further inquiry or analysis.

We partner with Risk Consultants of America, Inc. (RCI), a loss control provider, to ensure our clients receive the highest quality safety and loss control consulting. RCI provides various safety service resource tools, including on-site regulatory training, safety committee support, and safety briefings and policies. To facilitate loss prevention and improve the overall safety culture of your organization, we work with RCI to align these tools with your company-specific goals and initiatives.

Liability

Accuracy, experience, and responsiveness are critical to effective liability claims management – that's CorVel's strength. We have the technology, speed, and expertise to resolve liability claims efficiently while protecting your organization from costly mistakes and potential lawsuits. Our key differentiators include:

- **Expert Adjusters:** Our Liability Adjusters have an average of 15 years of industry experience and strong communication skills to successfully resolve liability claims. We recruit Adjusters who are sufficiently skilled in handling all aspects of auto physical damage, auto liability, and general liability. They have multi-state experience and are able to support nationwide clients with exposure in various jurisdictions.
- **Dedicated Subrogation Unit:** CorVel's subrogation team includes a Supervisor with over 18 years of subrogation experience and specialists with a minimum of 5 years of experience in liability, litigation, and debt recovery work. If we determine there is subrogation potential, we begin recovery efforts immediately, which preserves critical evidence and often increases the chances of recovering from the responsible third party. We also



evaluate all applicable statutes of limitations, effectively outlining these parameters in our plan of action and aggressively pursuing action to secure recovery of costs as soon as possible.

- **Nurse File Review:** To ensure claims accuracy, our clinical team conducts in-depth analyses of medical records for liability claims. Our nurses—most with at least 30 years of nursing experience—review gaps, inconsistencies, duplication, and medical necessity of services. With their insight, we identify unrelated medical conditions and minimize exposure and associated damages. Our nurses also answer questions, provide litigation support, and write summary reports to help Adjusters effectively manage liability claims.
- **Selfie App for Auto Property Damage:** CorVel's Selfie App offers a cost-effective way of documenting auto property damage and obtaining an appraisal. In the event of an auto accident, we can push the app out to your employee or the claimant so pictures can be taken at the scene and electronically sent to CorVel, allowing us to promptly secure an appraisal for non-total vehicles. This is completed within 48 hours and can settle a property damage claim more efficiently and at a lower cost than a full auto appraisal.



TAB 12- OFFEROR HISTORY

This tab should provide a comprehensive narrative history of the Offerer's organization, including the development of its experience in providing the solicited services, the depth of its resources to provide those services, an explanation of the size of the organization, and the organization's number of years in business, office locations, and legal structure. This section of the proposal must contain the following organizational information and data for the Offerer's organization:

Company History and Background

CorVel has over 35 years of experience as a national provider of healthcare management solutions for employers, insurance companies, and government agencies seeking to control costs and promote positive outcomes. We apply technology, intelligence, and a human touch to tackle the challenges of workers' compensation. Our approach facilitates early intervention and medical management at the onset of an injury while being connected to critical information needed to manage claims proactively.

We also offer an end-to-end strategy for liability claims management, which is backed by over 15 years of experience. Our technology, accuracy, and expertise work in tandem to minimize your exposure and achieve superior results. From initial claim prioritization through resolution, CorVel stays fully engaged and focused on closing liability claims promptly, precisely, and fairly.

We have approximately 4,500 employees who serve more than 1,100 customers through a national branch office network covering all 50 states. Our decentralized management model allows us to provide strong local support to our customers while being supported by national resources, processes, and systems. CorVel is publicly traded (NASDAQ:CRVL) with annual revenues exceeding \$719 million in fiscal year 2023. Our financial strength and the depth of our comprehensive service offering have enabled our company to remain independent and stay focused on delivering innovative, technology-driven solutions that achieve industry-leading results.

Looking to the future, CorVel plans to add new information management tools to each service line, further expanding the information processing capabilities that have always been the core of our company's value proposition.

Municipality Experience

CorVel provides third party administration services for more than 120 municipalities and public entities across the United States including cities, counties, states, public transportation, and public education clients. Our experience with municipalities across the country provides an innovative, integrated service model that controls claims by advocating medical management at the onset of the injury. Advocacy 24/7 services are available by phone to ensure immediate access to care for your unique mix of occupations that can include government administrators, maintenance workers, engineers and planners, parks and recreation, utility services, law enforcement and fire, construction, and human services.



Depth of Resources

National Resources, Local Presence

With a nationwide network of local offices, we have strategically positioned ourselves to provide unparalleled support and expertise across the claims management process. This localized approach allows us to understand the unique dynamics, regulations, and nuances of different jurisdictions, enabling us to provide tailored solutions that align with local requirements.

Expert Claims Adjusters

Our Adjusters are highly trained in performing investigations, taking recorded statements, estimating the value of bodily injury/medical disability, returning injured workers to work, and closing claims. We ensure that the Adjusters assigned to your program possess the necessary state licensure and bring substantial experience in working with public agencies. This specialized experience allows them to effectively navigate the unique challenges and intricacies of public agency claims.

Comprehensive In-House Services

Unlike some TPAs, we take pride in providing all claims management and managed care services in-house. This means that our resources encompass every facet of the claims process, including claim intake, investigation, case management, utilization review, PPO networks, pharmacy benefits, and medical bill review. Having these services under one roof ensures streamlined communication, efficient collaboration, and consistent quality throughout the entire claims journey.

Cutting-Edge Technology

Our commitment to staying at the forefront of the industry is evident in our investment in advanced claims management technology. Our claims system, Care^{MC}, connects all stakeholders throughout the entire claims process, providing real-time updates and streamlining communication to optimize an injured worker's recovery, promptly close liability claims, and optimize the City's savings. It's a comprehensive way of managing claims—providing all the tools needed to make informed decisions with confidence.

Office Locations

CorVel has approximately 75 office locations nationwide including 2 offices in the state of Virginia.

Legal Structure

CorVel Enterprise Comp, Inc. is a wholly-owned operating subsidiary of CorVel Corporation, a publicly-traded healthcare management company (NASDAQ GS: CRVL) held to the standards of NASDAQ and the SEC. CorVel Corporation is incorporated in the state of Delaware.



TAB 13- KEY PERSONNEL

This tab should include the resumes or curriculum vitae of the offeror's key staff members. It should identify the specific employees assigned to provide the services solicited by this Request for Proposals. For each key person identified by the offeror, this tab should include the following information, provided in resume format:

- A. Name and title.
- B. Office location and city of residence.
- C. Project responsibilities and roles.
- D. Educational background.
- E. Professional registrations and memberships (if applicable).
- F. Years of relevant experience.

Please see Appendix H: Key Personnel Resumes

Please see Appendix A: Organizational Chart



TAB 14- REFERENCES

This tab should include the names, addresses and telephone numbers of at least four other municipalities or public schools utilizing multiple claim offices with whom offeror has worked during the last five years. The tab should briefly identify the project, location and services performed. The tab should also include an affirmative statement that the offeror grants its consent for the City to contact the offeror's references for purposes of evaluating the offeror for this Contract and acknowledges that any information obtained from the offeror's references will not be disclosed to the offeror.

CorVel grants consent for the City to contact the references below:

References

Client: City of Raleigh (Workers' Compensation)

Client Contact: Evan Sloan, Manager- Health, Safety & Workers' Compensation

Address: 310 West Martin St., Raleigh, NC 27601

Phone: 919-996-4718

Email: Evan.Sloan@raleighnc.gov

Client: City of Raleigh (Liability)

Client Contact: Ryan Wilson, MBA, Risk and Insurance Manager

Address: 222 W Hargett St, Suite 508, Raleigh, NC 27602-0590

Phone: 919-996-2241

Email: Ryan.Wilson@raleighnc.gov

Client: Fairfax County

Client Contact: Randy F. Jouben, Risk Manager

Address: 12000 Government Center Parkway, Suite 215, Fairfax VA 22035

Phone: 703-324-3599

Email: randy.jouben@fairfaxcounty.gov

Client: City of West Palm Beach

Client Contact: Tim Scott, Risk Manager

Address: 401 Clematis Street 3rd Floor, West Palm Beach, FL 33401

Office: (561) 494-1136

Cell: (561) 802-1892

Email: tscott@wpb.org

Client: Loudoun County

Client Contact: Rebekah M. Bofinger, HR Manager, Risk & Leave

Office: (571) 258-3053

Cell: (571) 235-2484



TAB 15- SUBCONTRACTING

This tab should identify any of the required services that you intend to subcontract, if any, providing the following information:

- A. Reasons for subcontracting
- B. Proposed subcontractor responsibilities.
- C. Identity of proposed subcontractors including location, relevant personnel and experience, previous use as a subcontractor, and any other relevant supporting information.

An advantage of our service model is that we provide all core claims and managed care services in-house through a fully integrated program. Services are delivered by CorVel employees who work together in one system, using real-time information and smart technology to best support injured workers and claimants and improve claim outcomes. We only use subcontractors for support services such as defense counsel, legal bill review, outside investigation, safety & loss control, auto appraisals, and field task assignments.

The following are our vendor partners for outsourced services:

- Defense Counsel: Client's preferred defense counsel (we can recommend counsel upon request)
- Outside Investigation: Allied Universal Compliance & Investigations
- Safety & Loss Control: Risk Consultants of America, Inc. (RCI)
- Legal Bill Review: Bottomline Technologies, Inc.
- Property Claims: Custard Insurance Adjusters
- Auto Appraisals: PDA and Auto Claims Direct
- Field Task Assignments: Frontier Adjusters and Custard Insurance Adjusters

CorVel can also work with the City's preferred vendors for these services.

Defense Counsel

CorVel recognizes that not all litigated cases require assignment to counsel. We refer cases to counsel that go beyond the scope of what the Claims Adjuster is allowed to work on, such as petitions, a notice of representation, and approval of any settlement by a compensation judge. Each case that requires litigation will be reviewed to determine if legal assignment is needed based on its issues and the possibility of a trial. Many cases which require counsel are assigned for tasks only such as depositions.

Outside Investigation

Referrals for outside investigation will be discussed with the City prior to assignment. Before a referral, the Adjuster conducts a cost/benefit analysis to determine if the investigation has the potential to derive the savings necessary to justify the expense. We don't recommend outside investigation for claims with limited potential exposure.

Criteria for initiating outside investigation include injured workers who may be:

- Collecting temporary disability or salary continuation while working



- Engaging in activities outside of their restrictions
- Claiming permanent disability that is highly inconsistent with reported activities or objective findings

We have partnered with a nationwide investigation company to provide these services and can also use the City's preferred vendor. Outside investigation assignments will be completed and submitted within 30 days.

Safety and Loss Control Services

CorVel delivers a variety of safety analysis reports that identify loss trends, analyze derivatives, and detail financial impacts. We offer an interactive safety report that allows the City to tailor reports with specific parameters in an intuitive and user-friendly format. Your Account Manager will regularly review loss data and inform the City of areas that may need further inquiry or analysis.

We partner with Risk Consultants of America, Inc. (RCI), a loss control provider, to ensure our clients receive the highest quality safety and loss control consulting. RCI provides various safety service resource tools, including on-site regulatory training, safety committee support, and safety briefings and policies. To facilitate loss prevention and improve the overall safety culture of your organization, we work with RCI to align these tools with your company-specific goals and initiatives.

Legal Bill Review

As part of our litigation management program, CorVel has implemented an enhanced legal bill review service. Partnering with one of the nation's leading litigation management service providers, Bottomline Technologies, Inc., the City is assured that the services rendered on your behalf are consistent with CorVel's litigation management guidelines and have been billed at the appropriate rates.

Once the review is completed, the Claims Adjuster does a final review prior to payment. All activity is documented in the claim file. CorVel has had exceptional performance in reducing the cost of legal bills by identifying discrepancies and ensuring the bill is in compliance with established legal budgets. We average 8%-10% savings per legal bill in the first year.

Property Claims

For property claims, CorVel strategically partners with Custard Insurance Adjusters. Custard offers a quick and accurate response using their dedicated team of highly trained Adjusters. Custard makes every effort to minimize the costs and limit the interruption of daily life for personal losses and business activity for commercial clients. Their highly trained Property Adjusters undergo extensive training and testing prior to becoming eligible to handle property claims. They offer a wide range of property services, including residential property, commercial property, and inland marine property.



Auto Appraisals

CorVel has partnered with PDA Corporation, the nationwide leading independent damage appraisal firm, for vehicle appraisals. PDA completes over 420,000 estimates a year for property, heavy equipment, over-the-road truck, specialty equipment, auto, RV, boat, motorcycle, and other damage through a national team of over 650 local appraisers in more than 250 offices. Their national team of appraisers is highly trained and ready to mobilize whenever and wherever it's needed.

Field Task Assignments

For general liability and auto task assignments, we use Frontier Adjusters and limit the work requested to the following:

- In-person statements on serious claims
- Scene photos
- Evidence preservation



TAB 16- PRICE PROPOSAL

A brief description of terms must accompany this section. The price must be offered as a single package price for claims services, see Attachment B.

Please see Appendix I: Cost Proposal



TAB 17- APPENDIX

Appendix A: Organizational Chart

Appendix B: Sylvia Kurash Resume

Appendix C: Workers' Compensation and Liability Best Practices

Appendix D: Care^{MC} Screenshots

Appendix E: Sample Workers' Compensation Report Package

Appendix F: Sample Liability Report Package

Appendix G: Sample Billing Statement

Appendix H: Key Personnel Resumes

Appendix I: Cost Proposal

Appendix J: Signed Documents

Appendix K: Corporate Resolution

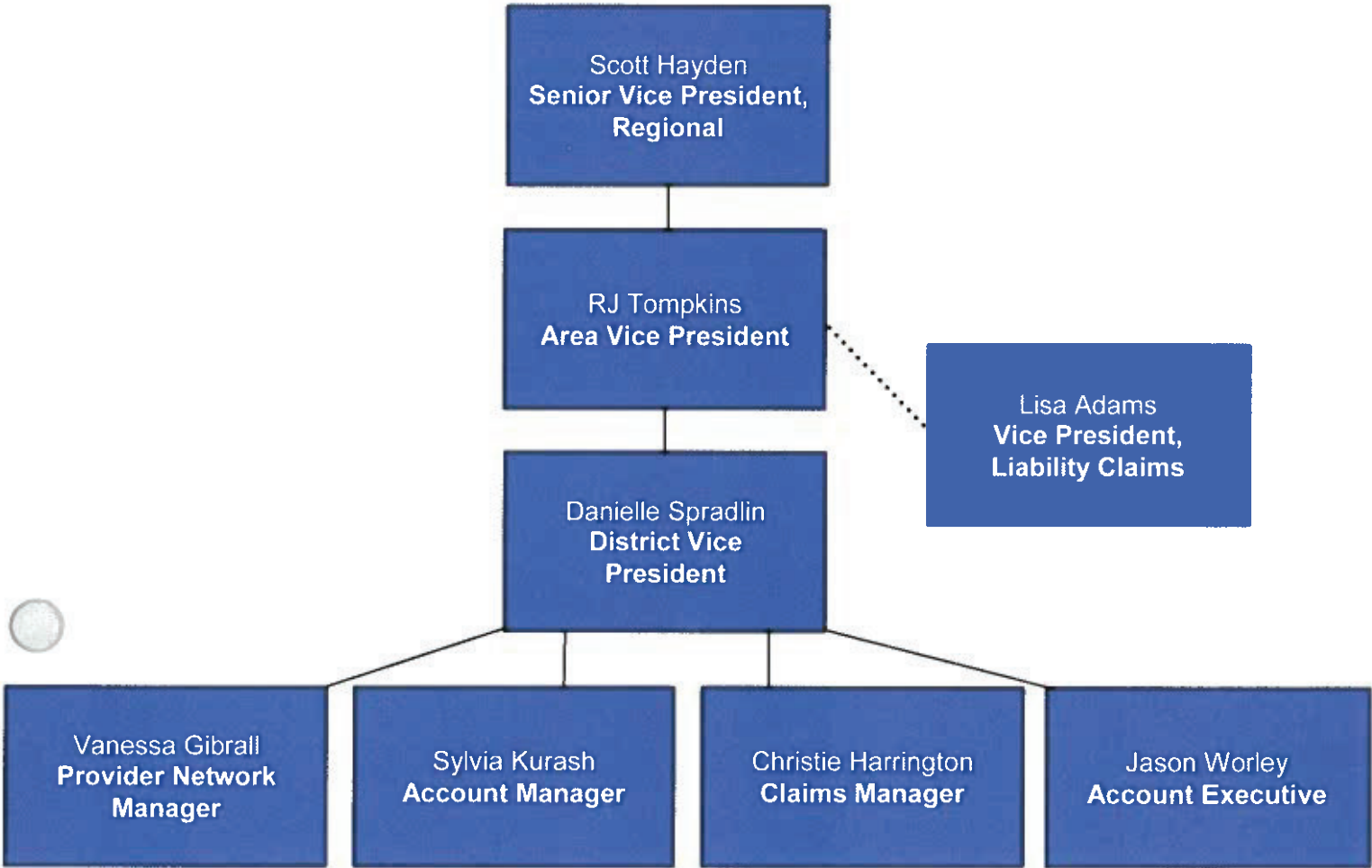


Appendix A

Organizational Chart



Organizational Chart





Appendix B

Sylvia Kurash Resume

SYLVIA KURASH

ACCOUNT MANAGER

STATEMENT OF QUALIFICATIONS

Over 30 years of account management, supervisory and sales experience in the workers' compensation, healthcare and communication industries. 20 years of account management experience directly related to various disability and workers' compensation benefit programs. Involvement in successful transition, implementation and oversight of various workers' compensation and disability management programs.

PROFESSIONAL HISTORY

Account Manager

CorVel Corporation / 1998 – present

Responsible for the management and growth of designated municipal, private sector and auto industry accounts with a focus on overall client satisfaction.

Acquisition Manager

C4 Media Corporation / 1988 – 1993

Worked as part of a team to complete the acquisition of cable television systems throughout the United States. Acted as liaison between company and municipal entities during transition periods.

Customer Service Supervision

Tribune Cable Communications / 1985 – 1988

Supervised the daily activities of a team of over 30 customer service and telemarketing employees for the Alexandria, VA cable operations.

EDUCATION

Bachelor of Arts / Communications

Radford University

CREDENTIALS AND AFFILIATIONS

Member, Virginia Self Insured Association

Member, Virginia Chapter of RIMS

Member, Potomac Chapter of RIMS



Appendix C

Workers' Compensation and Liability Best Practices



Workers' Compensation Claims Best Practices

WORKERS' COMPENSATION CLAIMS BEST PRACTICES

CorVel has developed the following best practice guidelines to assure that our claims management and quality standards are maintained.

Philosophy

CorVel offers an outcomes-based approach to claims administration and healthcare management specifically designed to tackle the problems that have plagued the workers' compensation industry: the typically adversarial environment for the injured worker, sluggish communication and inefficient workflows throughout the process, and a lack of access and transparency to critical information. All of these factors can take a financial toll on companies and CorVel addresses each one with technology, intelligence and a human touch.

Early Intake

CorVel's early intake process promotes immediate and convenient access to report an injury or incident to improve return to work results. For immediate care, we recommend reporting incidents to our Advocacy 24/7 service. Claims can also be reported through our website, toll free call center or faxed. Claims are immediately processed by our proprietary rules engine where medical management begins immediately as needed, and the claim is assigned to a Claims Adjuster within one business day or less of initial receipt.

Advocacy 24/7

CorVel offers a nurse triage call center for customer employees, 24 hours a day, 7 days a week. At the time of the incident, employees can call and speak with a registered nurse who will evaluate the nature of the incident or injury and determine the employee's immediate medical needs. By addressing the case when it first occurs, we are able to provide quick and accurate care intervention, often helping to prevent a minor injury from becoming an expensive claim. CorVel's staff of registered nurses are licensed in all 50 states and advocate timely return to work with quality care for our customers' employees. Our nurses use nationally recognized triage protocols with industry standards to facilitate appropriate treatment options.

Telehealth

We provide telehealth services as part of our Advocacy 24/7 program, offering injured workers a convenient way to see a doctor. With telehealth, injured workers have immediate access to providers, eliminating wait and travel times, cutting lag time and costly delays. After being screened by a triage nurse, telehealth enables injured workers to connect with a provider through a virtual visit via a computer or smart device to facilitate more immediate care.

In addition to preserving the integrity of the patient-physician relationship with confidential, HIPAA compliant transactions, telehealth also channels injured workers to network providers for physical therapy or prescription fills when appropriate.



Workers' Compensation Claims Best Practices

Triage and Early Identification of Complex Claims

CorVel's industry leading triage rules engine utilizes proprietary technology to identify and prioritize claims. We process the FNOL and immediately separate simple, non-complex claims (i.e. medical only claims) from complex claims, such as claims with ongoing indemnity and claims requiring medical management. If a claim is identified as complex or potentially complex, an additional level of triage is performed by a medical professional. Our FNOL process and multi-level claims triage will enable our customers and CorVel to know which cases need special attention before they become complex, saving time and money over the life of the claim.

Care Advocate

The first 30 days are critical to the outcome of a claim especially in complicated cases. We employ Care Advocates who immediately review potentially complex claims and gather any additional information needed from the physician, injured worker and employer to make recommendations to the Claim Adjuster and ensure the best medical outcomes. As Registered Nurses, our Care Advocates use their clinical expertise to establish an appropriate treatment plan, coordinate optimal care for the injured worker, initiate return to work data, identify barriers to return to work, determine disability duration and educate the injured worker on their injury and recovery process, all while working collaboratively with the Claim Adjuster. Through proactive management and a high level of attention at the front end of a claim, Care Advocates minimize costly delays, improve return to work outcomes, reduce claim costs and increase claim closure rates.

Investigation and 3-Point Contact

Quality initial claims investigation is the cornerstone of effective claims management. It requires timely and thorough fact gathering, which makes results-oriented claims management possible. All claims identified as complex will have a detailed initial investigation performed, with detailed file documentation that addresses compensability, evaluates possible exposure and outlines the future plan of action.

Claims investigation begins within 24 hours of claim receipt. The investigation is an extension of the initial triage process, which will include contact with the employee, customer and medical provider. The completion of the three point contact must be documented within 48 hours. Any circumstances which prevent the completion of the three point contact within this timeframe must be fully documented and additional efforts (due diligence) to contact these parties (email, certified mail) must be used.

Indemnity claims are reported to the Index Bureau in accordance with customer requirements. The claim will be initially indexed upon receipt and re-indexed automatically at six month intervals as long as the claim remains open.

Subrogation

Upon claim receipt, our rules engine evaluates the claim for potential subrogation. If the potential exists the claim is routed to our subrogation specialist team who complete a thorough investigation that includes collecting, evaluating, and preserving the evidence. Evidence may include statements, photographs, and documents such as receipts, logs, maintenance, and tangible evidence (stored when feasible).



Workers' Compensation Claims Best Practices

Reserves will be addressed at each claim review and rationale document in the Adjuster's plan of action review. Applicable statute of limitations will also be outlined in the plan of action with aggressive efforts being undertaken to secure recovery of costs as soon as possible.

Once identified, the appropriate parties will be placed on notice of lien. We will provide information to the injured worker, customer or the court of the current lien amount. CorVel will receive prior approval from the customer for any waiver or reduction of any lien or other settlement. Customers are kept up to date of the subrogation efforts and status at a minimum of every 90 days. The designee may also view subrogation efforts as noted in the claims system and subrogation report.

Compensability and Plan of Action

Once the investigation phase is complete, a determination of compensability will be documented. Within two business days from claim receipt, an action plan based on the collaboration between the claims professional and the medical professional will be initiated. On all open, complex or potentially complex claims that include the payment of indemnity benefits, the action plan will be updated at a minimum of every 30 days. For all other complex claims, the action plan will be updated a minimum of every 90 days until the claim is resolved.

Reserving

CorVel's Adjusters consider the particular circumstances of each claim and will maintain contact with the injured worker, physician and customer to develop a reserve that is current, realistic and based on the probable cost of each claim. We do not block reserve.

Reserves are initially set within five days of receipt of the claim and established in one or more of three main groups: medical only, indemnity and allocated loss adjustment expense (ALAE), taking into account all potential payments. Within any of these major groups there can be reserve types. For instance, under indemnity, specific reserves can be established for PPD (permanent partial disability), TTD (temporary total disability) or PTD (permanent total disability). Under ALAE there can be separate reserves for legal, surveillance and special investigation.

Reserves are reviewed for accuracy at 14 days, 45 days, then every 90 days. We also have an event driven diary that alerts Adjusters of activity that may affect the value of the claim so they know when to review the reserves again for possible adjustments. Our Adjusters are fully trained in rating medical reports and accurately assessing the extent of disability. This skill, along with the support of our event driven diary system ensures that reserves remain accurate through claim closure.

Claim Diaries

CorVel uses an event driven diary system that provides a proactive approach to claims management rather than a reactive one. We don't use a traditional diary system due to its inherent delays and lack of attention to deteriorating claims. Our event driven diaries assist the Adjuster in meeting CorVel's quality standards and customer expectations as well as carrier and federal requirements. They alert the Adjuster when specific triggers have been met that require their attention (e.g., claim is assigned, reserves need to be set, claim review is required, etc.).



Workers' Compensation Claims Best Practices

In addition to automated diaries, Adjusters set their own diaries based on the expected needs of the file and are set aggressively upon claim receipt. Notes are entered as activities occur, not just on the diary date. After the initial diary, intervals are set at a maximum of 30 days for normal situations. Diaries for claims in litigation and aged claims may be extended. Diary dates are established for continued action and follow up as circumstances dictate. When establishing an action plan or entering daily updates, the Adjuster inputs the information into the diary system and sets a trigger date in the future when the action will be completed or acted upon.

An automatic 90 day diary for Supervisor review is generated on all claims. Supervisor diaries ensure the quality of claims handling and provide follow up on direction previously given in such cases. Spot reviews of other claims occur to ensure quality investigation and handling. Supervisor reviews are fully documented in the claim file.

Follow Up Contact

CorVel recognizes the importance of ongoing contact with injured workers and will maintain regular contact with employees who remain off work or are restricted from performing their regular duties. In addition, our Adjusters initiate contact with injured workers during key development periods in a claim. This includes discussion of compensability issues/decisions with unrepresented employees to ensure their understanding of the investigation process and timelines.

Our Case Managers provide additional support by ensuring the customers and their employees understand potentially confusing injury and medical treatment details. Field Case Managers are also available on a local basis to provide in-person professional medical assistance when needed including any emergency situation that might arise. This level of contact results in reduced litigation and a higher level of satisfaction by injured employees.

Integrated Medical Management

Managed care services are at the foundation of CorVel's service offering and are where the most savings can be realized. With decades of experience in the managed care industry, we are able to offer a comprehensive solution that begins with patient management and continues through network solutions, delivering our patient advocacy approach throughout the entire medical management process. Managed care services are fully integrated with our claims management services and are provided by CorVel employees who are working collaboratively on one system, using real-time data, and working toward the same goal of facilitating the injured worker's recovery.

CorVel's comprehensive medical management services include:

- Medical Bill Review
- Preferred Provider Network
- Ancillary Benefit Management
- Pharmacy Benefit Management
- Case Management
- Utilization Review
- Vocational Rehabilitation
- Medicare Services



Workers' Compensation Claims Best Practices

Return to Work Program

When an employee is injured and unable to perform their normal duties, rapid recovery from that injury and return to full productivity requires a joint effort between CorVel, the customer, the injured worker and the treating physician. We will work closely with our customers to implement an effective return to work program based on your philosophies and goals so we can achieve the best possible return to work outcomes, while achieving greater reductions in the overall length and cost of medical treatment.

Transitional work positions allow the injured worker to acquire a sense of usefulness and acceptance in the workgroup, which has been proven to be a positive factor in the recovery process. During our three point contact, CorVel discusses what modified positions are available with our customer and relays that information to the treating physician. This allows us to assist injured workers on how they can return to the workplace in a transitional capacity and be productive until they are able to work at full capacity.

Our return to work module within our online claims system provides key details related to return to work initiatives for injured workers. The injured worker's return to work plan, work restrictions, date last worked, return to work date and total days off are all visible within the return to work module. This provides our customers with a clear depiction of each injured worker's return to work status and when the employee will be back in a functional work position.

Ongoing Claims Management and Patient Advocacy

Throughout the life of the claim, the rules engine continuously fires, alerting the Adjuster of any events or information that may impact the claim or affect its return to work status. This processing calls immediate attention to claims, avoiding costly delays. Our integrated model houses all claims and managed care information on one platform, allowing insight into every aspect of our customers' programs and continuous predictive modeling throughout the life of a claim. With our system's predictive modeling functionality, CorVel can identify cases requiring other efforts (including medication review and ongoing return to work initiatives) and redirect a claim to the most appropriate, quality care at any time.

Quality Assurance

Using CorVel's advanced technology, a systematic claim audit is performed twice daily to monitor compliance with best practice standards and ensure quality. Additionally, Supervisory reviews are performed on all open complex claims at a minimum of every 90 days. Claims may qualify for branch or district review based on severity and complexity of issues. CorVel's Quality Assurance department also performs audits which measure program compliance and quality. Based on the audit results, our Quality Assurance department will conduct training to bring an individual or a unit into compliance. In addition, ongoing training will be tailored to enhance the professional development of our medical and claim professionals, whether it is regarding our internal best practices or an external issue such as jurisdictional changes and case law review.

Litigation Management

It is CorVel's best practice to maintain appropriate control and oversight of litigation for the best possible outcome. CorVel will maintain a list of approved and appropriate counsel.



Workers' Compensation Claims Best Practices

Upon referral to counsel, the Adjuster will provide a written plan of action outlining the issues that need to be addressed. For ongoing litigation, the Adjuster will request a budget of anticipated activities and associated costs. This budget will be reviewed with our customer to consider other courses of action, including possible settlement, prior to continuing with litigation.

Settlement

CorVel will conduct settlement negotiations on behalf of the customer with the opposing attorney. We are confident in our Adjusters' skills in resolving cases prior to trial. We attempt to establish and maintain a good working relationship with applicant counsel in order to reach final settlements quickly, fairly and at the lowest possible price. We do feel there are times it is necessary to take a file to trial and times it would be more cost efficient to settle a claim. CorVel will discuss the claim with the customer to guarantee we are all in agreement before we move forward.

Prior to recommending a settlement, we will provide our customer with an in-depth analysis of our options including a cost benefit evaluation and a suggested plan of action. Settlement authority is granted to an Adjuster based on the claims handling agreement established with our customer. Adjusters prepare Compromise and Release Agreements and Stipulations with Request for Awards in specific cases on our claims systems. The Claims Supervisor will maintain first tier approval before our Adjuster makes settlement recommendations to the customer.

As the case develops and information is received, settlement always remains a consideration. Alternative methods of resolution are reviewed such as mediation, structured settlements, etc. When a settlement is pursued, a strategy is put together with defense counsel including an initial offer, target settlement amount and maximum settlement amount. Documentation in support of these figures will be placed in the file. In most instances, our Adjuster will do the negotiating. Our Adjusters are experienced at properly evaluating claims and negotiating settlements.

Claim Payments

CorVel will maintain a checking trust account funded by our customer to be used for guaranteed timely payments of all legitimate and authorized expenses associated with handling our customers' claims. These include medical bills, TTD payments, PTD payments, legal fees, investigation costs, rehabilitation expenses and other allocated loss expenses. Checks are printed daily for most customers, although bi-weekly and daily printing are available. Given there are adequate funds in the trust account, it is our policy to pay all bills within 14 days of receipt to avoid double payments and potential penalties. Funding for the account can be in the form of an ACH transfer, wire or check. CorVel sends weekly or monthly check registers that document all payments processed.

Claims Closure

CorVel applies aggressive claims handling and effectively utilizes all resources to resolve claims. From the inception of a claim, the Adjuster works closely with Case Managers, medical providers, attorneys and all other pertinent parties to return the injured worker to work and set the claim on track for resolution.



Workers' Compensation Claims Best Practices

We use every available strategy to properly resolve claims including stipulations with request for awards, compromise and releases, and structured settlements. Claims will be reviewed for closure after a specific timeframe from the date of the final financial transaction or final correspondence to the injured worker. Timeframes for closure are determined by customer requirements and jurisdictional laws.

As CorVel closes more files in a period than were received or reopened, our average annual closing ratio exceeds 100%. On a regular basis, the Claims Manager and Supervisors receive a management report which outlines the current closing ratio for each Adjuster. Based on this management report, CorVel and the management staff can identify areas that may need attention.



Liability Claims Best Practices

LIABILITY CLAIMS BEST PRACTICES

Philosophy

CorVel's approach to liability claims administration utilizes proprietary, integrated solutions that focus on improving outcomes to reduce total claims costs. Our philosophy is to promptly investigate claims to mitigate potential losses, proactively manage litigation, utilize investigative techniques to reduce costs, mitigate potential bodily injury exposure, and enhance communication and reporting capabilities to improve service delivery.

Claim Reporting and Set-Up

Claims can be reported online or via email through an Electronic Notice of Loss or a Claim for Damage form. Claims can also be reported by telephone, fax or mail. A claim file will be created and assigned to an Adjuster within 24 hours of receipt.

Investigation

Proper investigation, if justified by the expense, shall be made on all alleged liability and property claims within 24 hours of receipt of the notice of claim. Two point contact will be made with the customer and the claimant when there is a need for further clarification concerning the claim. If warranted by the damage exposure, a statement will be taken to resolve questions on liability and/or injury. All injury claims will be reported to the Central Index Bureau and re-indexed every six months. Contact will be made with the claimant on an ongoing basis for maintenance and necessary control.

Reserving

The liability Adjuster considers the particular circumstances and government immunities of each claim and maintains contact with the claimant to develop a reserve that is current, realistic and based on the probable cost of each claim. Reserves are initially set within five days of receipt of the claim and are established in one or more of four main groups: medical, economic loss, injury residuals and pain and suffering, which are measured to alleviate stair stepping reserve practices. Reserves are evaluated every 30 days or more frequently based on our event driven diary system, with particular attention to any new information that has developed that may impact liability and/or damages.

Subrogation

CorVel's rules engine immediately flags claims with subrogation potential for review by a team of experienced liability Adjusters. If it is determined there is subrogation potential, recovery efforts begins immediately which preserves critical evidence which often increases chances of recovering from the responsible third-party.

Claim Diaries

Diary dates are established for continued action and follow up as circumstances dictate. When establishing an action plan or providing continued daily updates, the Adjuster inputs the information into the diary system then triggers a future date that the action will be completed and/or acted upon. Supervisors perform an initial review of all new claims for assignment to an appropriate Adjuster and to provide guidance on claim management. They then establish a diary for regular claim review at 14, 45 and 90 days.



Liability Claims Best Practices

Supervisor diaries ensure the quality of claims handling and follows up on the direction of each claim. Spot reviews of other claims occur to ensure quality investigation and handling. Supervisor file reviews are documented in the file notes.

File Documentation

In accordance with CorVel's best practices, claim files contain electronic or scanned copies of all correspondence including letters, faxes, reports and emails. Reserves are clearly explained in the file. All telephone conversations, discussions, meetings, case activity and diaries are clearly documented in each claim file. Electronic file documentation also includes the following as appropriate: monetary transactions, recorded statements and summaries, index reports, expert reports, legal opinions, medical authorizations, medical bills, medical reports, independent Adjuster reports, excess carrier reports, official reports, scene diagrams, photos and damage verifications.

Status Reports

An updated status report is completed every 30 days following the investigative report or sooner if additional information needs to be reported. The status reports outline further work to be completed, case evaluation, verdict potential, laws and immunities affecting the case, co-defendant contribution, subrogation potential, and settlement/defense strategy. All relevant contracts, insurance certificates, additional insured endorsements and other hold harmless/indemnity agreements are obtained and reviewed.

Litigation

Legal referrals are closely monitored for need and effectiveness. Specific attorneys, rather than firms, generally provide the most effective representation. We are accustomed to working in partnership with various reputable law firms and can also use existing customer attorneys if preferred.

Once a claimant has filed a lawsuit, consideration is given to either settlement or defense of the case. The evaluation process is clearly documented in the claim file. Legal assignments or recommendations are made after reviewing:

- Complexity of the case
- Presence of opposing counsel
- Degree of litigation expected
- Need for a particular defense strategy
- Existence of appealable issues

When a decision to litigate a claim is reached, a letter of direction is provided to the attorney outlining the work assignments and timeframes required. If a verbal agreement is made in the interest of time, it is documented in the claim file as well as through written communication to the attorney. Litigation budgets are obtained from the attorney.



Liability Claims Best Practices

Defense counsel activity is managed on an ongoing basis. Control of the file is never transferred to the attorney. Adjusters work in conjunction with the defense counsel. Within 30 days after receipt of the case, the defense counsel's written opinion is obtained and includes evaluation of liability, exposure, verdict potential, defense strategy, defense budget, and settlement value. Itemized legal bills are solicited and reviewed for payment consideration at a minimum of every 90 days.

Settlement

If settlement is being considered, the medical bills, medical reports/records and documentation of alleged lost wages are promptly solicited from the claimant, or with a written authorization, directly from the medical providers. Where warranted, settlement is pursued in a timely and aggressive manner, and all negotiations are handled or managed internally by the claims Adjuster managing the file unless there is a documented basis to handle it in another manner. Settlement authority is obtained as required by the service agreement with the customer and all appropriate releases, "good faith" motions, and minor's compromises will be secured.

Claim Payments

CorVel will maintain a checking trust account funded by our customer to be used for guaranteed timely payments of all legitimate and authorized expenses associated with handling your claims. These include medical bills, legal fees, investigation costs and other allocated loss expenses.

Checks are printed weekly for most customers, although bi-weekly and daily printing are available. Given there are adequate funds in the trust account, it is our policy to pay all bills within 14 days of receipt to avoid double payments and potential penalties. Funding for the trust account can be in the form of an ACH transfer, wire or check. CorVel will send customers weekly or monthly check registers that document all the payments processed.



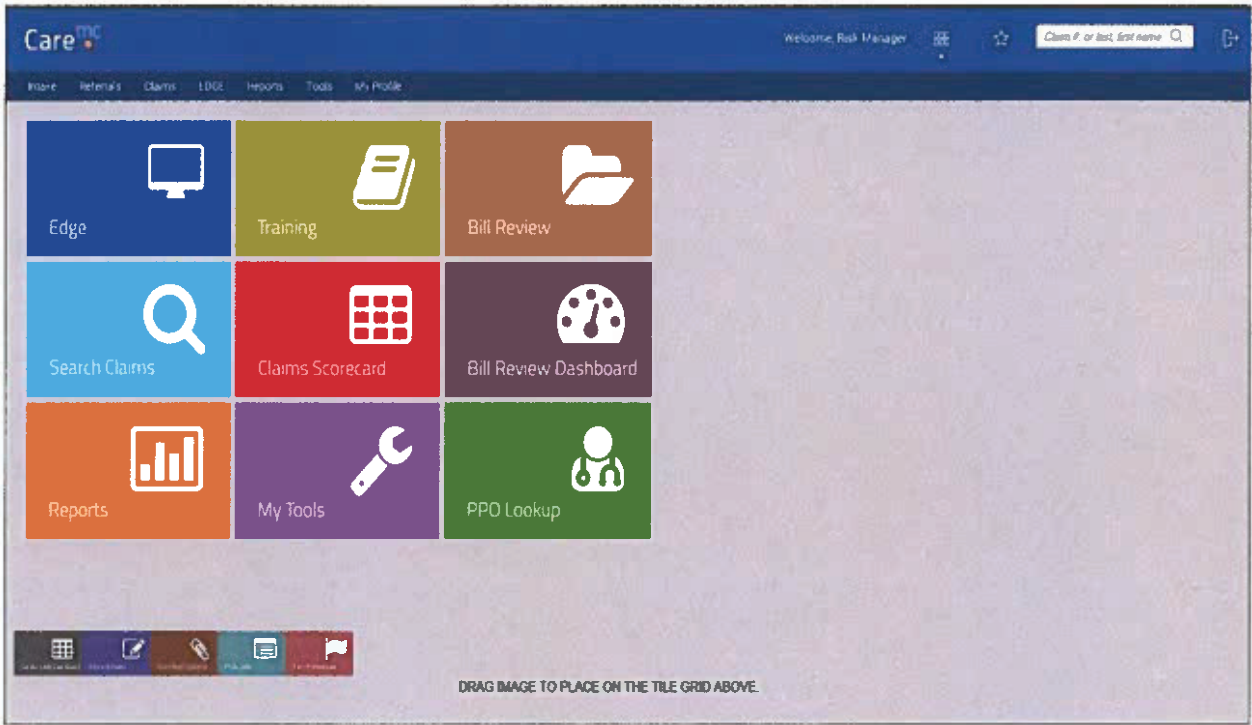
Appendix D

Care^{MC} Screenshots

The sample Care^{MC} screenshots are a manifestation of CorVel technology that is unique in the industry. A competitor in possession of the screenshots would have a blueprint for replicating the software or at least creating something that produces similar outputs. In addition, CorVel's clear presentation of the screenshots itself is proprietary and confidential in that it too was developed by CorVel after painstaking client research and feedback and countless hours of developing the software at a significant cost. Competitors gaining access to such detailed information would erode our competitive advantage in the claims administration and managed care marketplace due to its proprietary and confidential nature.



Screenshots of Claims System



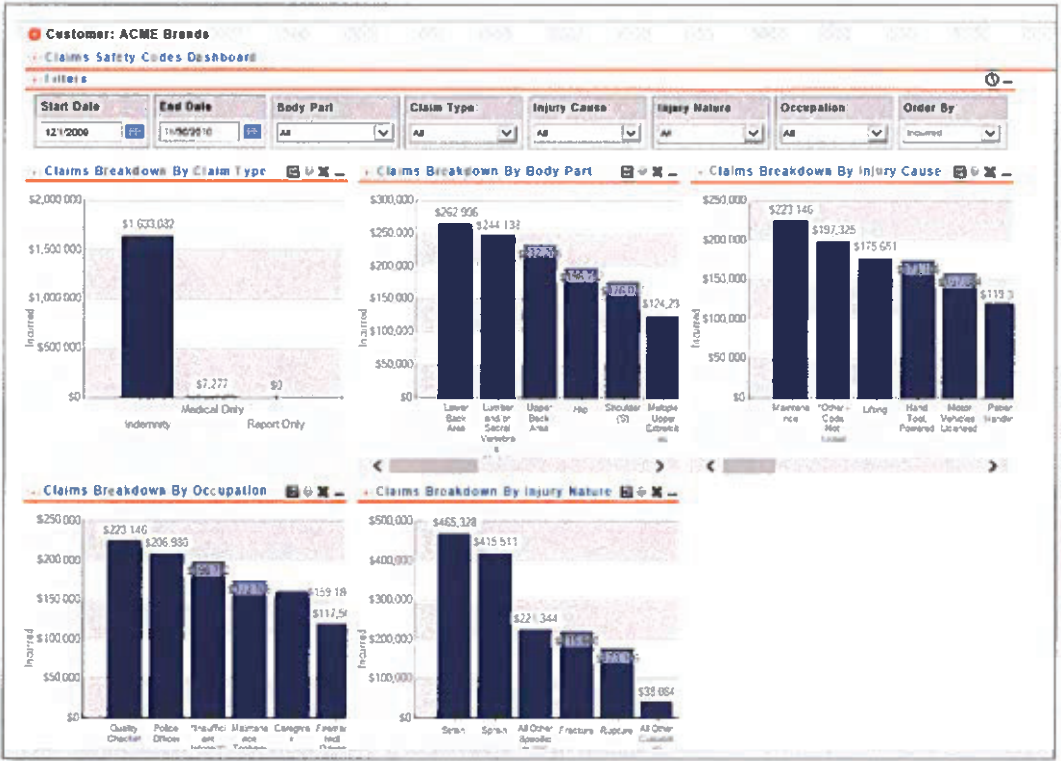
Care^{MC} Home Screen

Choose tiles for a tailored home screen display.

Confidential



Screenshots of Claims System



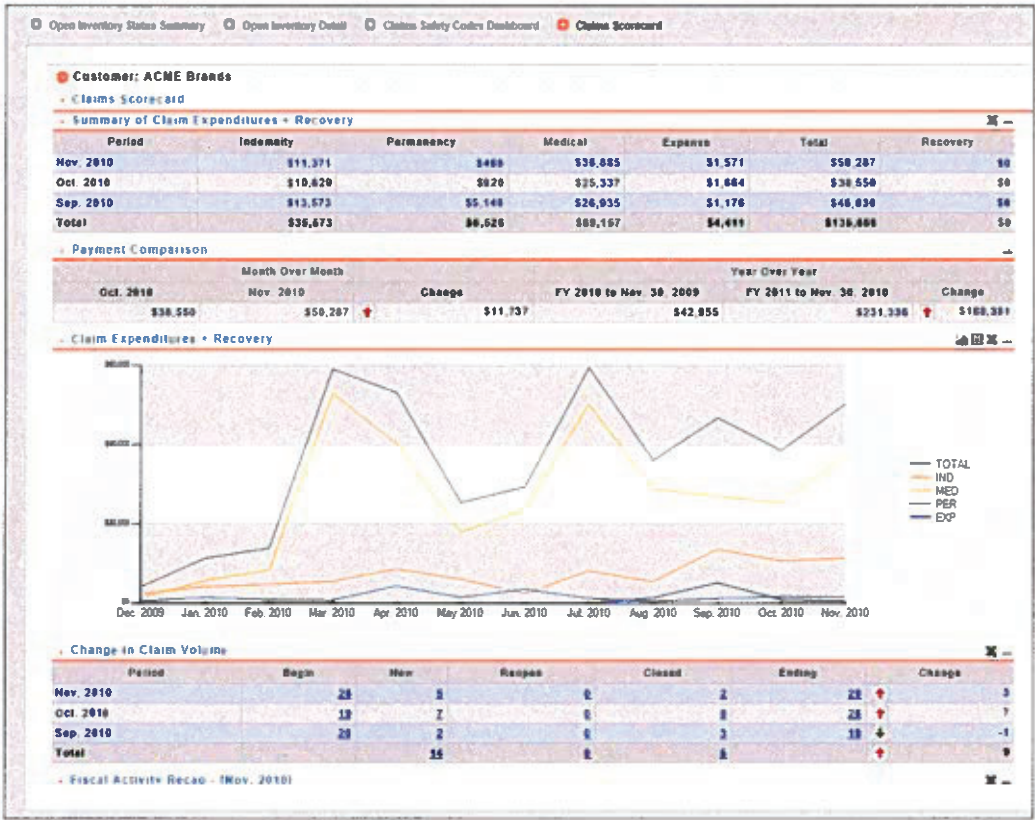
Claims Safety Dashboard

Displays a breakdown of claims by claim type, injury, body part, occupation and nature of injury.

Confidential



Screenshots of Claims System



Claims Scorecard

Tracks and compares claim payments.

Confidential



Screenshots of Claims System

Care

INC

Welcome, First Manager

Notification Center

★

Claims & Request Assistant

Open Inventory Status Summary

Open Inventory Detail

Claims Safety Codes Dashboard

Claims Scorecard

Refresh

Claim Type

Record Count

AL

2

Others

2

GL

4

Others

4

WC

31

IND

45

31-90 days open

1

Lauer, Colby
(AB-15-010139)

1

270+ days open

44

Allen, Jose

1

Anderson, Ryan

1

Brown, Robert

1

Butler, Grace

1

Clark, Brandon

1

Cole, Mia

1

Cruz, Jon

1

Depp, Andy

1

Fritz, Johnny

1

Hall, Logan

1

Harris, Tyler

1

Henderson, Patricia

2

Hernandez, Justin

1

Hughes, Elizabeth

1

Jackson, Jeffrey

1

Jones, Jerry

1

Jones, Mary

1

Jones, Tom

1

Jr., Natalie

1

Claim Inventory Status

Record Count

Total Open Claims

37

Auto Liability

1

Legal Event

1

Complaint Filed

1

Nelson, Andrew (AB-12-500005-02)

1

Settlement/Resolution Event

1

Workers' Compensation

5

Compensability/Investigation Event

2

Compensable

1

Brown, Robert (AB-10-500008)

1

Clark, Brandon (AB-11-500020)

3

NonCompensable/Full Denial

1

Medical Event

19

RTW Event

14

Legal Event

1

Settlement/Resolution Event

1

Services

4

Telephonic Case Management

4

Open Service

1

Brown, Robert (AB-10-500008)

1

Simmons, Christine (AB-11-500002)

1

Taylor, David (AB-11-500001)

1

Wright, Jermaine (AB-12-500001)

2

Medical Case Management

1

Work Status: Return To Work

Record Count

Prior to 08/23/2015

10

No RTW Information

32

Anderson, Ryan (AB-11-500003) (None)

1

Cole, Mia (AB-12-500002) (None)

1

Cruz, Jon (AB-15-010043) (None)

1

Davis, James (AB-16-010019) (None)

1

Demo, Sample (AB-16-010002) (None)

1

Depp, Andy (AB-13-010149) (None)

1

Fritz, Johnny (AB-12-010053) (None)

1

Hall, Logan (AB-11-500026) (None)

1

Henderson, Patricia (AB-11-500022) (None)

1

Henderson, Patricia (AB-11-500033) (None)

1

Hernandez, Justin (AB-11-500031) (None)

1

Jones, gina (AB-16-010010) (None)

1

Jones, James (AB-16-010009) (None)

1

Jones, Jerry (AB-15-010048) (None)

1

Jones, Mary (AB-14-010065) (None)

1

Jones, Tom (AB-15-010053) (None)

1

Jr., Natalie (AB-15-010083) (None)

1

Koerner, Bill (AB-15-010084) (None)

1

Lauer, Colby (AB-15-010139) (None)

1

Lee, Benjamin (AB-11-500024) (None)

1

matt, matt (AB-13-010035) (None)

1

Moore, Christopher (AB-10-500018) (None)

1

Perry, Sharon (AB-10-500002) (None)

1

Powell, Isabella (AB-10-500009) (None)

1

smith, John (AB-14-010074) (None)

1

Smith, John (AB-12-010044) (None)

1

Smith, John (AB-16-010008) (None)

1

Notification Center

Provides a snap shot of all claims by type, status and RTW status.



Screenshots of Claims System

Claim Intake

Save as Draft

Customer: ACME Brands Claimant: --- Claim Number: ---

Report an Injury

Employer

Employee

Details

Review & Submit

Report an Injury

Who is reporting? ☐ Employee ☒ Employer

Your First Name *

Rick

Your Last Name *

Manager

Your Callback *

Ext

Your Email

Are you the employee's supervisor? ☐ Yes ☒ No

Injured Employee

First Name *

Middle

Last Name *

Employee ID Number

Date of Birth

mm/dd/yyyy

Social Security Number

SSN is unknown

Date of Injury

mm/dd/yyyy

Search

Claim Intake

Online reporting functionality for Workers' Comp and Liability claim or incident.



Screenshots of Claims System

Care

Workspace - Mail Manager

Claims # in Mail Mail name

CLAIM DETAILS

CLAIMS

STANDARD

TOOLS

MY WORKSPACE

Claim Details - Coleman, Vicky: AB-10-600005 [EC]

Incident/Injury

Contacts

Medical

Financial

Documents/Notes

Legal

Services

New Service Referral

All

Claim Type: Indemnity [IND]

Status: Active

Date of Incident: 03/02/2010

Flags

Multiple Claims: No

Date of Hire: 08/14/2006

Employer: North - Operations

SSN: 333-00-9743

Marital Status

Customer: ACME Brands

Date of Birth: 02/15/1953

Jurisdiction State: CA

Adjuster: Smith, John

Gender: Female

Policy Effective Date

Jurisdiction Claims No

Policy Term Date

Policy

INCIDENT

Description of Loss: Right hand pain attributed to a large 3-ring binder falling onto hand from the top shelf of library shelving

Date Insured Notified: 03/02/2010

Date Incident Reported: 10/30/2011

Date Received: 10/31/2011

Date Administrator Notified: 03/18/2010

Nature of Injury: Fracture

Cause of Injury: Struck or Injured By (Includes Kicked, Stabbed, Bl Felling or Flying Object)

Injury Work Activity

Work Type at Time of Incident

Incident Object

Location of Loss

Police Report Number

Vehicle Number

BODY PART LISTINGS

Primary	Body Part	Side	Status	Certified By	Status Date	Note	Denial Reason	Impairment Percentage	Impairment Percentage Basis	MMI Date
Yes	Lumbar and/or Sacral Vertebrae		Pending	Case Manager	10/31/2011					
	Lower Back Area		Approved	John Smith	1/29/2016					
	Lower Back Area	Right	Approved	Case Manager	10/15/2015					4/15/2018
	Hand	Right	Denied	John Smith	1/29/2016	Not compensable	Not work related			

Claim Details

Displays detailed claims information organized under tabs for quick access to contacts, medical information, financial information, legal services and more.



Screenshots of Claims System

Claim Details - Jones, Jeffrey AB 10-500004 [EC]

Incident/Injury

Contacts

Medical

Financial

Documents/Notes

Legal

Services

Reference

New Service Referral

All

Claim Type	Ind	Diagnosis Profile	1954	Flag	
SSN	333	Drug History		Employer Name	South - Manufacturing
Date of Hire	01/10	Facility		Adjuster	Adjuster1, DEMO
Policy Effective Date		Hospital	2010	Policy Number	
Market Status		PPO Channel		Jurisdiction Claim No	
		Medical Bills		Gender	Male
		Physician		Status	Closed
		Treatment Calendar			
		CMR/R Savings			

Contacts

Primary Contacts

Contact Type	Name	Address	Phone/Fax	Email
--------------	------	---------	-----------	-------

Claim Details - Franklin, Heather SB-10-004135

Incident/Injury

Contacts

Medical

Legal

Services

New Service Referral

All

Claim Type	Wor	Diagnosis Profile	1955	Flag	
SSN	333	Drug History		Employer Name	Sigma 203 - Vineyard
Date of Hire		Facility		Adjuster	Manager, Demo
Policy Effective Date		Hospital	2001	Policy Number	
Market Status		Medical Bills		Jurisdiction Claim No	
		Physician		Gender	Female
		Treatment Calendar		Status	Active

Incident

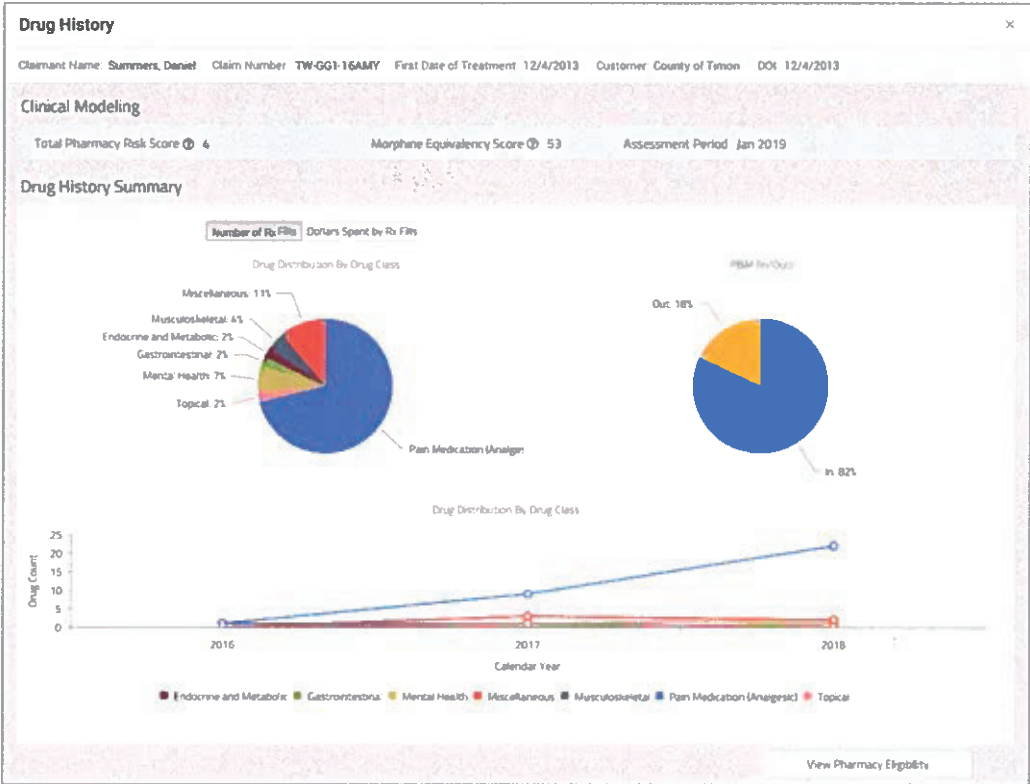
Description of Loss	
Date Received	6/21/2012
Date Employer Notified	
Nature of Injury	Sprain
Cause of Injury	Strain or Injury By Lifting

Medical Screen

Provides all details related to diagnosis, medical treatment, bill review and pharmacy.



Screenshots of Claims System



Drug History Summary

View pharmacy information including number of pharmacy fills, drug distribution, dollars spent, pharmacy risk score and morphine equivalency score.



Screenshots of Claims System



The Edge Clinical Modeling Screen

CorVel has developed a proprietary set of rules in our system to flag specific indicators such as high narcotics usage, multiple prescribers, and certain drug combinations that can contribute to rising costs or lead to harmful conditions such as addiction and prescription abuse.



Screenshots of Claims System



Pharmacy Eligibility

CorVel's pharmacy eligibility screen displays information regarding the status of pharmacy eligibility, effective date, termination date, pharmacy claim classification, authorized medications and authorized prescribers.



Screenshots of Claims System

CS Financial Data

As Of Date: 6/1/2016

Reserves & Payments

Reserve History

Subrogation/Recovery

Claim #

AB-10-000007

Claimant

Sharon Perry

Company

ACME Brands

Date of Incident

1/16/2010

Export Worksheets

Posted Summary

	Category	Current Paid	Current Reserve	Current Incurred	Last Reserve Change
Detail	Allocated Expense	\$4,551.73	\$448.27	\$5,000.00	6/3/2011
Detail	Indemnity	\$105,918.00	\$834.00	\$106,752.00	8/26/2014
Detail	Medical	\$83,262.84	\$1,737.86	\$85,000.00	6/26/2011
		\$193,731.77	\$1,950.33	\$196,782.00	

Claim Payment History

Export to Excel

Check Date	Check Number	Payee	Reserve Category	Pay Type	Pay Type Description	Beginning Period	Ending Period	Check Status	Yolled	Type	Requester	Amount	Check Image
08/26/2014	3100	Sharon K. Murphy	PER	21	Permanent Partial Disability	10/20/2011	10/26/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3125	Sharon K. Murphy	PER	21	Permanent Partial Disability	10/27/2011	11/02/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3145	Sharon K. Murphy	PER	21	Permanent Partial Disability	12/15/2011	12/21/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3146	Sharon K. Murphy	PER	21	Permanent Partial Disability	11/24/2011	11/30/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3122	Sharon K. Murphy	PER	21	Permanent Partial Disability	11/03/2011	11/09/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3144	Sharon K. Murphy	PER	21	Permanent Partial Disability	12/01/2011	12/07/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3123	Sharon K. Murphy	PER	21	Permanent Partial Disability	11/10/2011	11/16/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3140	Sharon K. Murphy	PER	21	Permanent Partial Disability	12/22/2011	12/28/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3139	Sharon K. Murphy	PER	21	Permanent Partial Disability	11/17/2011	11/23/2011	CABIN	No	Check	Perry, Jessica	\$834.00	
08/26/2014	3149	Sharon K. Murphy	PER	21	Permanent Partial Disability	12/08/2011	12/14/2011	CABIN	No	Check	Perry, Jessica	\$834.00	

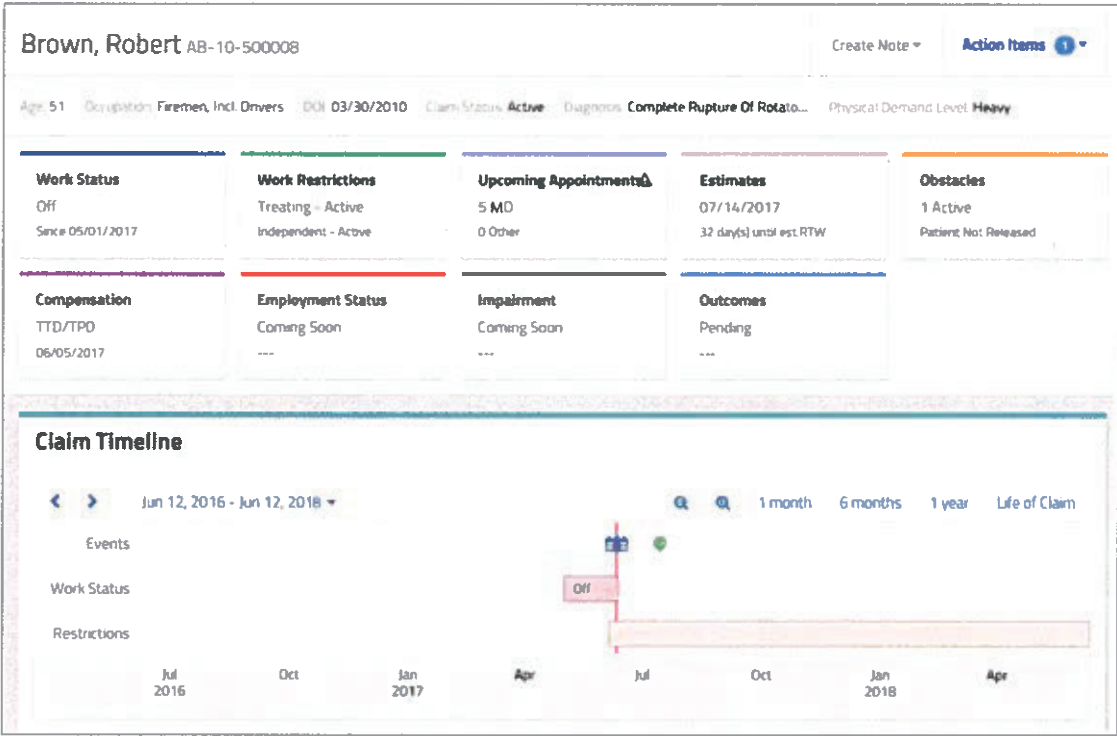
Financial Data

Displays detailed financial information such as reserves and claim payment history.

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Screenshots of Claims System



Return to Work Module

Provides key details related to the injured worker’s return to work initiatives including work restrictions, upcoming appointments, estimated RTW dates, actual RTW dates and RTW outcomes.



Screenshots of Claims System

Claim Details Calderon, Cathy AB 16 010102 [L]

Incident/Injury

Contacts

Medical

Financial

Documents/Notes

Legal

Services

Reference

New Service Referral

All

Claim Type Medical Only (MO)

Status Active

Multiple Claims Yes

SSN 222-33-4444

Date of Birth

Gender

Date of Incident 04/21/2016

Date of Hire 04/01/2000

Marital Status

Jurisdiction State OR

Policy Effective Date

Flags OSHA

Employer West - Sales

Customer ACME Brands

Adjuster Smith, John

Jurisdiction Claim No

Policy Term Date

Policy

OSHA 300/301

OSHA Form 301 Employee Information

Full Name (1) Cathy Calderon DOB (3)

Date Hired (4)* 04/01/2000

Gender (5)

Street (2) 222 NW London Street

City Beaverton

State OR

Zip 97006

OSHA Form 301 Health Care Information

Physician Name (6)* Marcus Welby

Treatment Facility (7) Broadway Medical Clinic

City Santa Monica

OSHA Form 301 Injury/Illness Information

Time Began Work (12)*

Active Before Incident (14)*

Incident Description (15)*

Nature of Injury/Illness (16)*

Cause of Injury/Illness (17)*

Employer's name ACME Brands

City Portland State OR

Identify the person

Describe the case

Classify the case

(A) Case No

(B) Employee's Name

(C) Job Title (e.g. Welder)

(D) Date of Injury or Illness (e.g. Loading dock north end) or onset of illness

(E) Where the event occurred

(F) Describe injury or illness, parts of body affected, and circumstances that directly injured or made person ill (e.g. Second degree burns on right forearm from oxytime torch)

Classify the case (Check ONLY ONE box for each case based on the OSHA 1904.10(b)(1) criteria)

Enter the number of days the injured or ill worker was or is unable to work

Check the "Injury" column or check one type of illness

Remained at Work

On job

Days away from work (G)

Job transfer or restriction (H)

Other recordable cases (I)

Days lost work (J)

Transfer or restriction (K)

(1) (2) (3) (4) (5) (6)

AD-15-010006 Colleen, Vicki 10/15 opened box-car hand with box body opened box-car hand with box body

AD-15-010006 James, James 10/08 4 employees were working and fell climbing upon a tall pipe

AD-15-010007 James, Test 11/01 Employee was walking down steps, tripped and fell causing strain to left ankle (1)

AD-15-010007 Colleen, Vicki 11/10 hand slipped off of post (opening a metal part)

AD-15-010007 Colleen, Vicki 12/11 slipped surface along narrow job duties (lifting part)

Totals 0 9 0 11 0 0 0 0 0 0 0 0 0 0 0 0

OSHA 300/301 and OSHA Reports

Tracks lost time through module and can pre-populate the information in online system. The log will populate the form and be reviewed before submitting. System maintains absence information so that OSHA 300 reports are accurate using the Federal reporting standards.

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Screenshots of Claims System

Claim Details - Butler, Grace: AB-10-500019 [EC]

Incident/Injury

Contacts

Medical

Financial

Documents/Notes

Legal

Services

All

Claim Type

Indemnity [IND]

Status

Active

Date of Incident

04/29/2016

Multiple Claims

No

Date of Hire

08/22/2015

SSN

333-00-1843

Marital Status

Adjuster: Smith, John

Attorney Assigned

Claim Witness List

Investigation Profile

Litigation Profile

Claim Witness List

Name

John Smith

Home Phone

(415)238-7331

Work Phone

(415)555-5121

Address

627 Oak St

City

San Francisco

State

CA

Zip

94121

Summary of Witness Statement

Mr Smith has indicated that on March 31, 2012 at approximately 2:30 pm, he witnessed a shelving unit topple on the element, pinning the claimant to the ground. Mr. Smith and several others attempted to lift the shelves but could not.

Litigation Profile

Litigated

☒

Litigated Date

06/14/2016

Hearing/Trial Date

☐ N/A ☒ Hearing ☐ Trial 06/14/2016 Tuesday

Claimant Self Represented

☐

Date Claimant Represented by Attorney or by self

05/27/2016

Date Referred to Defense Counsel

05/29/2016

Court / Room

Judge / Commissioner

Disclosure Form Received

☐

Disclosure Form Date

Contested Issues

Medical Treatment

Comments

Appeal

-- Select --

Date of Appeal

Disposition Type

-- Select --

Disposition Date

Mass Tort Indicator

☐

Results

Save

Legal Screen

Provides detailed information related to litigation.

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Screenshots of Claims System

CareTFC

Search by Claim # or Name

DocumentsTasksFavorites

IntakeInterralsITSPClaimsClaims ManagementBill ReviewReportsTools

Edge

My Claims99NewBills58Claim Alerts10Case Management30ActivePharmacy Services95ActiveSpecialty Services162Active

My High Priority Claims

High Pharmacy Risk Score	159	Howell, James	VA-K276-700P	
Recent Activity on Aged Claim	276 Days	Woods, Franklin	40-941-945-11P	
UM Surgery Certified	Inpatient	Summers, Daniel	TH-001-16AMF	
Treatment Beyond Guidelines	14 Treatments	Rader, Bobby	CT-18-010021	
Penalties	Past Due 6 Days	Hunzinger, Jerry	WGS-333-RS	
Penalties	Past Due 3 Days	Malone, Kelly	UM1-67-JLAS	
Out of Network Pharmacy	1 Bill	Bennett, Christine	789-GGG-12	
High Dollar	\$8,279.74	Graham, Louise	CT-17-010754	
Attorney Involved		Chambers, Dean	BA-017-JW3-WB	
Aged Bill	Beyond 2 days	Price, Madison	TE-2746-1466A	

Care^{MC} Edge

The Edge modernizes claims processing and adapts to the way people need to work. This sophisticated module facilitates quicker decision making by prioritizing information that is easily actionable.



Screenshots of Claims System

Details

Submitted By

Manager, Risk

Date Submitted

6/19/2019

Customer, Location & Type of Loss

Customer

ACME Brands

Location Level

Central - Manufacturing

Type of Loss

General Liability

Claim Information

Accident State

MN - Minnesota

City

Minneapolis

Date

06/17/2019

Location of Loss

Intersection of Hennepin and 1st Ave

Description of Loss

claimant slipped and fell in icy parking lot

Your Name

Darcy Musack

Your Company

Acme

Your Contact Information

612-437-8518

Claim Origin

Web

Claim Notes

Investigation

Police Involved?

Investigating Agency

Officer's Name

Investigation Comments

Police Report Number

Officer's Phone Number

Badge Number

Close

General Liability Claim Details

View claim details such as accident information, investigations, loss type and witnesses.

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Screenshots of Claims System

Details

Customer, Location & Type of Loss

Customer	ACME Brands	Location Level	North - Sales	Type of Loss	Automobile Liability
----------	-------------	----------------	---------------	--------------	----------------------

Claim Information

Accident State	TX - Texas	City	Dallas	Date	04/01/2020
Location of Loss	Intersection of Main and 2nd		Description of Loss	Employee turned left into the intersection to get on 2nd St. and made contact with a car turning right onto 2nd.	
Your Name	Jane Doe		Your Company	XYZ	
Your Contact Information	123-456-7890		Claim Origin	Other	
Claim Notes					

Investigation

Police Involved?	☐	Police Report Number	
Investigating Agency		Officer's Phone Number	
Officer's Name		Badge Number	
Investigation Comments			

Auto Liability - Client Driver/Policy Information

Close

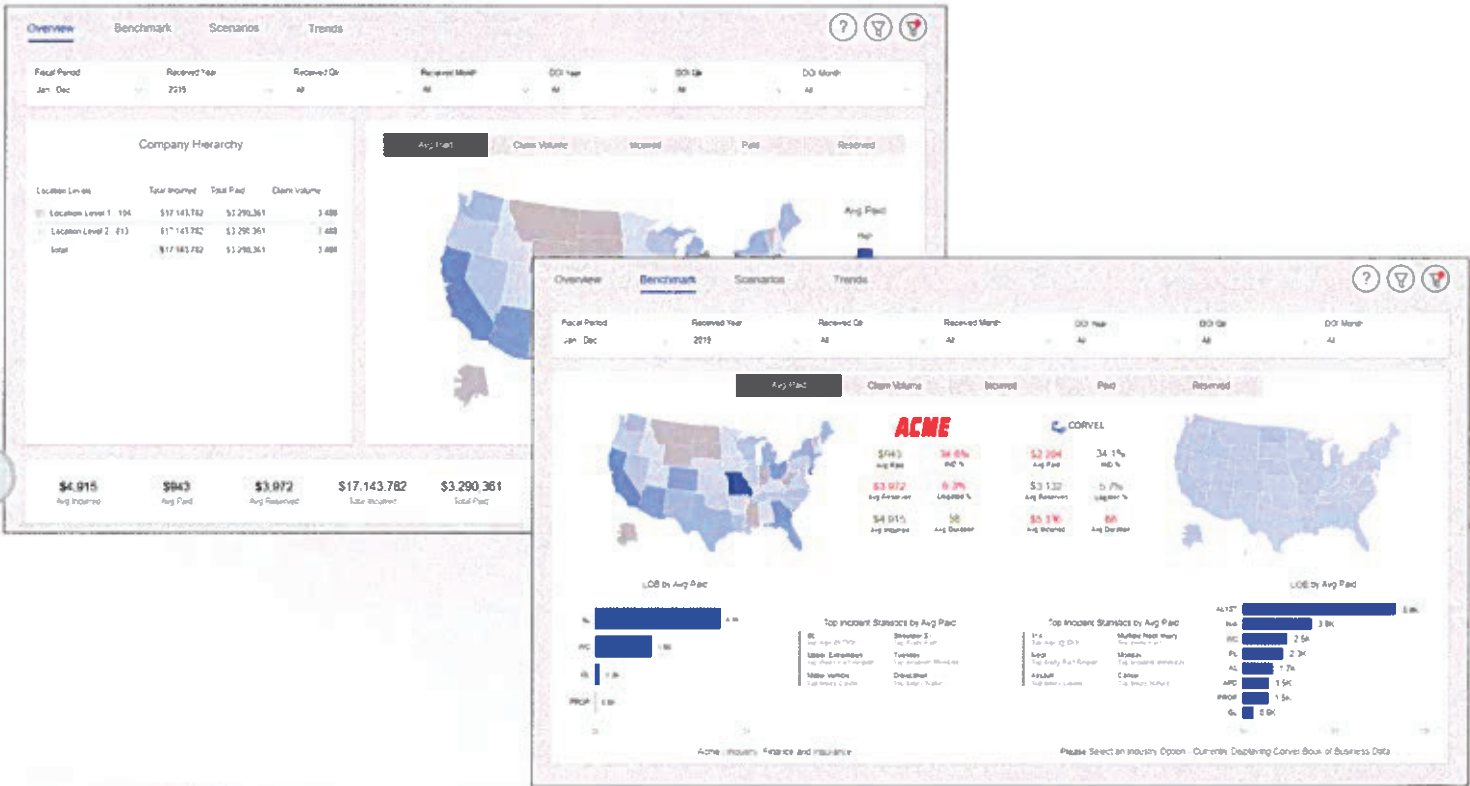
Auto Liability Claim Details

View claim details such as bodily injury, insured driver profile, accident type and witnesses.

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Screenshots of Claims System



Executive Dashboard

The Executive Dashboard provides a dynamic and interactive high-level overview of your entire program. It offers complete visibility and real time updates, helping you proactively manage your program.



Screenshots of Claims System

Select a Report

Expand All

Collapse All

Claim

Claim Change Comparison

List of changes on claims valued compared at two selected points in time.

Claim History

Provides a list of claimant history consisting of value changes over time during a selected date range

Claim Log

Provides a list of open and re-opened claims received during a specified time period.

Claims Received Count

Provides a count of claims received from a customer month by month within a fiscal year.

Custom Loss Run

Loss report that includes individual claim information that can be filtered and arranged according to a multitude of report parameters and valuation

Customer Custom Field Data Extract

Report that outputs claims that have at least 1 and up to 25 Customer Custom field values as well as other high level claim information.

Overall Claims Summary

One page summary of a variety of claim metrics

Claim History

Parameters

Customer

Alpha Brands

Location Level

State 1State 2State 3State 4State 5

Location Description

Location

City

State

	City	Description
☐	Central	Central
☐	East	East
☐	North	North
☐	South	South
☐	West	West

Apply Date Range to

State 1Inventor not usedState 2Employer not usedDate of injury

Date Range

Last Week

Selected Date Range

8/15/20178/12/2017

Status

AllOpen and ReopenedOpenReopenedClosed

Filters

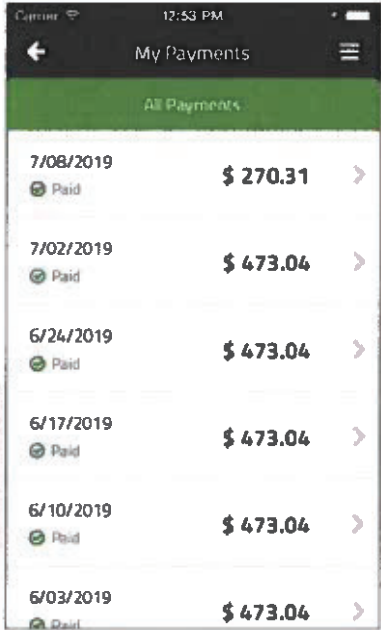
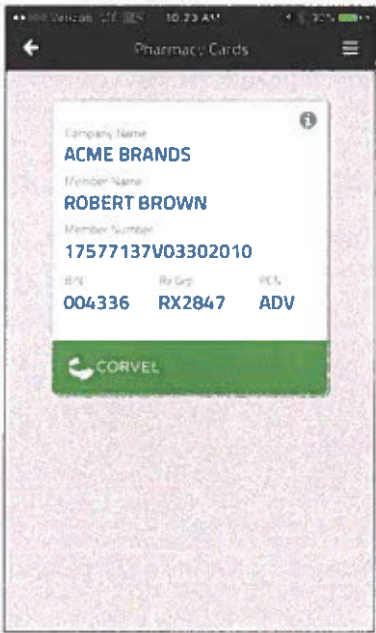
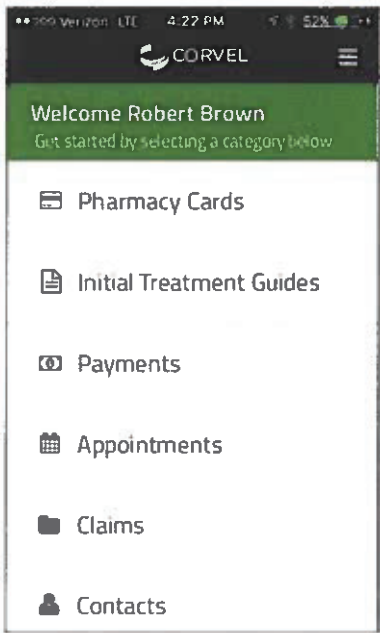
Grids

Reporting Module

A robust reporting module to customize and generate thousands of reports specific to your reporting needs.



Screenshots of Claims System



My Care App

The My Care App provides injured workers with access to their initial treatment guide, permanent pharmacy card, disability payments, doctor’s appointments and more.



Appendix E

Sample Workers' Compensation Report Package



Claims Management Analytics Capabilities

Workers' Compensation Claim Detail Report.....2

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OSHA Form 300, 300A and 301.....11

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Claims Scorecard19

Claims Safety Dashboard24

Ad Hoc Reporting.....26



Workers' Compensation Claim Detail Report

Description

The Workers' Compensation Claim Detail Report includes individual claim information that can be filtered and arranged according to a multitude of report parameters and valuations. This report includes individual claim information that can be valued as of different points in time.

Features

- Displays a large variety of claim related information including claim detail for all claims, all open claims or closed claims.
- Data can be categorized by numerous filters including accounting code, claimant name, class code, coverage line, injury year, location levels, purpose code, denied or delayed status, status date, claim specialist, classification code, social security number, injury date range, nature of injury, type of accident, occupation, part of body injured and financial information.
- Due to the amount of detail provided, this report is great for analytical work.
- Reports can be generated as an Adobe PDF, CSV or Microsoft Excel file and can be emailed to the user.



Standard Loss Run: Claim Detail
For open and reopened claims
For Finance Amount Detail Level: None
Claim status and finance amounts as of 04/07/2017
ABC Company
Location Level 2: All Locations
Finance Detail Level 2: All

HIPPA WARNING - This report contain protected patient information

Claim Number:	AB-14-000207	Location Level 1:	619				
Cov/Class/SubClass:	WC/IND/	Status:	Open	Status Date:	08/19/2013	Subrogation:	No
Claimant:	XXXXXXXXXX	Jurisdiction:	California	Injury Date:	08/16/2013	Avg WW:	\$202.74
Accident Description:	Employee was cleaning up the trash and e-commerce orders and as she lifted a box, she felt a very sharp pain in her right arm. (Cleaning up the trash and E-commerce orders.)	Claimant Age:	44	Administrative Notified Date:	08/19/2013	Comp Rate:	\$160.00
Nature of Injury:	Strain	Jurisdiction Claim No:		Finance Detail Level 2	Paid-to-Date	Reserved	Incurred
Primary:	Multiple Upper Extremities	Type of Loss:	Trauma	ALE	\$29,019.66	\$9,815.81	\$38,835.47
Accident Type:	*Captured Data	Benefit Type:	Temporary Total Injury	IND	\$7,954.28	\$2,432.88	\$10,387.16
Source of Injury:	Lifting			MED	\$18,191.83	\$19,722.61	\$37,914.44
Occupation:	Third Assistant Manager			PER	\$0.00	\$3,360.00	\$3,360.00
Job Class:	8017/Store; Retail NOC & Drivers	Litigation:	Yes	Gross	\$55,165.77	\$35,331.30	\$90,497.07
Policy Number:	21WNS17605	Policy Effective Date:	04/08/2013	Recoveries	\$0.00		\$0.00
Policy Termination Date:	01/30/2014	Company Claim No	2013-WC-5117	Net	\$55,165.77		\$90,497.07
Accident State	California						





Standard Loss Run: Claim Detail
For open and reopened claims
For Finance Amount Detail Level: None
ABC Company
Location Level 2: All Locations
Finance Detail Level 2: All

HIPPA WARNING - This report contain protected patient information

	Finance Detail Level 2	Paid-to-Date	Reserved	Incurred
	ALE	\$534,809.13	\$262,464.86	\$797,273.99
	BI	\$0.00	\$128,350.00	\$128,350.00
	IND	\$275,411.18	\$103,280.67	\$378,691.85
	MED	\$681,852.87	\$512,627.30	\$1,194,480.17
	N/A	\$0.00	\$0.00	\$0.00
	PD	\$0.00	\$100.00	\$100.00
	PER	\$89,507.30	\$192,735.57	\$282,242.87
	Gross	\$1,581,580.48	\$1,199,558.40	\$2,781,138.88
	Recoveries	\$0.00		\$0.00
	Net	\$1,581,580.48		\$2,781,138.88

	Open	Reopened	Total
# of Claims	156	14	170



Payment Register Detail Report

Description

The Payment Register Detail Report summarizes payments issued between two dates and can be filtered and arranged according to different report parameters.

Features

- The report provides payment information sorted by check number and additional parameters based on filters and groups selected.
- The report body lists checks that match the parameters selected.
- Shows each payment issued on or within the check date range selected and matching other parameters.
- Report parameters, groups and filter combinations can be saved for future reports.
- Reports can be generated as an Adobe PDF, CSV or Microsoft Excel file and can be emailed to the user



Payment Register Detail

For all Checks dated 03/01/2017 - 03/31/2017

ABC Company

Locations: All

HIPAA WARNING - This report contain protected patient information

Check Number	Payment Code	Date Issued Class	Date Of Injury	Payee Claim Number	Type Service Dates	Description Claimant	Payment Amount
1017566	CHECK	03/01/2017 IND	12/02/2015	Butler Memorial Hospital AB16-000700	HOSPITAL 12/28/2015 - 12/28/2015	040010262541 XXXXXXXXXXXX	\$91.56
1017567	EFT	03/01/2017 IND	12/02/2015	CorVel Corporation AB-16-000700	BILL REVIEW ALE 12/28/2015 - 12/28/2015	040010262541 XXXXXXXXXXXX	\$8.50
1017568	EFT	03/01/2017 IND	12/02/2015	CorVel Corporation AB-16-000700	BILL REVIEW ALE 02/11/2016 - 02/11/2016	040010261731 XXXXXXXXXXXX	\$8.50
1017569	CHECK	03/01/2017 IND	12/02/2015	Butler Memorial Hospital AB-16-000700	HOSPITAL 04/21/2016 - 04/21/2016	040010261741 XXXXXXXXXXXX	\$112.50
1017570	EFT	03/01/2017 IND	12/02/2015	CorVel Corporation AB-16-000700	BILL REVIEW ALE 04/21/2016 - 04/21/2016	040010261741 XXXXXXXXXXXX	\$8.50
1017571	EFT	03/01/2017 IND	11/29/2015	CorVel Corporation AB-16-000678	TELEPHONIC CASE 02/07/2017 - 02/28/2017	C29505089097 XXXXXXXXXXXX	\$731.50
1017572	CHECK	03/01/2017 IND	12/02/2015	Butler Memorial Hospital AB-16-000700	HOSPITAL 12/29/2015 - 12/29/2015	040010261751 XXXXXXXXXXXX	\$2,415.48
1017573	EFT	03/01/2017 IND	12/02/2015	CorVel Corporation AB-16-000700	BILL REVIEW ALE 12/29/2015 - 12/29/2015	040010261751 XXXXXXXXXXXX	\$8.50
1017574	EFT	03/02/2017 IND	07/15/2014	CorVel Corporation AB-15-000249	BILL REVIEW ALE 01/06/2017 - 01/06/2017	040010274431 XXXXXXXXXXXX	\$8.50
1017575	EFT	03/03/2017 IND	11/29/2015	MD Now Medical Centers, Inc. AB-16-000678	MED OTHER 02/09/2017 - 02/09/2017	046036304931 XXXXXXXXXXXX	\$264.13
1017576	EFT	03/03/2017 IND	11/29/2015	CorVel Corporation AB16-000678	BILL REVIEW ALE 02/09/2017 - 02/09/2017	046036304931 XXXXXXXXXXXX	\$14.70
1017577	CHECK	03/03/2017	01/28/2016	Susan Bennett, PT PC	PHYS THERAPY	040010253631	\$49.60



Payment Register Detail
For all Checks dated 03/01/2017 - 03/31/2017
ABC Company
Locations: All

HIPAA WARNING - This report contain protected patient information

Finance Detail Level 2		Payment Amount
ALE		\$39,271.93
BI		\$2,302.26
IND		\$26,961.35
MED		\$82,782.13
PER		\$55,649.58
Report Total	# of Payments: 671	\$206,967.25



Loss Experience Summary Report

Description

The Loss Experience Summary Report shows the number of open and closed claims and associated financial information that can be filtered and arranged according to different report parameters.

Features

- Boundaries for the report can be tailored per client's request via CorVel's claims management system.
- Data is sorted by the fiscal year selected.



Loss Experience Summary
For all claims with Injury Year (FY) 2017
For Finance Amount Detail Level: None
Location Level 5: All Locations

	Claims				Category Level 2	Paid-to-Date	Reserved	Incurred	Recovery
	Open	Closed	Total	% Closed					
Quarter Issued: Qtr 1									
Month Issued: 02 February									
0	34	36	94.44%	N/A	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00	
				ALE	\$ 20,773.82	\$ 8,656.40	\$ 29,430.22		
				BI	\$ 6,200.00	\$ 0.00	\$ 6,200.00		
				IND	\$ 8,537.93	\$ 5,516.27	\$ 14,054.20		
				MED	\$ 68,017.94	\$ 10,070.21	\$ 78,088.15		
				PD	\$ 2,304.53	\$ 0.00	\$ 2,304.53		
				PER	\$ 210.00	\$ 4,273.87	\$ 4,483.87		
				Total	\$ 106,044.22	\$ 28,516.75	\$ 134,560.97		
Month Issued: 03 March									
0	37	38	97.37%	ALE	\$ 23,488.15	\$ 3,418.80	\$ 26,906.95	\$ 0.00	
				BI	\$ 0.00	\$ 0.00	\$ 0.00		
				IND	\$ 22,949.69	\$ 2,500.00	\$ 25,449.69		
				MED	\$ 57,422.11	\$ 5,092.58	\$ 62,514.69		
				PER	\$ 9,236.03	\$ 50,000.00	\$ 59,236.03		
				Total	\$ 113,095.98	\$ 61,011.38	\$ 174,107.36		
Month Issued: 01 January									
0	17	30	56.67%	ALE	\$ 1,142.74	\$ 4,558.05	\$ 5,700.79	\$ 0.00	
				BI	\$ 0.00	\$ 2,600.00	\$ 2,600.00		
				IND	\$ 3,220.22	\$ 2,923.46	\$ 6,143.68		
				MED	\$ 14,595.45	\$ 16,226.80	\$ 30,822.25		
				PER	\$ 0.00	\$ 1,051.88	\$ 1,051.88		
				Total	\$ 18,958.41	\$ 27,360.19	\$ 46,318.60		
Total for Quarter Issued: Qtr 1									



Loss Experience Summary

For all claims with Injury Year (FY) 2017

For Finance Amount Detail Level: None

Location Level 5: All Locations

Claims				Category Level 2	Paid-to-Date	Reserved	Incurred	Recovery
Open	Closed	Total	% Closed					
16	88	104	84.62%	N/A	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
				ALE	\$ 45,404.71	\$ 16,633.25	\$ 62,037.96	
				BI	\$ 6,200.00	\$ 2,600.00	\$ 8,800.00	
				IND	\$ 34,707.84	\$ 10,939.73	\$ 45,647.57	
				MED	\$ 140,035.50	\$ 31,389.59	\$ 171,425.09	
				PD	\$ 2,304.53	\$ 0.00	\$ 2,304.53	
				PER	\$ 9,446.03	\$ 55,325.75	\$ 64,771.78	
				Total	\$ 238,098.61	\$ 116,888.32	\$ 354,986.93	



OSHA Form 300, 300A and 301

Description

- OSHA Form 300 – This is the OSHA Log of Work-Related Illness and Injuries. Federal law requires employers to record all reportable injuries and illness that occur in the workplace on this form.
- OSHA Form 300A – This is the OSHA Summary of Work-Related Injuries and Illnesses. Federal law requires employers to post this form in the workplace annually.
- OSHA Form 301 – This is the OSHA Injury and Illness Incident Report which is required by the United States Department of Labor's Occupational Safety and Health Administration (OSHA) for employer provided workplace incident records.

Features

- Easily create all OSHA Forms and print instantly
- Enter date ranges to get information for each calendar year

OSHA's Form 300
Log of Work-Related Injuries and Illnesses

(Rev. 01/2004)

Attention: This form contains information relating to employee health and must be used in a manner that protects the confidentiality of employees to the extent possible while the information is being used for occupational safety and health purposes.

Year 2017
U.S. Department of Labor
Occupational Safety and Health Administration

Form approved OMB no. 1218-0176

You must record information about every work-related injury or illness that involves loss of consciousness, restricted work activity or job transfer, days away from work, or medical treatment beyond first aid. You must also record significant work-related injuries and illnesses that are diagnosed by a physician or licensed health care professional. You must also record work-related injuries and illnesses that meet any of the specific recording criteria listed in 29 CFR 1904.8 through 1904.12. Feel free to use two lines for a single case if you need to. You must complete an injury and illness incident report (OSHA Form 301) or equivalent form for each injury or illness recorded on this form. If you're not sure whether a case is recordable, call your local OSHA office for help.

Establishment name _____
City _____ State _____

Identify the person			Describe the case			Classify the case		Enter the number of		Check the "Injury" column							
(A) Case No.	(B) Employee's Name	(C) Job Title (e.g., Welder)	(D) Date of injury or onset of illness	(E) Where the event occurred (e.g. Loading dock north end)	(F) Describe injury or illness, parts of body affected, and object/substance that directly injured or made person ill (e.g. Second degree burns on right forearm from acetylene torch)	CHECK ONLY ONE box for each case based on the most serious outcome for that case:		days the injured or ill worker was:		or chose one type of illness:							
						Remained at Work				On job							
						Death	Days away	Job transfer	Other record-	Away from	transfer or						
						(G)	(H)	(I)	(J)	(K)	(L)	(1)	(2)	(3)	(4)	(5)	(6)
KI-17-000958	XXXXX	Team Member	01/06		Team Member was stocking <u>jarred candles on shelf</u> and in the process felt a pain in her left hand. (Strain/Sprain)				X	0 days	0 days	X					
KI-17-000958	XXXXX	Team Member	01/07		Employee was rearranging supplies. She moved a ladder and knocked a riser off of a shelf <u>striking her on the head.</u> (Struck by)				X	0 days	0 days	X					
KI-17-000961	XXXXX	STORE MANAGER	01/09		Employee was setting an art easel and the top part of teh easel fell on her finger. ()				X	0 days	0 days	X					
KI-17-000969	XXXXX	Third Assistant Manager	01/12		Employee was unloading the freight truck. She picked up a very large leaner mirror and strained her lower back. (Strain/Sprain)				X	0 days	0 days	X					
KI-17-000978	XXXXX	Team Member	01/13		Employee was on a ladder assisng another TM with getting down a couple of swings. The swings started to fall and the employee twisted her back on preventing herself from falling with the swings (Strain/Sprain)				X	0 days	0 days	X					

Public reporting burden for this collection of information is estimated to average 14 minutes per response, including time to review the instruction, search and gather the data needed, and complete and review the collection of information. Persons are not required to respond to the collection of information unless it displays a currently valid OMB control number. If you have any comments about these estimates or any aspects of this data collection, contact: US Department of Labor, OSHA Office of Statistics, Room N-3644, 200 Constitution Ave, NW, Washington, DC 20210. Do not send the completed forms to this office.

(1) Injury
(2) Skin disorder
(3) Respiratory condition
(4) Poisoning
(5) Hearing loss
(6) All other illnesses

OSHA's Form 300A (Rev. 01/2004)
Summary of Work-Related Injuries and Illnesses

Year 2017
U.S. Department of Labor
Occupational Safety and Health Administration
Form approved OMB no. 1218-0176

All establishments covered by Part 1904 must complete this Summary page, even if no work-related injuries or illnesses occurred during the year. Remember to review the Log to verify that the entries are complete and accurate before completing this summary.

Using the Log, count the individual entries you made for each category. Then write the totals below, making sure you've added the entries from every page of the Log. If you had no cases, write "0."

Employees, former employees, and their representatives have the right to review the OSHA Form 300 in its entirety. They also have limited access to the OSHA Form 301 or its equivalent. See 29 CFR Part 1904.35, in OSHA's recordkeeping rule, for further details on the access provisions for these forms.

Number of Cases			
Total number of deaths	Total number of cases with days away from work	Total number of cases with job transfer or restriction	Total number of other recordable cases
0	17	8	64
(G)	(H)	(I)	(J)

Number of Days	
Number of days away from work	Total number of days of job transfer or restriction
397	199
(K)	(L)

Injury and Illness Types			
Total number of ...			
(M)			
(1) Injuries	89	(4) Poisonings	0
(2) Skin disorders	0	(5) Hearing loss	0
(3) Respiratory conditions	0	(6) All other illnesses	0

Post this Summary page from February 1 to April 30 of the year following the year covered by the form.

Public reporting burden for this collection of information is estimated to average 58 minutes per response, including time to review the instructions, search and gather the data needed, and complete and review the collection of information. Persons are not required to respond to the collection of information unless it displays a currently valid OMB control number. If you have any comments about these estimates or any other aspects of this data collection, contact: US Department of Labor, OSHA Office of Statistical Analysis, Room N-3644, 200 Constitution Avenue, NW, Washington, DC 20210. Do not send the completed forms to this office.

Establishment information

Your establishment name

Street

City

State

ZIP

Industry description (e.g., Manufacture of motor truck trailers)

Standard Industrial Classification (SIC), if known (e.g., 3715)

OR

North American Industrial Classification (NAICS), if known (e.g., 336212)

Employment Information

Annual average number of employees

Total hours worked by all employees

100.00

Sign Here

Knowingly falsifying this document may result in a fine.

I certify that I have examined this document and that to the best of my knowledge the entries are true, accurate, and complete.

Company executive

Title

Phone

Date

Optional

Calculating Injury and Illness Incidence Rates

Worksheet

Total number of injuries and illnesses				Number of hours worked by all employees		Total recordable case rate
89	X	200,000	÷	100.00	=	178,000.00
Number of entries in column H + column I				Number of hours worked by all employees		DART incidence rate
25	X	200,000	÷	100.00	=	16,000.17



OSHA's Form 301

Injury and Illness Incident Report

Attention: This form contains information relating to employee health and must be used in a manner that protects the confidentiality of employees to the extent possible while the information is being used for occupational safety and health purposes.



U.S. Department of Labor
Occupational Safety and Health Administration

Form approved OMB no. 3218-0176

This *Injury and Illness Incident Report* is one of the first forms you must fill out when a recordable work-related injury or illness has occurred. Together with the *Log of Work-Related Injuries and Illnesses* and the accompanying *Summary*, these forms help the employer and OSHA develop a picture of the extent and severity of work-related incidents.

Within 7 calendar days after you receive information that a recordable work-related injury or illness has occurred, you must fill out this form or an equivalent. Some state workers' compensation, insurance, or other reports may be acceptable substitutes. To be considered an equivalent form, as a substitute must contain all the information as on this form.

According to Public Law 91-596 and 29 CFR 1904, OSHA's recordkeeping rule, you must keep this form on file for 5 years following the year to which it pertains.

If you need additional copies of this form, you may photocopy and use as many as you need.

Information about the employee

1) Full name Gray, Daryl

2) Street 1750 Meadow Glen Drive

City Wake Forest State NC ZIP 27087

3) Date of birth 10/13/1971

4) Date hired _____

5) ☒ Male
☐ Female

Information about the physician or other health care professional

6) Name of physician or other health care professional _____

7) If treatment was given away from the worksite, where was it given?

Facility _____

Street _____

City _____ State _____ ZIP _____

8) Was employee treated in an emergency room?
☐ Yes
☒ No

9) Was employee hospitalized overnight as an in-patient?
☐ Yes
☒ No

Information about the case

10) Case number from the Log KI-17-000943 (Transfer the case number from the Log after you record the case.)

11) Date of injury or illness 01/01/2017

12) Time employee began work _____

13) Time of event 03:15:00 PM ☐ Check if time cannot be determined

14) What was the employee doing just before the incident occurred? Describe the activity, as well as the tools, equipment, or material the employee was using. Be specific. Example: "climbing a ladder while carrying roofing materials"; "spraying chlorine from hand sprayer"; "daily computer key-entry".

15) What happened? Tell us how the injury occurred. Example: "When ladder slipped on wet floor, worker fell 20 feet"; "Worker was sprayed with chlorine when gasket broke during replacement"; "Worker developed soreness in wrist over time."

16) What was the injury or illness? Tell us the part of the body that was affected and how it was affected; be more specific than "hurt," "Pain," or "sore." Example: "strained back"; "chemical burn, hand"; "carpal tunnel syndrome."

17) What object or substance directly harmed the employee? Example: "Concrete floor"; "Chlorine"; "radial arm saw." If this question does not apply to the incident, leave it blank.

18) If the employee died, when did death occur? Date of death _____

Completed by _____

Title _____

Phone # _____ Date ____/____/____





Workers' Compensation Lag Time Report

Description

The Workers' Compensation Lag Time Report shows the lag time between the date the injury occurred, the date the employer was notified and the date the injury was reported to CorVel. This report helps to understand how costly lag times may be affecting your workers' compensation program.

Features

- Data is sorted by parameters, groups and filters.
- Save a date and time for the report to be created automatically.
- Report can be exported to an Adobe PDF file, CSV and Microsoft Excel file and can be emailed to the user.



Workers' Compensation Lag
For Claims with a Date Administrator Notified From 03/01/2017 - 03/31/2017
Location Level 1: All

ACME Brands

HIPAA WARNING - This report contains protected patient information.

Location Level 2: (East) East

Claim Number	Claimant	Date of Injury	Date Employer Notified	Date Incident Reported	Date Administrator Notified	Employee Lag	Manager Lag	FNOL Lag	Total Lag
E-Man East - Manufacturing									
AB-17-010087		2/16/2017	2/16/2017	2/16/2017	3/1/2017	0	0	13	13
AB-17-010092		3/2/2017	3/2/2017	3/2/2017	3/2/2017	0	0	0	0
AB-17-010094		3/8/2017	3/8/2017		3/9/2017	0		1	1
3	(s)				Average:	0.00	0.00	4.67	4.67
Location Level 2: (East) East *Totals* 3 Claim(s)					Average:	0.00	0.00	4.67	4.67



Workers' Compensation Lag
For Claims with a Date Administrator Notified From 03/01/2017 - 03/31/2017
Location Level 1: All

ACME Brands

HIPAA WARNING - This report contains protected patient information.

Claim Number	Claimant	Date of Injury	Date Employer Notified	Date Incident Reported	Date Administrator Notified	Employee Lag	Manager Lag	FNOL Lag	Total Lag
Grand Total 3 Claim(s)			Average for All Location Level(s) 1:			0.00	0.00	4.67	4.67

**Description**

The Claims Scorecard easily compares major data elements over certain time periods. In addition, the Claims Scorecard will provide exception reporting commonly requested by Risk Manager to help manage specific claims responsible for the majority cost of your program.

Features

- The Claims Scorecard is populated on the Friday after the third day of the month with a snapshot of the previous month's data.
- Data includes: Summary of Claim Expenditures + Recovery, Payment Comparison, Changes in Claim Volume, Largest Claim Costs, Largest Paid Exposure, Largest Paid Payees by Payline and Largest Reserves.
- The largest group categories display ten claims; however, the Claims Scorecard Dashboard allows for additional claims to be viewed.
- Ability to drill down into various divisions or regions.
- The Claims Scorecard can be exported to an Adobe PDF file and Microsoft Excel file.

Claims Scorecard

Summary of Claim Expenditures + Recovery [1]

Period	Indemnity	Permanency	Medical	Expense	Total	Recovery
Mar. 2017	\$28,372	\$55,010	\$82,590	\$37,400	\$203,371	\$0
Feb. 2017	\$14,480	\$2,517	\$45,671	\$48,831	\$111,499	\$0
Jan. 2017	\$24,797	\$15,109	\$91,529	\$40,036	\$171,471	\$173
Total	\$67,650	\$72,636	\$219,789	\$126,267	\$486,341	\$173

Payment Comparison

Month Over Month			Year Over Year		
Feb. 2017	Mar. 2017	Change	FY 2017 to Mar. 31, 2016	FY 2018 to Mar. 31, 2017	Change
\$111,499	\$203,371	↑ \$91,873	\$305,780	\$314,870	↑ \$9,090

Summary of Claim Expenditures + Recovery [2]

Period	Indemnity	Permanency	Medical	Expense	Total	Recovery
Mar. 2017	\$28,372	\$55,010	\$82,590	\$37,400	\$203,371	\$0
Feb. 2017	\$14,480	\$2,517	\$45,671	\$48,831	\$111,499	\$0
Jan. 2017	\$24,797	\$15,109	\$91,529	\$40,036	\$171,471	\$173
Dec. 2016	\$29,152	\$25,053	\$67,636	\$37,973	\$159,813	\$0
Nov. 2016	\$18,462	\$44,300	\$59,729	\$33,102	\$155,593	\$0
Oct. 2016	\$14,583	\$8,641	\$53,837	\$31,354	\$108,414	\$0
Sep. 2016	\$23,520	\$6,721	\$55,267	\$33,941	\$119,449	\$0
Aug. 2016	\$20,441	\$21,769	\$86,995	\$34,769	\$163,974	\$0
Jul. 2016	\$26,426	\$2,612	\$80,847	\$35,269	\$145,154	\$0
Jun. 2016	\$17,229	\$23,560	\$61,768	\$34,088	\$136,645	\$0
May 2016	\$19,920	\$6,080	\$71,949	\$31,404	\$129,353	\$0
Apr. 2016	\$14,266	\$3,676	\$58,366	\$24,611	\$100,919	\$0
Total	\$251,648	\$215,047	\$816,182	\$422,778	\$1,705,656	\$173

Change In Claim Volume

Period	Begin	New	Reopen	Closed	Ending	Change
Mar. 2017	144	36	1	31	150	↑ 6
Feb. 2017	146	33	3	38	144	↓ 2
Jan. 2017	145	36	2	37	146	↑ 1
Total		105	6	106		↑ 5

Fiscal Activity Recap - [Mar. 2017]

	Begin	New	Reopen	Closed	End	Total Claims	Change	Current Payments	Change In Reserve	Total Incurred	Change In Incurred	Claim Average
2018	24	35	0	3	56	64	↑ 32	\$15,926	\$132,312	\$212,444	↑ \$148,238	\$3,319
2017	95	1	1	27	70	425	↓ 25	\$108,439	(\$52,222)	\$1,533,038	↑ \$56,216	\$3,607
2016	11	0	0	0	11	394	≡ 0	\$17,137	(\$4,419)	\$1,452,377	↑ \$12,718	\$3,686
2015	8	0	0	0	8	314	≡ 0	\$60,065	(\$56,065)	\$1,389,353	↑ \$4,000	\$4,425
2014	6	0	0	1	5	271	↓ 1	\$1,805	(\$31,590)	\$1,939,706	↓ (\$29,785)	\$7,158
Total	144	36	1	31	150	1,468	↑ 6	\$203,371	(\$11,985)	\$6,526,919	↑ \$191,387	\$4,446



Largest Incurred Decreases - [Mar. 2017]

Claim Number	Claimant	Injury Date	Incurred
KI-14-000382		11/29/2013	(\$51,726)
KI-17-000793		11/23/2016	(\$5,256)
KI-17-000850		12/7/2016	(\$3,924)
KI-17-000821		11/26/2016	(\$3,665)
KI-14-000443		12/7/2013	(\$3,639)
KI-18-000027		2/8/2017	(\$2,840)
KI-17-001017		1/30/2017	(\$2,542)
KI-17-000939		12/30/2016	(\$2,476)
KI-17-000598		9/18/2016	(\$2,000)
KI-17-000897		12/17/2016	(\$1,887)

Largest incurred decreases during Mar. 2017.

Largest Incurred Decreases - [FY 2018 to Mar. 31, 2017]

Claim Number	Claimant	Injury Date	Incurred
KI-14-000382		11/29/2013	(\$51,726)
KI-17-000861		12/10/2016	(\$9,189)
KI-17-000547		8/28/2016	(\$6,921)
KI-17-000012		2/4/2016	(\$6,725)
KI-17-000396		7/11/2016	(\$6,689)
KI-17-000765		11/17/2016	(\$6,248)
KI-17-000793		11/23/2016	(\$5,256)
KI-17-000902		12/19/2016	(\$4,796)
KI-17-000821		11/26/2016	(\$3,665)
KI-14-000443		12/7/2013	(\$3,639)

Largest incurred decreases during FY 2018 to Mar. 31, 2017.

Largest Incurred Increases - [Mar. 2017]

Claim Number	Claimant	Injury Date	Incurred
KI-17-000444		7/15/2016	\$62,543
KI-18-000090		3/3/2017	\$25,920
KI-14-000207		8/16/2013	\$25,580
KI-18-000088		3/6/2017	\$10,000
KI-17-000986		1/21/2017	\$7,487
KI-18-000046		2/15/2017	\$6,834
KI-18-000061		2/20/2017	\$5,516
KI-18-000074		2/25/2017	\$5,500
KI-18-000122		3/15/2017	\$5,480
KI-18-000031		2/9/2017	\$5,000

Largest incurred increases during Mar. 2017.

Largest Incurred Increases - [FY 2018 to Mar. 31, 2017]

Claim Number	Claimant	Injury Date	Incurred
KI-17-000444		7/15/2016	\$62,943
KI-18-000090		3/3/2017	\$25,920
KI-14-000207		8/16/2013	\$25,580
KI-17-000065		3/2/2016	\$12,336
KI-18-000021		2/6/2017	\$11,500
KI-18-000088		3/6/2017	\$10,000
KI-17-001016		1/27/2017	\$9,721
KI-17-000442		7/14/2016	\$9,500
KI-18-000010		2/3/2017	\$9,229
KI-18-000061		2/20/2017	\$9,016

Largest incurred increases during FY 2018 to Mar. 31, 2017.



Largest Claim Costs - [Mar. 2017]

Claim Number	Claimant	Incident Date	Paid
KI-15-000163		5/22/2014	\$51,884
KI-17-000598		9/18/2016	\$31,010
KI-15-000141		5/4/2014	\$6,796
KI-17-000694		10/22/2016	\$5,272
KI-16-000071		3/18/2015	\$4,986
KI-17-000484		8/4/2016	\$4,878
KI-17-000198		4/7/2016	\$4,865
KI-17-000210		5/2/2016	\$4,556
KI-17-000897		12/17/2016	\$4,060
KI-17-000516		8/13/2016	\$3,829

Claims with the largest total paid during Mar. 2017.

Largest Claim Costs - [FY 2018 to Mar. 31, 2017]

Claim Number	Claimant	Incident Date	Paid
KI-15-000163		5/22/2014	\$54,845
KI-17-000598		9/18/2016	\$32,039
KI-17-000065		3/2/2016	\$9,334
KI-17-000255		5/17/2016	\$8,949
KI-17-000694		10/22/2016	\$7,952
KI-17-000563		9/2/2016	\$7,927
KI-15-000141		5/4/2014	\$7,126
KI-17-000516		8/13/2016	\$7,071
KI-15-000249		7/15/2014	\$6,864
KI-17-000198		4/7/2016	\$6,438

Claims with the largest total paid during FY 2018 to Mar. 31, 2017.

Largest Paid Exposure - [Mar. 2017]

Payee	Payline	Paid
Mary Blenkinski C/O Chandler Law Firm	PER	\$49,874
Sierra Providence East Medical Center	MED	\$26,770
Debbie Collins And Her Attorney Ted Williams	IND	\$6,387
Mhhs Southeast Hospital	MED	\$4,547
Felipe Vivanco C/O Morgan And Axinn	PER	\$4,035
Morgan & Axinn, Pllc	ALE	\$4,034
Corvel Corporation	ALE	\$3,489
Butter Memorial Hospital	MED	\$2,415
Chandler Regional Medical Center	MED	\$2,415
Thorndal, Armstrong, Davis, Bakenbush, Eisinger	ALE	\$2,177

Largest single amount issued for a payee during Mar. 2017.

Largest Paid Exposure - [FY 2018 to Mar. 31, 2017]

Payee	Payline	Paid
Mary Blenkinski C/O Chandler Law Firm	PER	\$49,874
Sierra Providence East Medical Center	MED	\$26,770
St. Michaels Emergency Center	MED	\$7,840
Debbie Collins And Her Attorney Ted Williams	IND	\$6,387
Halt Booth Smith Pc	ALE	\$5,990
Mhhs Southeast Hospital	MED	\$4,547
Richard, Thorson, Graves & Royer, LLP	ALE	\$4,449
Felipe Vivanco C/O Morgan And Axinn	PER	\$4,035
Morgan & Axinn, Pllc	ALE	\$4,034
Corvel Corporation	ALE	\$3,489

Largest single amount issued for a payee during FY 2018 to Mar. 31, 2017.

Largest Paid Payees By Payline - [Mar. 2017]

Payee	Payline	Paid
Mary Blenkinski C/O Chandler Law Firm	PER	\$49,874
Sierra Providence East Medical Center	MED	\$26,770
Corvel Corporation	ALE	\$14,106
Carnig Transportation	MED	\$6,875
Debbie Collins And Her Attorney Ted Williams	IND	\$6,387
Morgan & Axinn, Pllc	ALE	\$5,829
Mhhs Southeast Hospital	MED	\$4,547
Felipe Vivanco C/O Morgan And Axinn	PER	\$4,035
Christy Winnie	IND	\$3,993
Vocational Solutions, Inc.	ALE	\$3,399

Largest total amounts paid to single payee during Mar. 2017.

Largest Paid Payees By Payline - [FY 2018 to Mar. 31, 2017]

Payee	Payline	Paid
Mary Blenkinski C/O Chandler Law Firm	PER	\$49,874
Sierra Providence East Medical Center	MED	\$26,770
Corvel Corporation	ALE	\$22,319
Richard, Thorson, Graves & Royer, LLP	ALE	\$11,956
Carnig Transportation	MED	\$11,768
Halt Booth Smith Pc	ALE	\$8,949
St. Michaels Emergency Center	MED	\$7,840
Morgan & Axinn, Pllc	ALE	\$7,203
Debbie Collins And Her Attorney Ted Williams	IND	\$6,387
Gallivan, White & Boyd, Pa	ALE	\$4,971

Largest total amounts paid to single payee during FY 2018 to Mar. 31, 2017.



Repeaters With Open Claims - [Mar. 2017]			
Claimant	Claims	Injured	
G. J.	4	\$6,913	
J. J.	4	\$4,736	
L. Lafond	4	\$4,306	
J. Sayers	3	\$5,284	
S. Martin	2	\$92,362	
J. Kelley	2	\$55,239	
J. Young	2	\$28,846	
P. Burchett	2	\$17,648	
K. House	2	\$10,183	
M. Thomas	2	\$6,872	
Claimants with multiple accidents and a current open claim.			

All Repeaters - [Mar. 2017]			
Claimant	Claims	Injured	
L. Hon	6	\$62,311	
R. Davis	5	\$5,186	
T. Lunford	4	\$42,012	
T. Webb	4	\$14,905	
A. Jones	4	\$13,939	
G. Lynch	4	\$6,913	
J. Trane	4	\$4,736	
L. Lafond	4	\$4,306	
C. Williams	4	\$2,432	
G. Spears	4	\$507	
Claimants with multiple claims (open or closed) by total cost.			

Largest New Claims - [Mar. 2017]			
Claim Number	Claimant	Injury Date	Injured
KI-18-000090		3/3/2017	\$25,920
KI-18-000088		3/6/2017	\$10,000
KI-18-000122		3/15/2017	\$5,480
KI-18-000093		3/7/2017	\$4,761
KI-18-000110		3/6/2017	\$4,500
KI-18-000107		3/9/2017	\$4,500
KI-18-000101		3/10/2017	\$4,432
KI-18-000116		3/16/2017	\$4,015
KI-18-000121		3/17/2017	\$3,900
KI-18-000128		3/20/2017	\$3,900
Largest injured on new claims during Mar. 2017.			

Largest New Claims - [FY 2018 to Mar. 31, 2017]			
Claim Number	Claimant	Injury Date	Injured
KI-18-000090		3/3/2017	\$25,920
KI-18-000021		2/6/2017	\$11,500
KI-18-000088		3/6/2017	\$10,000
KI-18-000010		2/3/2017	\$9,229
KI-18-000061		2/20/2017	\$9,016
KI-18-000054		2/19/2017	\$8,527
KI-18-000046		2/15/2017	\$7,934
KI-18-000074		2/25/2017	\$5,500
KI-18-000122		3/15/2017	\$5,480
KI-18-000031		2/9/2017	\$5,000
Largest injured on new claims during FY 2018 to Mar. 31, 2017.			

Largest Reserves - [Mar. 2017]			
Claim Number	Claimant	Incident Date	Reserves
KI-17-000065		3/2/2016	\$63,260
KI-17-000444		7/15/2016	\$62,225
KI-17-000372		7/4/2016	\$57,940
KI-16-000678		11/29/2015	\$39,885
KI-15-000163		5/22/2014	\$35,644
KI-14-000207		8/16/2013	\$35,331
KI-17-000483		8/4/2016	\$33,765
KI-16-000203		6/7/2015	\$30,912
KI-15-000457		11/20/2014	\$30,780
KI-16-000348		8/4/2015	\$29,431
Largest reserve balances during Mar. 2017.			

Largest New Closures - [Mar. 2017]			
Claim Number	Claimant	Incident Date	Injured
KI-17-000026		2/9/2016	\$6,853
KI-17-000291		5/31/2016	\$5,738
KI-17-000897		12/17/2016	\$5,613
KI-17-000627		9/26/2016	\$2,836
KI-17-000850		12/7/2016	\$2,331
KI-17-000947		12/31/2016	\$2,219
KI-17-000746		11/7/2016	\$2,137
KI-17-000714		10/31/2016	\$2,133
KI-17-000821		11/26/2016	\$1,335
KI-17-001017		1/30/2017	\$1,158
Largest injured on a first time closure during Mar. 2017.			





Claims Safety Dashboard

Description

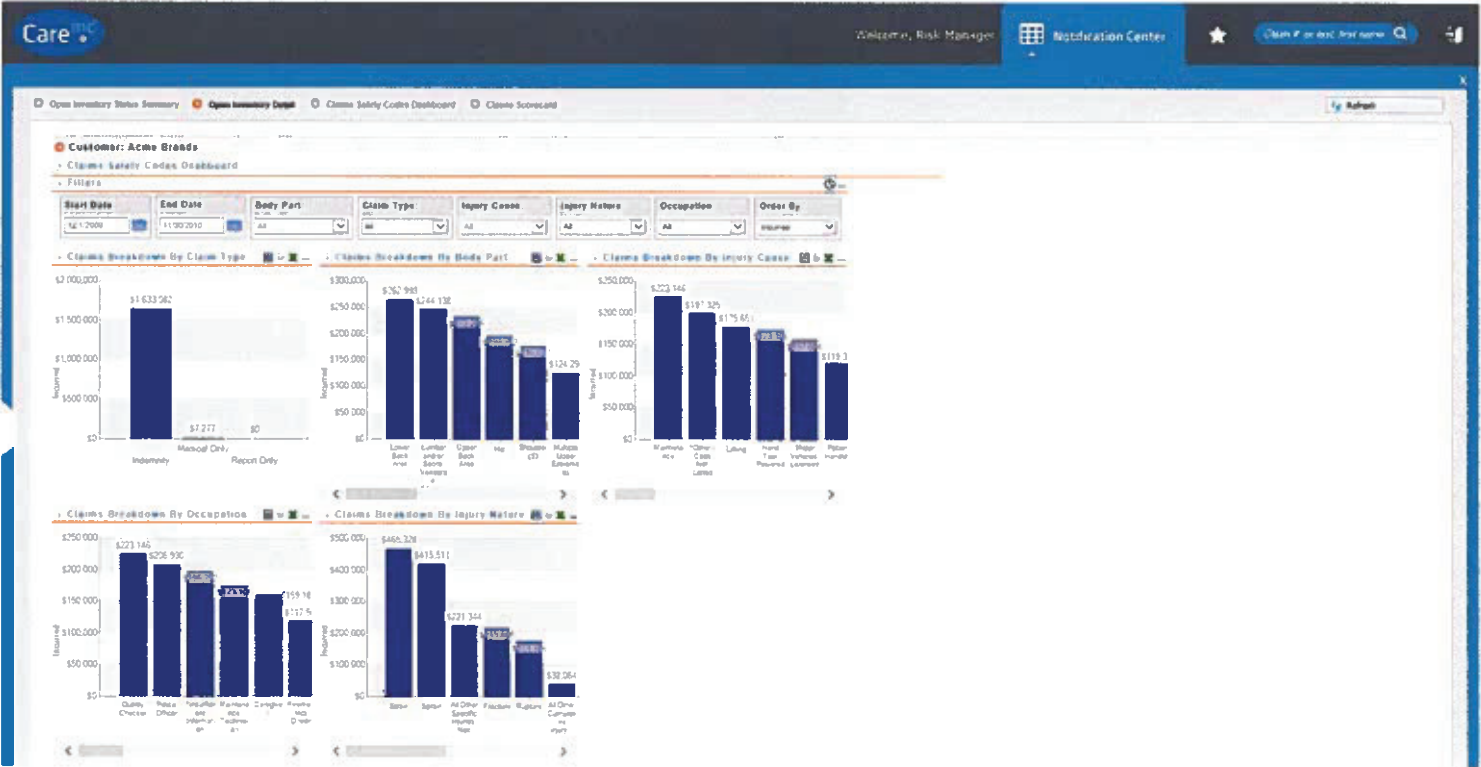
The Claims Safety Dashboard is an interactive tool that allows the user to view information sorted by various filters and displayed on easy-to-read graphs. Information is displayed on up to six different information panels based on each user's account and dashboard preference settings.

Features

- Injury cause and nature are NCCI driven.
 - Occupation can be pre-populated with the specific occupations of the employer.
 - View additional information related to specific claims – Ability to view specific information about claims that are populated in each bar within the bar graph and into various divisions or regions.
- The Claims Safety Dashboard sorts data by start date, end date, body part, claim type, injury cause, injury nature and occupation.
- Graphs reflect the filters chosen by the user.
 - Ability to hover the cursor over graphs to show additional information such as claim type, number of claims, total amount paid and incurred, reserves, number of claims closed, average amount incurred and paid, average reserve amount, etc.



Claims Safety Dashboard





Ad Hoc Reporting

CorVel's standard reporting capabilities are extensive; however, we have the ability to provide ad hoc reports for any special reporting needs. Ad hoc report inquiries can be made with data elements that we capture in the claims system. Most ad hoc reports are available in PDF and Excel formats. These reports can be run instantly or scheduled for regular output.

Choose which report to create

Open the report in PDF, email or save the report

Choose parameters, groups and filters

Name	Description	Date
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024
Overall Claims Summary	Overall Claims Summary	1/1/2024

Completed reports are ready to view



Appendix F

Sample Liability Report Package



Sample Liability Analytics Capabilities

Automobile Liability Claim Detail Report.....Page 2

Automobile Liability Summary Report.....Page 5

Liability Claim Detail Report.....Page 10

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Payment Register Detail ReportPage 22

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Automobile Liability Claim Detail Report

Description

The Automobile Liability Claim Detail Report includes individual claim information that can be filtered and arranged according to a multitude of report parameters and valuations. This report includes individual claim information that can be valued as of different points in time.

Features

- Group information by claimant, driver and accident description details. Additional information includes total amount paid to date costs by fiscal year.
- Information shown includes auto liability amount incurred, amount paid to date and cost comparisons.



Automobile Liability Claims

For all open and reopened Claims - All Fiscal Years

HIPAA WARNING - This report contains protected patient information

CENT-SALES - Central - Sales

Date of Loss	Claimant	Company Claim Number	Driver Name	Description of Accident	Claim Status	Accident Type	Vehicle Type	Total Paid to Date
05/06/2012				Intersectional	O	*Not Coded	Passenger Vehicle	\$0.00
06/27/2012			N/A	Hit stationary object	O	N/A	N/A	\$0.00
03/17/2012			N/A	Intersectional	O	*Not Coded	*Not Coded	\$2,899.69
05/11/2012			N/A	Backed into a third party	O	N/A	N/A	\$0.00
08/02/2008				Our veh stopped for stop sign, looked both ways, pulled out. 3rd party on motorcycle struck him in drivers door. Police on scene. 3rd party driver taken to hospital, condition unknown. have police report @ this time. no other info.	O	*Captured Data	F&R - Passenger Vehicle	\$46,252.05
04/11/2012			N/A	Hit other vehicle in rear	O	N/A	N/A	\$0.00
05/28/2012			N/A	Hit Pedestrian	O	N/A	N/A	\$0.00
05/28/2012			N/A	Hit Pedestrian	O	N/A	N/A	\$0.00
05/30/2012			N/A	Hit other vehicle in rear	O	N/A	N/A	\$0.00
04/11/2012			N/A	Hit other vehicle in rear	O	N/A	N/A	\$0.00
04/11/2012			N/A	Hit other vehicle in rear	O	N/A	N/A	\$0.00
05/15/2012				Hit other vehicle in rear	O	*Not Coded	Passenger Vehicle	\$646.76
04/23/2012				Hit Pedestrian	O	*Not Coded	Passenger Vehicle	\$0.00
06/18/2012			N/A	Hit Other Vehicle In Rear	O	N/A	N/A	\$0.00



Automobile Liability Claims

For all open and reopened Claims - All Fiscal Years

HIPAA WARNING - This report contains protected patient information

	Total Paid to Date
Claims Count: 14	Total: \$49,798.50

CENT-SALES - Central - Sales - Summary by Fiscal Year						
(Last 3 Fiscal Years)	Number of Claims	PD Paid to Date	BI Paid to Date	Total Paid to Date	Total Incurred	
Fiscal Year 2011						
Closed	48	\$ 44,199.52	\$ 434,006.85	\$ 598,027.34	\$ 598,027.34	
Totals:	48	\$ 44,199.52	\$ 434,006.85	\$ 598,027.34	\$ 598,027.34	
Fiscal Year 2012						
Open	11	\$ 3,533.00	\$ 0.00	\$ 3,546.45	\$ 26,050.00	
Closed	45	\$ 86,092.39	\$ 9,500.00	\$ 97,036.84	\$ 97,036.84	
Totals:	56	\$ 89,625.39	\$ 9,500.00	\$ 100,583.29	\$ 123,086.84	
Fiscal Year 2015						
Open	2	\$ 0.00	\$ 0.00	\$ 0.00	\$ 2,500.00	
Totals:	2	\$ 0.00	\$ 0.00	\$ 0.00	\$ 2,500.00	
Total Last 3 Fiscal Yrs:	106	\$ 133,824.91	\$ 443,506.85	\$ 698,610.63	\$ 723,614.18	



Automobile Liability Summary Report

Description

The Automobile Liability Summary Report shows summary information about auto liability claims, including number of claims and total paid and incurred, grouped by fiscal year and three year totals.

Features

- Page groups are listed at the top of the page and include a page break and total before the next page group begins.
- Detail groups are identified by subheadings in the report body with subtotals before the next detail group begins.
- The footer shows the fiscal year and three year totals for page groups and detail groups selected for the report.



Automobile Liability Summary

For all claims

ACME Corp - Location 1

Accident Type	Claim Count	PD Paid to Date	BI Paid to Date	Total Paid to Date	Total Incurred
FY: 2011					
*Captured Data	16	\$31,240.22	\$0.00	\$31,880.78	\$31,880.78
*Other - Code Not Listed	9	\$9,730.49	\$1,547.60	\$11,687.59	\$11,687.59
N/A	1	\$0.00	\$0.00	\$0.00	\$0.00
FY 2011 Totals:		26	\$40,970.71	\$1,547.60	\$43,568.37
FY: 2012					
*Captured Data	19	\$38,525.57	\$0.00	\$38,721.22	\$38,721.22
*Not Coded	6	\$18,965.62	\$0.00	\$19,127.62	\$21,291.41
N/A	1	\$540.50	\$0.00	\$540.50	\$540.50
FY 2012 Totals:		26	\$58,031.69	\$0.00	\$58,389.34
FY: 2015					
*Not Coded	1	\$0.00	\$0.00	\$0.00	\$2,500.00
N/A	1	\$2,500.00	\$0.00	\$2,500.00	\$2,500.00
FY 2015 Totals:		2	\$2,500.00	\$0.00	\$5,000.00
3 Year Totals:		54	\$101,502.40	\$1,547.60	\$104,457.71



Automobile Liability Summary

For all claims

ACME Corp - Location 2

Accident Type	Claim Count	PD Paid to Date	BI Paid to Date	Total Paid to Date	Total Incurred
FY: 2011					
* Captured Data	39	\$28,135.50	\$434,006.85	\$581,786.87	\$581,786.87
* Not Coded	1	\$0.00	\$0.00	\$27.45	\$27.45
* Other - Code Not Listed	7	\$14,537.70	\$0.00	\$14,686.70	\$14,686.70
N/A	1	\$1,526.32	\$0.00	\$1,526.32	\$1,526.32
FY 2011 Totals:		48	\$44,199.52	\$434,006.85	\$598,027.34
FY: 2012					
* Captured Data	35	\$42,900.58	\$9,500.00	\$53,343.73	\$53,343.73
* Not Coded	14	\$46,724.81	\$0.00	\$47,239.56	\$61,593.11
N/A	7	\$0.00	\$0.00	\$0.00	\$8,150.00
FY 2012 Totals:		56	\$89,625.39	\$9,500.00	\$100,583.29
FY: 2015					
N/A	2	\$0.00	\$0.00	\$0.00	\$2,500.00
FY 2015 Totals:		2	\$0.00	\$0.00	\$2,500.00
3 Year Totals:		106	\$133,824.91	\$443,506.85	\$698,610.63



Automobile Liability Summary

For all claims

ACME Corp - Location 3

Accident Type	Claim Count	PD Paid to Date	BI Paid to Date	Total Paid to Date	Total Incurred
FY: 2011					
*Other - Code Not Listed	1	\$768.36	\$0.00	\$768.36	\$768.36
FY 2011 Totals:		1	\$768.36	\$0.00	\$768.36
FY: 2012					
N/A	1	\$0.00	\$0.00	\$0.00	\$2,500.00
FY 2012 Totals:		1	\$0.00	\$0.00	\$2,500.00
3 Year Totals:		2	\$768.36	\$0.00	\$3,268.36



Automobile Liability Summary

For all claims

ACME Corp - Location 5

Accident Type	Claim Count	PD Paid to Date	BI Paid to Date	Total Paid to Date	Total Incurred
FY: 2011					
*Captured Data	24	\$41,737.94	\$31,305.00	\$73,407.48	\$73,407.48
*Not Coded	3	\$8,092.20	\$0.00	\$8,187.20	\$8,187.20
*Other - Code Not Listed	4	\$14,757.49	\$0.00	\$14,757.49	\$14,757.49
FY 2011 Totals:	31	\$64,587.63	\$31,305.00	\$96,352.17	\$96,352.17
FY: 2012					
*Captured Data	10	\$8,709.27	\$0.00	\$8,771.72	\$18,771.72
*Not Coded	2	\$599.78	\$0.00	\$599.78	\$600.00
FY 2012 Totals:	12	\$9,309.05	\$0.00	\$9,371.50	\$19,371.72
FY: 2015					
N/A	5	\$965.75	\$0.00	\$965.75	\$9,300.00
FY 2015 Totals:	5	\$965.75	\$0.00	\$965.75	\$9,300.00
3 Year Totals:	48	\$74,862.43	\$31,305.00	\$106,689.42	\$125,023.89



Liability Claim Detail Report

Description

The Liability Claim Detail Report includes individual claim information that can be filtered and arranged according to a multitude of report parameters and valuations. This report includes individual claim information that can be valued as of different points in time.

Features

- Displays a large variety of claim related information including claim detail for all claims, all open claims or closed claims.
- Data can be categorized by numerous filters including accounting code, claimant name, class code, coverage line, injury year, location levels, purpose code, denied or delayed status, status date, claim specialist, classification code, social security number, injury date range, nature of injury, type of accident, occupation, part of body injured and financial information.
- Due to the amount of detail provided, this report is great for analytical work.
- Reports can be generated as an Adobe PDF, CSV or Microsoft Excel file and can be emailed to the user.



Claim Detail

For all claims

For Finance Amount Detail Level : None

Claim status and finance amounts as of 07/12/2012

Finance Detail Level Total: A1••

*Additional filters applied, see first page for details.

HIPAA WARNING - This report contains protected patient information

Coverage Line: (AL) Automobile Liability

Location Level 1: ACME Corp

Class Code: (ALPD) Property Damage

Claim Number:		Location Level 1: ACME Corp		Subrogation:	No		
Cov/Class/SubClass:	AL/ALPD/	Status:	Open	Status Date:	03/21/2012	Recovery:	
Claimant:		Jurisdiction:		Injury Date:	03/21/2012	Avg WW:	\$0.00
Accident Description:	Changing Lanes, Passing Or Sideswiped	Claimant Age:		Received:	03/21/2012	Comp Rate:	\$0.00
Accident Type:	*Not Coded	Drug Alcohol:	No	Finance Detail Level Total		Paid-to-Date	Reserved
Vehicle Type:	*Not Coded	Seatbelt:	No	Total		\$10,210.26	\$89.74
High Risk:	No	Exceed Speed Limit:	No				Incurred
Driver Training:	No						
Involved Injury:	No						
Job Class:		Litigation:	No				
Policy Number:		Policy Effective Date:					
Policy Termination Date:							

Claim Number:		Location Level 1: ACME Corp		Subrogation:	No		
Cov/Class/SubClass:	AL/ALPD/	Status:	Open	Status Date:	06/07/2012	Recovery:	
Claimant:		Jurisdiction:		Injury Date:	06/04/2012	Avg WW:	\$0.00
Accident Description:	struck and brought down power line	Claimant Age:		Received:	06/07/2012	Comp Rate:	\$0.00
Accident Type:	*Not Coded	Drug Alcohol:	No	Finance Detail Level Total		Paid-to-Date	Reserved
Vehicle Type:	*Not Coded	Seatbelt:	No	Total		\$0.00	\$2,500.00
High Risk:	No	Exceed Speed Limit:	No				Incurred
Driver Training:	No						
Involved Injury:	No						
Job Class:		Litigation:	No				
Policy Number:	2	Policy Effective Date:					
Policy Termination Date:							



Claim Detail

For all claims
For Finance Amount Detail Level : None
Claim status and finance amounts as of 07/12/2012

Finance Detail Level Total: All
**Additional filters applied, see first page for details.*

HIPAA WARNING - This report contains protected patient information

Coverage Line: (AL) Automobile Liability
Location Level 1: ACME Corp

	Finance Detail Level Total	Paid-to-Date	Reserved	Incurred
Total for Class Code: (ALPD) Property Damage	# of Claims: 2	\$10,210.26	\$2,589.74	\$12,800.00



Liability Accident Report

Description

The Liability Accident Report shows summary information about liability claims. Information can be sorted by customer, location level, location description and claim status. Information displayed includes type, source, nature, factor and environment of accident and amount paid to date, amount in reserve, amount incurred.

Features

- The report offers dynamic grouping controls that allow flexible information groupings.
- Users can save the report parameters, groups and filters to use for a later search.
- Information can be downloaded to a PDF document.
- All data is displayed in an easy to read format.



Liability Accident
For all open and reopened claims

*Additional filters applied, see first page for details.

Location Level 1: ACME Corp

Type: * Not Coded

Claim No.	Coverage	Location Level 1		Condition	Nature	PAID-TO-DATE RESERVED INCURRED		
D/A	Received	Subrogation	Recovery	Type	Factor			
Accident Description				Source	Environment			

Nature of Injury: * Not Coded

Factor: * Not Coded

	AL	ACME Corp		* Not Coded	* Not Coded	IND:	\$0.00	\$0.00	\$0.00
2/28/2012	2/29/2012	No	\$0.00	* Not Coded	* Not Coded	ALE:	\$16.00	\$84.00	\$100.00
Changing Lanes, Passing Or Sideswiped				*Not Coded	* Not Coded	Total:	\$16.00	\$84.00	\$100.00

Total: Nature of Injury: * Not Coded

Number of Accidents		Number Subrogation Possibilities	Total Recovery	Number of Claims	IND:	\$0.00	\$0.00	\$0.00
1		0	\$0.00	1	ALE:	\$16.00	\$84.00	\$100.00
					Total:	\$16.00	\$84.00	\$100.00

Total: Nature of Injury: * Not Coded

Number of Accidents		Number Subrogation Possibilities	Total Recovery	Number of Claims	IND:	\$0.00	\$0.00	\$0.00
1		0	\$0.00	1	ALE:	\$16.00	\$84.00	\$100.00
					Total:	\$16.00	\$84.00	\$100.00



Liability Accident
For all open and reopened claims
**Additional filters applied, see first page for details.*

Location Level 1: ACME Corp

Total: Type: * Not Coded				PAID-TO-DATE	RESERVED	INCURRED	
Number of Accidents	Number Subrogation Possibilities	Total Recovery	Number of Claims	IND:	\$0.00	\$0.00	\$0.00
				ALE:	\$16.00	\$84.00	\$100.00
				Total:	\$16.00	\$84.00	\$100.00



Safety Reporter

Description

The Safety Reporter shows claims counts and associated financial information according to specific groupings such as location and accident type.

Features

- Information can be grouped, sorted and filtered to restrict the report to desired parameters, including total number of claims, open and closed claims and average paid and reserved amount.
- Report parameters can be saved to use for additional searches.
- Detail groups are identified by subheadings in the report body with subtotals before the next detail group begins.
- The footer shows the number of open and closed claims, as well as average amount paid, reserved and total cost incurred.



Safety Reporter

For all claims with Accident Date between 1/1/2010 and 6/30/2012

*Additional filters applied, see first page for details.

Accident Quarter

(Primary Sort)

Location Level 1

(Secondary Sort)

Classification

(Tertiary Sort)

Total # of Claims	# of Open Claims	# of Closed Claims	% of Claims Closed	Total Paid	Average Paid	Total Reserved	Average Reserved	Total Incurred	Average Incurred
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Accident Quarter: 1

Location Level 1: ATLANTA DC

Bodily Injury	2	0	2	100.00 %	\$14,000.00	\$7,000.00	\$0.00	\$0.00	\$14,000.00	\$7,000.00
Property Damage	7	1	6	85.71 %	\$39,969.77	\$5,709.97	\$378.47	\$54.07	\$40,348.24	\$5,764.03
Totals for Location Level 1:	9	1	8	88.89 %	\$53,969.77	\$5,996.64	\$378.47	\$42.05	\$54,348.24	\$6,038.69

ATLANTA DC

Location Level 1: ATLANTA ZONE SNK

Bodily Injury	1	0	1	100.00 %	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
Property Damage	7	0	7	100.00 %	\$19,595.33	\$2,799.33	\$0.00	\$0.00	\$19,595.33	\$2,799.33
Totals for Location Level 1:	8	0	8	100.00 %	\$19,595.33	\$2,449.42	\$0.00	\$0.00	\$19,595.33	\$2,449.42

ATLANTA ZONE SNK

Location Level 1: Auburn DC

Property Damage	1	1	0	0.00 %	\$599.78	\$599.78	\$0.22	\$0.22	\$600.00	\$600.00
Totals for Location Level 1: Auburn	1	1	0	0.00 %	\$599.78	\$599.78	\$0.22	\$0.22	\$600.00	\$600.00

DC

Location Level 1: BOSTON ZONE SNK

Property Damage	4	1	3	75.00 %	\$7,339.75	\$1,834.94	\$211.72	\$52.93	\$7,551.47	\$1,887.87
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Safety Reporter

For all claims with Accident Date between 1/1/2010 and 6/30/2012

*Additional filters applied, see first page for details.

Accident Quarter

(Primary Sort)

Location Level 1

(Secondary Sort)

Classification

(Tertiary Sort)

	Total # of Claims	# of Open Claims	# of Closed Claims	% of Claims Closed	Total Paid	Average Paid	Total Reserved	Average Reserved	Total Incurred	Average Incurred
Accident Quarter: 1										
Totals for Location Level 1: BOSTON ZONE SNK	4	1	3	75.00 %	\$7,339.75	\$1,834.94	\$211.72	\$52.93	\$7,551.47	\$1,887.87
Location Level 1: BRUNSWICK DC										
Property Damage	3	0	3	100.00 %	\$5,064.05	\$1,688.02	\$0.00	\$0.00	\$5,064.05	\$1,688.02
Totals for Location Level 1: BRUNSWICK DC	3	0	3	100.00 %	\$5,064.05	\$1,688.02	\$0.00	\$0.00	\$5,064.05	\$1,688.02
Location Level 1: CAPITOL ZONE SNK										
Property Damage	4	0	4	100.00 %	\$1,811.41	\$452.85	\$0.00	\$0.00	\$1,811.41	\$452.85
Totals for Location Level 1: CAPITOL ZONE SNK	4	0	4	100.00 %	\$1,811.41	\$452.85	\$0.00	\$0.00	\$1,811.41	\$452.85
Location Level 1: CAROLINAS ZONE SNK										
Bodily Injury	1	1	0	0.00 %	\$875.00	\$875.00	\$179,650.00	\$179,650.00	\$180,525.00	\$180,525.00
Property Damage	4	0	4	100.00 %	\$9,607.61	\$2,401.90	\$0.00	\$0.00	\$9,607.61	\$2,401.90
Totals for Location Level 1: CAROLINAS ZONE SNK	5	1	4	80.00 %	\$10,482.61	\$2,096.52	\$179,650.00	\$35,930.00	\$190,132.61	\$38,026.52
Location Level 1: CHARLOTTE DC										
Bodily Injury	1	0	1	100.00 %	\$9,000.00	\$9,000.00	\$0.00	\$0.00	\$9,000.00	\$9,000.00



Safety Reporter

For all claims with Accident Date between 1/1/2010 and 6/30/2012

*Additional filters applied, see first page for details.

Accident Quarter

(Primary Sort)

Location Level 1

(Secondary Sort)

Classification

(Tertiary Sort)

	Total # of Claims	# of Open Claims	# of Closed Claims	% of Claims Closed	Total Paid	Average Paid	Total Reserved	Average Reserved	Total Incurred	Average Incurred
Accident Quarter: 1										
Property Damage	2	0	2	100.00 %	\$2,642.07	\$1,321.04	\$0.00	\$0.00	\$2,642.07	\$1,321.04
Totals for Location Level 1:	3	0	3	100.00 %	\$11,642.07	\$3,880.69	\$0.00	\$0.00	\$11,642.07	\$3,880.69
LOTTE DC										
Location Level 1: CHICAGO DC										
Property Damage	1	1	0	0.00 %	\$3,999.99	\$3,999.99	\$1,125.01	\$1,125.01	\$5,125.00	\$5,125.00
Totals for Location Level 1:	1	1	0	0.00 %	\$3,999.99	\$3,999.99	\$1,125.01	\$1,125.01	\$5,125.00	\$5,125.00
CHICAGO DC										
Location Level 1: CHICAGO ZONE SNK										
Bodily Injury	1	0	1	100.00 %	\$4,646.85	\$4,646.85	\$0.00	\$0.00	\$4,646.85	\$4,646.85
Property Damage	1	0	1	100.00 %	\$1,674.27	\$1,674.27	\$0.00	\$0.00	\$1,674.27	\$1,674.27
Totals for Location Level 1: CHICAGO ZONE SNK	2	0	2	100.00 %	\$6,321.12	\$3,160.56	\$0.00	\$0.00	\$6,321.12	\$3,160.56
Location Level 1: CINCINNATI DC										
Property Damage	1	1	0	0.00 %	\$10,210.26	\$10,210.26	\$89.74	\$89.74	\$10,300.00	\$10,300.00
Totals for Location Level 1: CINCINNATI DC	1	1	0	0.00 %	\$10,210.26	\$10,210.26	\$89.74	\$89.74	\$10,300.00	\$10,300.00



Safety Reporter

For all claims with Accident Date between 1/1/2010 and 6/30/2012

*Additional filters applied, see first page for details.

Accident Quarter

(Primary Sort)

Location Level 1

(Secondary Sort)

Classification

(Tertiary Sort)

Total # of Claims	# of Open Claims	# of Closed Claims	% of Claims Closed	Total Paid	Average Paid	Total Reserved	Average Reserved	Total Incurred	Average Incurred
-------------------------	------------------------	--------------------------	--------------------------	---------------	-----------------	-------------------	---------------------	-------------------	---------------------

Accident Quarter: 1

Location Level 1: CINCINNATI ZONE SNK

Property Damage	3	0	3	100.00 %	\$1,056.51	\$352.17	\$0.00	\$0.00	\$1,056.51	\$352.17
-----------------	---	---	---	----------	------------	----------	--------	--------	------------	----------

Totals for Location Level 1: CINCINNATI ZONE SNK	3	0	3	100.00 %	\$1,056.51	\$352.17	\$0.00	\$0.00	\$1,056.51	\$352.17
---	---	---	---	----------	------------	----------	--------	--------	------------	----------

Location Level 1: COLUMBUS ZONE SNK

Property Damage	2	0	2	100.00 %	\$16,210.74	\$8,105.37	\$0.00	\$0.00	\$16,210.74	\$8,105.37
-----------------	---	---	---	----------	-------------	------------	--------	--------	-------------	------------

Totals for Location Level 1: COLUMBUS ZONE SNK	2	0	2	100.00 %	\$16,210.74	\$8,105.37	\$0.00	\$0.00	\$16,210.74	\$8,105.37
---	---	---	---	----------	-------------	------------	--------	--------	-------------	------------

Location Level 1: Cranbury DC

Bodily Injury	1	0	1	100.00 %	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
---------------	---	---	---	----------	--------	--------	--------	--------	--------	--------

Property Damage	6	0	6	100.00 %	\$20,354.54	\$3,392.42	\$0.00	\$0.00	\$20,354.54	\$3,392.42
-----------------	---	---	---	----------	-------------	------------	--------	--------	-------------	------------

Totals for Location Level 1: Cranbury DC	7	0	7	100.00 %	\$20,354.54	\$2,907.79	\$0.00	\$0.00	\$20,354.54	\$2,907.79
---	---	---	---	----------	-------------	------------	--------	--------	-------------	------------

Location Level 1: DALLAS DC

Property Damage	2	0	2	100.00 %	\$8,015.17	\$4,007.59	\$0.00	\$0.00	\$8,015.17	\$4,007.59
-----------------	---	---	---	----------	------------	------------	--------	--------	------------	------------

Totals for Location Level 1: DALLAS DC	2	0	2	100.00 %	\$8,015.17	\$4,007.59	\$0.00	\$0.00	\$8,015.17	\$4,007.59
---	---	---	---	----------	------------	------------	--------	--------	------------	------------



Safety Reporter

For all claims with Accident Date between 1/1/2010 and 6/30/2012

*Additional filters applied, see first page for details.

Accident Quarter

(Primary Sort)

Location Level 1

(Secondary Sort)

Classification

(Tertiary Sort)

	Total # of Claims	# of Open Claims	# of Closed Claims	% of Claims Closed	Total Paid	Average Paid	Total Reserved	Average Reserved	Total Incurred	Average Incurred
Accident Quarter: 1										
Location Level 1: DALLAS ZONE SNK										
Property Damage	5	2	3	60.00 %	\$11,793.99	\$2,358.80	\$4,840.07	\$968.01	\$16,634.06	\$3,326.81
Totals for Location Level 1: DALLAS ZONE SNK	5	2	3	60.00 %	\$11,793.99	\$2,358.80	\$4,840.07	\$968.01	\$16,634.06	\$3,326.81
Location Level 1: DENVER DC										
Property Damage	1	0	1	100.00 %	\$595.68	\$595.68	\$0.00	\$0.00	\$595.68	\$595.68
Totals for Location Level 1: DENVER DC	1	0	1	100.00 %	\$595.68	\$595.68	\$0.00	\$0.00	\$595.68	\$595.68
Location Level 1: DENVER ZONE SNK										
Property Damage	4	0	4	100.00 %	\$2,230.34	\$557.59	\$0.00	\$0.00	\$2,230.34	\$557.59
Totals for Location Level 1: DENVER ZONE SNK	4	0	4	100.00 %	\$2,230.34	\$557.59	\$0.00	\$0.00	\$2,230.34	\$557.59
Location Level 1: EVANSVILLE DC										
Property Damage	1	0	1	100.00 %	\$17.00	\$17.00	\$0.00	\$0.00	\$17.00	\$17.00
Totals for Location Level 1: EVANSVILLE DC	1	0	1	100.00 %	\$17.00	\$17.00	\$0.00	\$0.00	\$17.00	\$17.00



Payment Register Detail Report

Description

The Payment Register Detail Report summarizes payments issued between two dates and can be filtered and arranged according to different report parameters.

Features

- The report provides payment information sorted by check number and additional parameters based on filters and groups selected.
- The report body lists checks that match the parameters selected.
- Shows each payment issued on or within the check date range selected and matching other parameters.
Report parameters, groups and filter combinations can be saved for future reports.
- Reports can be generated as an Adobe PDF, CSV or Microsoft Excel file and can be emailed to the user.



Payment Register Detail

For all Checks & Adjustments dated 01/01/2015 -

08/31/2015 ACME Corp

Location Level 4: All

*Additional filters applied, see first page for details.

HIPAA WARNING - This report contains protected patient information

Injury Year (FY): 2011

Check Number	Date Issued Class	Date Of Injury	Payee Claim Number	Type Service Dates	Description Claimant	Payment Amount
21006	01/03/2015 GLBI	09/26/2010		ADJUSTING 01/02/2015 - 01/02/2015	INVOICE # T291662	\$656.65
21008	01/03/2015 GLBI	11/18/2010		DEFENSE 01/02/2015 - 01/02/2015	INVOICE # 794374	\$2,135.00
21488	01/08/2015 GLBI	08/13/2010		DEFENSE 12/17/2012 - 12/17/2012	File # 60-110	\$47.00
21639	01/09/2015 GLBI	09/23/2010		DEFENSE 01/08/2015 - 01/08/2015	invoice 321702	\$537.25
21644	01/09/2015 GLBI	04/18/2010		DEFENSE 01/08/2015 - 01/08/2015	invoice 321701	\$1,536.57
21697	01/10/2015 GLBI	10/18/2010		DEFENSE 11/08/2012 - 12/17/2012	Invoice #: 34621	\$1,906.00
21903	01/14/2015 GLBI	08/19/2010		PIP 01/14/2015 - 01/14/2015	FULL AND FINAL SETTLEMENT OF ANY/ALL CLAIMS	\$7,000.00
22145	01/17/2015 GLBI	11/10/2010		LITIGATION 01/16/2015 - 01/16/2015	INVOICE # 70603	\$339.80



Payment Register Detail

For all Checks & Adjustments dated 01/01/2015 -

08/31/2015 ACME Corp

Location Level 4: All

*Additional filters applied, see first page for details.

HIPAA WARNING - This report contains protected patient information

Injury Year (FY): 2011

Check Number	Date Issued Class	Date Of Injury	Payee Claim Number	Type Service Dates	Description Claimant	Payment Amount
22155	01/17/2015 GLBI	06/19/2010		DEFENSE 12/04/2012 - 12/28/2012	Invoice # 352937	\$1,080.48
22172	01/17/2015 GLBI	12/13/2010		ADJUSTING 01/16/2015 - 01/16/2015	INVOICE # 689353	\$1,093.10
22175	01/17/2015 GLBI	06/19/2010		DEFENSE 12/03/2012 - 12/31/2012	Invoice # 506954	\$7,175.10
22371	01/21/2015 GLBI	09/21/2010		DIRECTFILE 01/21/2015 - 01/21/2015	INVOICE # 7417 FSB	\$1,083.08
22373	01/21/2015 GLBI	06/15/2010		DEFENSE 01/21/2015 - 01/21/2015	INVOICE # 104 12076	\$175.00
22377	01/21/2015 GLBI	11/14/2010		DEFENSE 01/21/2015 - 01/21/2015	INVOICE # 7428	\$437.04
22497	01/22/2015 GLBI	05/15/2010		DEFENSE 01/21/2015 - 01/21/2015	INVOICE # 7418 FSB	\$272.40
22502	01/22/2015 GLBI	12/19/2010		DEFENSE 12/04/2012 - 12/18/2012	Invoice #: 7427	\$252.04
23065	01/28/2015 GLBI	06/15/2010		LITIGATION 01/27/2015 - 01/27/2015	INVOICE # PA1656343	\$874.75
23942	02/04/2015 GLBI	08/18/2010		PIP 02/04/2015 - 02/04/2015	full and final settlement of any and all claims	\$4,890.00



Payment Register Detail

For all Checks & Adjustments dated 01/01/2015 -

08/31/2015 ACME Corp

Location Level 4: All

**Additional filters applied, see first page for details.*

HIPAA WARNING - This report contains protected patient information

Finance Detail Level 1		Payment Amount
ALE		\$11,508.27
CMP		\$32,903.17
MED		\$2,599.50
Total for Injury Year (FY): 2014		
# of Payments & Adjustments: 41		\$47,010.94



Payment Register Detail

For all Checks & Adjustments dated 01/01/2015 -

08/31/2015 ACME Corp

Location Level 4: All

**Additional filters applied, see first page for details.*

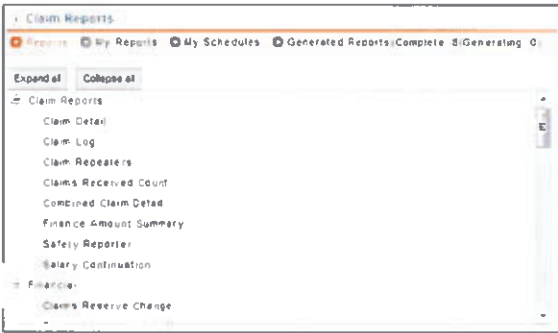
HIPAA WARNING - This report contains protected patient information

Finance Detail Level 1		Payment Amount
ALE		\$694,851.07
CMP		\$455,659.29
MED		\$31,840.50
Report Total	# of Payments & Adjustments: 678	\$1,182,350.86



Ad Hoc Reporting

CorVel’s standard reporting capabilities are extensive; however, we have the ability to provide ad hoc reports for any special reporting needs. Ad hoc report inquiries can be made with data elements that we capture in the claims system. Most ad hoc reports are available in PDF and Excel formats. These reports can be run instantly or scheduled for regular output.



Choose which report to create

Claim Reports							
Reports My Reports My Schedules Generated Reports(Complete: 27/Generating: 0)							
	Report Name	Report Type	Description	Request Date	Viewed Date	Report Heading	Status
View	Detail	Delete	Claim Detail	PDF	Claim Detail - By Jurisdiction, Location	1/16/2013 8:38:05 AM	View Online Viewed
View	Detail	Delete	Safety Reporter	PDF	Safety Reporter - ACME 09-12	1/16/2013 11:07:45 AM	View Online Viewed
View	Detail	Delete	Safety Reporter	PDF	Safety Reporter - ACME Brands	1/16/2013 8:30:14 AM	View Online Viewed
View	Detail	Delete	Claim Detail	PDF	Claim Detail - ACME Brands	1/16/2013 8:29:36 AM	View Online Viewed

Completed reports are ready to view in PDF

Claim Detail

Attributes | Groups | Filters | Save Options | Generate

Customer

ACME Brands

Report as Of

01/16/2013

mm/dd/yyyy

Claim Status

☐ All Claims ☒ Open and Reopened ☐ Reopened Only ☐ Closed ☐ Open

Location Level

☒ Level 1 ☐ Level 2 ☐ Level 3 ☐ Level 4 ☐ Level 5

Location Description

Central - Central
East - East
North - North
South - South

Choose parameters, groups and filters

Claim Reports

Reports | My Reports | My Schedules | Generated Reports(Complete: 27/Generating: 0)

	Report Name	Report Type	Description
View	Detail	Delete	Claim Detail
View	Detail	Delete	Safety Reporter
View	Detail	Delete	Safety Reporter
View	Detail	Delete	Claim Detail
View	Detail	Delete	Claim Detail
View	Detail	Delete	OSHA Form 301
View	Detail	Delete	OSHA Form 308A
View	Detail	Delete	OSHA Form 300
View	Detail	Delete	Workers' Compensation Log

File Download

Do you want to open or save this file?

Name

1st-841d931c-d97d-414c-890a-f9cd01063af.pdf

Type

Adobe Acrobat Document

From

www.corvel.com

Open

Save

Cancel

While files from the Internet can be useful, some files can potentially harm your computer. If you do not trust the source, do not open or save the file.

[What's New?](#)

Open the report in PDF or save the report



Appendix G

Sample Billing Statement



CorVel Enterprise Comp. Inc
Attn: Accounts Recievable
9920 Franklin Square Dr Ste 100
Baltimore, MD 21236

ABC Company
Attn:
123 ABC Street

Invoice Number

Internal Use Only
Date
Acct #
Case #:
Contract #

Sep 2021 Claims Invoice

Details				Totals	
Date	Description of Services	Count	Cost		Totals
9/30/2021	Report Only				
9/30/2021	Medical Only	5	\$ 125.00		\$625.00
9/30/2021	Indemnity	7	\$ 925.00		\$6,475.00
9/30/2021	General Liability Bodily Injury	3	\$ 795.00		\$2,385.00
9/30/2021	Flat Fee AL - Bodily Injury	1	\$ 695.00		\$695.00
9/30/2021	Flat Fee AL - Property Damage	1	\$ 695.00		\$695.00
9/30/2021	Medical Only to Indemnity	1	\$ 800.00		\$800.00
9/30/2021	Indemnity to Medical Only	0	\$ (800.00)		\$0.00
					\$11,675.00

THIS INVOICE IS DUE 10/26/2021

FEDERAL TIN NO. 42-1704550

Please Pay This Amount
\$11,675.00

InvoiceNo	Invoice Da	Claim Number	Claimant Name	Date of Inj	WorkDesc	FlatFee	DeptClientNo	DeptName
208822	9/30/2021	10-0510196		10/26/2020	Adjustment from [WC] Medical Only to [WC] Indemnity	800.	5025B	
208838	9/30/2021	11-500037-02		7/1/2021	Flat Fee AL - Bodily Injury	695.	9150B	
208839	9/30/2021	11-500053-01		9/29/2019	Flat Fee AL - Property Damage	695.	9150B	
208835	9/30/2021	11-500011-01		7/13/2021	Injury	795.	9150B	
208836	9/30/2021	11-500011-02		7/13/2021	Injury	795.	9150B	
208837	9/30/2021	11-500012-01		1/12/2020	Injury	795.	9150B	
208821	9/30/2021	10-010031		8/9/2020	Flat Fee WC - Indemnity	925.	5200	
208824	9/30/2021	11-010118		8/31/2021	Flat Fee WC - Indemnity	925.	5025B	
208825	9/30/2021	11-010119		8/26/2021	Flat Fee WC - Indemnity	925.	5025B	
208826	9/30/2021	11-010120		9/7/2021	Flat Fee WC - Indemnity	925.	5005	
208827	9/30/2021	11-010121		9/8/2021	Flat Fee WC - Indemnity	925.	5025B	
208828	9/30/2021	11-010122		8/23/2021	Flat Fee WC - Indemnity	925.	5010	
208833	9/30/2021	11-010127		9/10/2021	Flat Fee WC - Indemnity	925.	5010	
208823	9/30/2021	11-010117		8/31/2021	Flat Fee WC - Medical Only	125.	5005	
208829	9/30/2021	11-010123		9/15/2021	Flat Fee WC - Medical Only	125.	5071B	
208830	9/30/2021	11-010124		8/4/2021	Flat Fee WC - Medical Only	125.	5010	
208831	9/30/2021	11-010125		8/16/2021	Flat Fee WC - Medical Only	125.	5005	
208832	9/30/2021	11-010126		9/9/2021	Flat Fee WC - Medical Only	125.	5005	
						11,675.		
						11,675.		
						0.00		



Appendix H

Key Personnel Resumes

SCOTT HAYDEN

REGIONAL VICE PRESIDENT

STATEMENT OF QUALIFICATIONS

Regional Vice President for New England and New York. Responsible for sales and operations for our managed care and claims administration services. More than 20 years of industry experience.

PROFESSIONAL HISTORY

Regional Vice President

CorVel Corporation / 2001 – present

National Sales Manager

Health Direct / 1998 – 2001

Operations and Sales Manager

GENEX Services / 1993 – 1998

Director of Operations

IME, Inc. / 1988 – 1993

EDUCATION

Bachelor of Arts / English

University of Richmond

RJ TOMPKINS

AREA VICE PRESIDENT

STATEMENT OF QUALIFICATIONS

CorVel Account Executive for three (3) years. CorVel Medical Bill Review Manager for six (6) years. CorVel Account Manager for two (2) years. CorVel District/Area Vice President for six (6) years.

PROFESSIONAL HISTORY

Area Vice President

CorVel Corporation / 2010 – present

Responsible for the overall operational performance of assigned offices/locations - recruiting, hiring, associate performance, customer satisfaction and results. Also to ensure consistent delivery of our quality services. Monitor and improve efficiency of office operations. Assist with sales calls and service expansion on potential and existing customer.

Account Manager

CorVel Corporation / 2009 – 2010

Responsible for implementation and management for two large municipal claims administration customers. Maintain customer relations, and provide reporting as needed.

Bill Review Manager

CorVel Corporation / 2002 – 2009

Responsible for workers' compensation medical bill review unit. Unit responsible for application of workers' compensation fee schedule/usual & customary, PPO discounts, Professional Nurse Review, hospital line item bill review. Also responsible for pharmacy services program, to include first fill program, prior authorizations, and discount applications.

Account Executive

CorVel Corporation / 1999 – 2002

Responsible for new sales.

EDUCATION

Bachelor of Science / Pharmaceutical Sciences
Campbell University

Associate of Science / Environmental Chemistry
Cape Fear Community College

DANIELLE SPRADLIN

DISTRICT VICE PRESIDENT

STATEMENT OF QUALIFICATIONS

25+ years' experience with workers' compensation claims handling in Virginia. Over 17 years of experience managing multi-jurisdictional claims offices and municipal accounts.

PROFESSIONAL HISTORY

District Vice President

CorVel Corporation / 2017 – present

Responsible for Claims, Bill Review, Account Management, Case Management, IME, and Sales operations. Accountable for overall operational performance of the Virginia and DC District and compliance. Responsible for setting and meeting branch objectives to ensure compliance with policy and procedures.

Claims Manager

CorVel Corporation / 2012 – 2017

Managed a team of 4 Supervisors with a total team of 29, to include adjusting and clerical staff. Managed workers' compensation/liability programs within the Virginia and DC jurisdictions. Implemented new workers' compensation and liability programs.

Claims Supervisor

CorVel Corporation / 2012

Assigned and provided direction on all new claims submitted for handling. Oversaw compliance of client guidelines for liability and workers' compensation claims as well as jurisdictional requirements. Maintained a diary for Supervisor file reviews. Reviewed reserve analysis for to confirm exposure accurate.

District Claims Manager

Avizent / Frank Gates Service Company / 2006 – 2011

Managed teams handling worker's compensation claims/claims reviews in Maryland, Virginia, DC, and surrounding jurisdictions. Provided managerial assistance to offices nationally.

Senior Lost Time Benefit Coordinator

Avizent / Frank Gates Service Company / 2003 – 2006

Maintained duties of a Lost Time Benefit Coordinator while investigating and maintaining complex lost time workers' compensation claims.

Lost Time Benefit Coordinator

Avizent / Frank Gates Service Company / 2000 - 2003

Completed compensability decisions and maintained active lost time files. Maintained communication with injured workers, attorneys and Virginia Workers' Compensation Commission (VWC).

Medical Only Benefit Coordinator

Avizent / Frank Gates Service Company / 1999 - 2000

Investigated and interpreted workers' compensation statutes of claims. Reviewed medical bills for consideration under claims. Determined the medical cost exposure on a claim.

DANIELLE SPRADLIN

DISTRICT VICE PRESIDENT

Medical Only Claims Adjuster

Sedgwick CMS / 1998 – 1999

Managed medical only workers' compensation claims for food, government and trucking clients. Reviewed medical treatment for coverage under the claim.

EDUCATION

Bachelor of Science / Sociology (1998)

Wingate University

LISA ADAMS

VICE PRESIDENT LIABILITY CLAIMS EASTERN REGION

QUALIFICATIONS

More than 30 years of claims experience with emphasis in Auto, GL, Property & Environmental Claims, Transportation Claims, Superfund, Mass Torts and Litigation. Experience also includes Personal Lines, Commercial Lines, Carrier, TPA and Self-Insured Clients.

More than 20 years supervision and management expertise in the Insurance Industry.

Multi-state experience and licensure.

PROFESSIONAL HISTORY

VP Liability Claims, Eastern Region

CorVel Corporation / 2016 – present

Manage overall operations of the CorVel Liability Hub for the Eastern Region. Responsible for the launch, staffing and supervision of National CorVel Liability clients. Active participant in creating and administering compliance with CorVel Best Practices. Dedicated to providing exemplary customer service and adherence to the Special Handling Instructions created for each client.

Senior Risk Adjuster

City of Charlotte / 2011 - 2016

Negotiated and managed complex Auto and General Liability claims for multiple departments within the City including Transit System, Light Rail System, Street Car System, Department of Transportation, and Waste Management. Partnered with in-house counsel to direct and monitor litigated files and participated in mediations, arbitrations and trials. Performed scene investigations of high profile, serious transportation incidents.

Senior Claims Adjuster

Sedgwick CMS / 2009 - 2011

Investigated and resolved complex Auto, General Liability and Property claims for a national client. Directed high-exposure litigated claims in multiple states/venues.

Senior Environmental Adjuster

Royal Sun Alliance aka Arrowpoint Capital / 2006 – 2008

Directed complex mass tort claims involving superfund sites and environmental exposures.

Regional Branch Manager

Insurance Overload / 1999 - 2006

Oversaw all aspects of recruiting, hiring, managing and placing independent CAT adjusters across North Carolina and South Carolina.

LISA ADAMS

VICE PRESIDENT LIABILITY CLAIMS EASTERN REGION

Liability Supervisor

Sedgwick CMS / 1996 - 1999

Created a start-up office for a national commercial client in a stand-alone unit for Sedgwick CMS. Hired, trained and managed dedicated team of adjusters handling high exposure Auto/Trucking, GL claims and Litigation.

EDUCATION

Winthrop College
Furman University

CREDENTIALS AND AFFILIATIONS

Licensed Adjuster in multiple states
Certified Transportation Safety Institute Bus and Rail Safety Specialist
Past President Charlotte Claims Association
Past Board Member of North Carolina Adjusters Association

JASON WORLEY

ACCOUNT EXECUTIVE

STATEMENT OF QUALIFICATIONS

Over 20 years of healthcare sales experience including managed care, hospital, capital equipment, finance, and TPA services.

PROFESSIONAL HISTORY

Account Executive

CorVel Corporation / March 2023

Responsible for sales in Virginia, DC, and Maryland. Actively market Corvel's suite of TPA services for workers compensation and claim management.

Account Executive

EK Health / 2022

Sold managed care services to employers, brokers, and carriers for the entire US East Coast. Gained referrals for nurse case management, vocational rehabilitation, Medicare Set-Aside, bill review, and ergonomic evaluations.

Account Executive

Integra Partners / 2021-2022

Managed national relationship with DME/O&P providers to ensure proper fee schedule reimbursements, increase collection rates, and carrier participation in network. Participated in provider recruitment campaigns to build carrier networks.

Practice Manager

Hubbard Plastic Surgery / 2018-2021

Managed a large cosmetic practice with 2 operating rooms and a large medical spa. Ran day to day operations, financial budget, marketing, staff management, and vendor relationships.

Regional Vice President of Sales

GreenSky / 2017-2018

Sold consumer financing program to dental, cosmetic, vision, and specialty markets across the United States. Managed national accounts and inside sales department.

Practice Development Manager/Sales Trainer

Synchrony Financial (formerly GE Capital) / 2013-2017

Managed cosmetic, vision, and other specialty markets with their consumer financing programs. Served on sales leadership council as well as a sales trainer. Helped grow practice revenue by implementing effective financing strategies.

EDUCATION

Bachelor of Arts / Education/Child Psychology
Christopher Newport University

SYLVIA KURASH

ACCOUNT MANAGER

STATEMENT OF QUALIFICATIONS

Over 30 years of account management, supervisory and sales experience in the workers' compensation, healthcare and communication industries. 20 years of account management experience directly related to various disability and workers' compensation benefit programs. Involvement in successful transition, implementation and oversight of various workers' compensation and disability management programs.

PROFESSIONAL HISTORY

Account Manager

CorVel Corporation / 1998 - present

Responsible for the management and growth of designated municipal, private sector and auto industry accounts with a focus on overall client satisfaction.

Acquisition Manager

C4 Media Corporation / 1988 - 1993

Worked as part of a team to complete the acquisition of cable television systems throughout the United States. Acted as liaison between company and municipal entities during transition periods.

Customer Service Supervision

Tribune Cable Communications / 1985 - 1988

Supervised the daily activities of a team of over 30 customer service and telemarketing employees for the Alexandria, VA cable operations.

EDUCATION

Bachelor of Arts / Communications
Radford University

CREDENTIALS AND AFFILIATIONS

Member, Virginia Self Insured Association

Member, Virginia Chapter of RIMS

Member, Potomac Chapter of RIMS

VANESSA GIBRALL

PROVIDER NETWORK MANAGER

STATEMENT OF QUALIFICATIONS

20+ years of experience in sales, account management, and developing customer relationships, territory management and contract negotiations.

PROFESSIONAL HISTORY

Provider Network Manager

CorVel Corporation / 2013 – present

Responsible for District Provider Network management including contract negotiation, approval, issue resolution, education of program expectations, remediation and/or termination. Develops and oversees District PPO operating procedures. Assures optimal PPO team performance through continued training, coaching and team-building. State expert of local compensation rules and regulations relating to the ability to channel patients, reimbursement schedules and PPO reduction limitations. Monitors operational workflow and manages appropriate/adequate staffing levels and staff retention strategies. Reviews and evaluates contract language and rates, ensuring that appropriate savings are initiated. Reviews and monitors departmental outcomes and administrative results to ensure specific client program expectations are being met or exceeded.

Network Developer

CorVel Corporation / 2011 – 2013

Network with providers through industry contacts, association memberships, and networking events to share CorVel's value and differentiators. Review non-par providers spend as targets. Set provider targets based on clients' needs and strategic market initiatives. Reviews adequacy of physicians, hospitals, and ancillary providers. Assesses contracting opportunities from a business perspective, reviewing acceptable rate structures and baselines. Responsible for data integrity of CorVel's PPO Network for the District.

Business Development Manager

VACO / 2009 – 2011

Supported Senior Management in driving key business and implementing performance initiatives. Achieved recognition for increasing new clients for VACO Richmond and generating consistent business development opportunities.

Account Director

AQUENT / 2008 – 2009

Responsible for managing and growing assigned accounts to meet clients' objectives. Developed creative briefs outlining marketing strategies and objectives. Managed the day-to-day workflow of accounts and oversaw the full life-cycle of projects by leading internal teams. Identified marketing opportunities for clients to expand current business.

VANESSA GIBRALL



PROVIDER NETWORK MANAGER

Senior Account Executive

Ajilon Finance / 1998 - 2008

Conducted needs analysis, cited best practices, and proposed solutions. Developed and executed recruiting plans including sourcing candidates through networking, postings and association memberships. Responsible for managing consulting staff on assigned programs.

EDUCATION

Virginia Commonwealth University - Accounting

CREDENTIALS AND AFFILIATIONS

American Association of Healthcare Administrative Management (AAHAM)

Central Virginia Healthcare Executives Group (CVHEG)

Healthcare Financial Management Association (HFMA)

Virginia International Business Council (VAIBC)

CHRISTIE HARRINGTON

CLAIMS MANAGER

STATEMENT OF QUALIFICATIONS

Insurance professional with over 15 years of experience in the industry, 12 years of experience managing leading teams, 7 years of experience managing an insurance business, and 6 years of experience managing municipal workers compensation claims in Virginia.

PROFESSIONAL HISTORY

Claims Manager

CorVel Corporation / 2022 – present

Manages a team of 5 supervisors with a total team of 30+ employees including adjusting and clerical staff. Prepares corporate quarterly audits for VA & DC jurisdictions. Prepares and analyzes various analytics to ensure jurisdictional & carrier compliance.

Claims Supervisor

CorVel Corporation / 2018 – 2021

Managed a team of 5 Claims Adjusters ensuring adherence to client specific instructions. Reviewed, assigned, and provided direction on all new claims, and generated bi-weekly injury leave reporting to client payroll. Conducted department meetings and claim reviews, hired and trained new Adjusters, and managed a massive influx of claims during a catastrophic event, including death claims.

Senior Claims Adjuster

CorVel Corporation / 2015 – 2018

Provided claim reports and addressed all workers' compensation questions/concerns at department meetings and claim reviews.

Lost Time Adjuster

Alaska National Insurance Company / 2013 – 2015

Managed complex workers' compensation claims providing direction and recommendations to Nurse Case Managers, private investigators & attorneys; wrote serious loss reports for large claims; conducted regular claim reviews & travelled throughout the state to meet with borough & municipal clients for quarterly claim reviews.

EDUCATION

Bachelor's Degree / Business Administration Marketing and Advertising
Southern Adventist University



Appendix I

Cost Proposal

EXHIBIT B Price Sheet	
RFP 230014198	Item 1
Administrative Services Workers' Compensation, General Liability, and Automobile Liability Claims and Loss Control	Package Price for All Services
	\$ 346,350 -



+



Cost Proposal

City of Richmond

Administration Services Workers' Compensation, General Liability,
and Automobile Liability Claims and Loss Control Services

RFP # 230014198

August 17, 2023



JASON WORLEY, ENTERTITLE CORVEL CORPORATION
JASON_WORLEY@CORVEL.COM T 804.418.7100

COST PROPOSAL

**Workers' Compensation Claims Administration**

City of Richmond

Description	Pricing
Life of Contract Flat Annual Fee	
Up to <u>95 Indemnity Claims</u> , <u>225 Medical Only Claims</u> , <u>288 General Liability Claims</u> , <u>110 Auto Liability Claims</u> , <u>12 Product Liability Claims</u> Annually	
Workers' Compensation	\$125,125
General Liability	\$143,935
Auto Liability	\$67,750
Product Liability	\$9,540
Per claim Fee after maximum number of claims:	
Medical-Only	\$155
Indemnity	\$950
Indemnity Tail Claims	Waived
Medical-Only Tail Claims	Waived

¹ Alaska claims will incur a 2 year file handling fee as listed above. If a file remains open after two years, the fees will be charged again.

² Claim fee applies to AOS with the exception of premium states (CA, HI, AK, NY, TX and FL).

Auto and General Liability Claims Administration

Description	Pricing
Liability Handling Fee - Per Claimant ¹	
Per claim Fee after maximum number of claims:	
Fast Track ²	\$225
Auto Liability	
Bodily Injury	\$695
Property Damage	\$395
Auto Physical Damage	
Auto Collision Damage	\$395
Auto Comprehensive Damage	\$395
General Liability	
Bodily Injury	\$750
Property Damage	\$395
Product Liability	
Bodily Injury	\$995
Property Damage	\$350

¹ Liability pricing for both life of claim and life of contract for all class codes

² Claim must be Non-Complex, open for 60 days or less and have a total paid of less than \$3,500
Other Liability Claim type pricing may apply

Program Management

Description	Pricing
Data Conversion - Per Data Source	\$5,300
Administration Fee - Per Annum ¹	\$15,900
Implementation Fee - One Time Fee	\$10,600
CareMC Access - Per Annum ²	
First 25 Full Access Users	\$5,000

¹ Includes Assistance with Self-Insured Data for State Reports, State Statistical Reporting & All State Filing Requirements

COST PROPOSAL



² Includes Executive Dashboard, Claim Details, Claims Summary Screen & Claims Reporting

Account Management and Technical Support

Description	Pricing
Account Management Staff	Included
Electronic Data Transmission - (Per Month, Based on Frequency)	
Monthly File	\$212
Weekly File	\$636
Daily File	\$2,120
Training – Onsite and Online	Included
Technical Support	Included
State EDI Files	Included
Monthly Reporting	Included
Ad hoc Report Programming - Per Hour	\$212
Communication Materials/Posters	Pass through printing cost
Annual Banking Fees	One account included
Additional Account(s) - Per Account	\$1,060
Carrier TPA Oversight Fees ¹	Bill from Carrier to Client

¹ Fees charged by the carrier (Oversight fees, Tail Claim transfer / takeover fees, etc.) are the responsibility of the client and will be billed directly to the client by the carrier or by CorVel should CorVel be invoiced for such fees.

Intake and Immediate Intervention Services

Description	Pricing
Claim Intake (includes one FNOL distribution) - Per Intake	Waived
Incident Only Reporting - Per Incident	Waived
Advocacy 24/7 - Per Call	Waived
Telehealth Services	Fee Schedule or U&C value by CPT code

Allocated Expense Fees

Legal Services

Description	Pricing
Subrogation	25% of Recoveries
Legal Bill Auditing ¹	2.5% of gross legal charges reviewed
Indexing and OFAC Compliance - Per Index	\$21

¹ Fees will never exceed the savings generated. No mark-up on services from Bottomline.

² Minimum transaction fee (MTF) per bill transaction. Applied per transaction if all other applicable fees do not meet the minimum transaction fee. Applies to all transactions, including but not limited to, Specialty Bills, Duplicate Bills and bills sent for Re-consideration or Re-evaluation. Maximum fee per bill of \$9,000.

Description	Pricing
Bill Review: Includes Standard Fee Schedule and UCR - Per Bill ^{1,2}	\$9.55
+ Network Solutions Includes: ²	27% of Savings
Clinical Review, Implant Analysis, Line Item Bill Review, Negotiations, PPO Network Access, Substantive Denials, Technical Evaluation	
Minimum Transaction Fee ²	\$6.95
State EDI, Scanning/OCR, Initial 1099 Provider Notification Letter	Included

COST PROPOSAL



¹ Includes bill intake, document imaging, file upload, state EDI's, and initial 1099 provider notification letters.

² Minimum transaction fee (MTF) per bill transaction. Applied per transaction if all other applicable fees do not meet the minimum transaction fee. Applies to all transactions, including but not limited to, Specialty Bills, Duplicate Bills and bills sent for Re-consideration or Re-evaluation. Maximum fee per bill of \$9,000.

Provider and Nurse Review Services

Description	Pricing
Liability Bill Review (Reasonable and necessary and related) -- Per Bill	\$21
Liability Nurse Review	
Option 1 – Per Hour	\$164
Option 2 – Flat Rate	\$95 up to 1,000 pages \$265 per each additional 500 pages
Peer Review / Physician Advisor – Per Hour	\$212
Independent Medical Reviews	
Chiropractic	See 2023 IME/Peer Fee Schedule
Orthopedic	See 2023 IME/Peer Fee Schedule
Neurologic	See 2023 IME/Peer Fee Schedule
Physical Medicine and Rehabilitation	See 2023 IME/Peer Fee Schedule

Patient Management

Description	Pricing
Telephonic Case Management, Field Case Management and Return to Work Coordinator - Per Hour	
Alaska, California, Hawaii and New York	\$164
All Other States ^{1,2}	\$115
Vocational Rehabilitation - Per Hour ²	\$175
Specialty Services (Catastrophic, Life Care Plan, Medicare Conditional Payments, Medicare Set Asides, Bilingual, Critical Incident Stress Debriefing (CISD)) - Per Hour	\$218
Nurse Utilization Review - Per Review	\$159
UR Authorization Only (Adjuster Review) - CA - Per Review	\$42
Care Advocate - Per Claim	\$53

¹ Fee applies to all States with the exception of premium states (CA, HI, AK, and NY).

² Statutory rates supersede if applicable.

Prevailing IRS Mileage Rate applies.

Each invoice for Case Management Services shall have an additional professional service fee of \$39.00 billed to Customer.

Pharmacy Solutions

Description	Pricing
Retail Pharmacies	
Brand	AWP -10% + \$3.00 dispensing fee
Generic	AWP -35% + \$3.00 dispensing fee
Mail Order	
Brand	AWP -13% + \$1.50 dispensing fee
Generic	AWP -45% + \$1.50 dispensing fee
Clinical Modeling	
Integration of Pharmacy Data	Included
Dynamic Calculation/Display in Care ^{MC}	Included



COST PROPOSAL

Pharmacy Interventions	
Certified Pharmacy Technician	Included
Rx Nurse	Included
Nurse Management	Case Management hourly rate
Pharmacy Review - Per Review	\$405
Cognitive Behavioral Therapy - Per Hour	\$270
Medication Review - Per Hour	\$270

Ancillary Benefit Management Services

Description	Pricing
Medical Imaging Services	Varies by State and Diagnostic
Independent Medical Exam	See 2023 IME/Peer Fee Schedule
Physical and Occupational Therapy	Varies by State
Durable Medical Equipment	Varies by State and Equipment
IME Peer Review - Per Hour	See 2023 IME/Peer Fee Schedule
Transportation	Varies by State and Service
Translation	Varies by State and Service Level

Medicare Agent Reporting

Description	Pricing
Set up and engagement	\$3,000
Monthly Maintenance	\$1,000



Appendix J

Signed Documents

SIGNATURE SHEET

This signature sheet must be included as part of the offeror's proposal, or the City will not consider the proposal. The offeror's signature below certifies that this proposal as submitted complies with, and the offeror agrees to be legally bound by, all terms and conditions set forth in Request for Proposals No.230014198 for Administrative Services for Workers' Compensation, General Liability, and Automobile Liability Claims and Loss Control Services. The undersigned hereby represents and warrants that the undersigned is duly authorized to sign and submit this proposal on behalf of the offeror.

Complete Legal Name of Offeror Firm:	CorVel Enterprise Comp, Inc.
"Order from" Address:	120 Eastshore Drive, Suite 210 Glen Allen, VA 23059
"Remit to" Address:	120 Eastshore Drive, Suite 210 Glen Allen, VA 23059
Federal EIN / SSN:	[REDACTED]
Authorized Signature:	
Printed Name of Signatory:	Richard Schweppe
Title of Signatory:	Director and Assistant Treasurer
Telephone Number with Area Code:	949-851-1473
Fax Number with Area Code:	949-851-1469
E-Mail Address:	richard_schweppe@corvel.com
Date:	August 15, 2023

STATE CORPORATION COMMISSION FORM

Complete Legal Name of Offeror Firm: CorVel Enterprise Comp, Inc.

Virginia State Corporation Commission registration information. The offeror:

- ☒ is a corporation or other business entity with the following State Corporation Commission identification number:

F1754045

-OR-

- ☐ is not a corporation, limited liability company, limited partnership, registered limited liability partnership, or business trust

-OR-

- ☐ is an out-of-state business entity that does not regularly and continuously maintain as part of its ordinary and customary business any employees, agents, offices, facilities, or inventories in Virginia (not counting any employees or agents in Virginia who merely solicit orders that require acceptance outside Virginia before they become contracts, and not counting any incidental presence of the offeror in Virginia that is needed in order to assemble, maintain, and repair goods in accordance with the contracts by which such goods were sold and shipped into Virginia from offeror's out-of-state location)

-OR-

- ☐ is an out-of-state business entity that is including with this proposal an opinion of legal counsel which accurately and completely discloses the undersigned offeror's current contacts with Virginia and describes why those contacts do not constitute the transaction of business in Virginia within the meaning of section 13.1-757 or other similar provisions in Titles 13.1 or 50 of the Code of Virginia

-OR-

- ☐ has not completed any of the foregoing options but currently has pending before the State Corporation Commission an application for authority to transact business in the Commonwealth of Virginia and wishes to be considered for a waiver to allow the offeror to submit the State Corporation Commission identification number after the due date for proposals. The offeror shall promptly provide any information the City requires to enable the City to properly evaluate the offeror's request for such a waiver. The City reserves the right to determine in its sole discretion whether to allow such a waiver.



(Turn Over)
**Attachment A – Form of Information Documenting
Method of Contact**

MBE/ESB Name Contact Person Address Phone Number Fed ID Number	Telephone	Fax	Email	Newspaper or Other Publication	Other	Response of Contacted Firm	Enter Below Code for Ownership of each MBE Firm
	Telephone # & Date of Contact	Fax # & Date of Contact	Email Address & Date of Contact	Name of Newspaper or Other Publication Date (s) of Advertisement	Separate Written Statement with any supporting documentation for each contract	MBE/ESB Response Yes, No, No Response, or Comment	1 - African American 2 - Hispanic American 3 - Asian American 4 - American Indian 5 - Other (Specify Below)
ABC Co., Inc. Joe Johns 110 Main Street, Anywhere, USA (XXX) 555-5555 54-XXXXXX	(804)555-5555 01/20/21	(804)555-5555 01/20/21	ABC@gmail.com	Times Dispatch	See Attachment	Yes	1
Detect Inc Ken Mitzkovitz PO Box 9127, Alexandria VA 703-680-5600	703- 680- 5600	703- 680- 5605	detect@ detectinc.com	N/A	N/A	Yes	ESB



Minority Business Development
1500 East Main Street, 5th Floor
Richmond, VA 23219
Office: (804) 646-5947
Fax: (804) 646-0136

<http://www.richmondgov.com/MBD>

MBE/ESB Past Good Faith Efforts Participation Form

All firms listed in this directory have registered with the City of Richmond as a minority owned business (MBE) or certified as an Emerging Small Business (ESB). It should be noted, that there are MBE businesses listed in this directory that are not certified. Therefore, any prime contractor/vendor desiring to use a registered MBE firm that is not certified, must be aware, that the registered MBE firm has 180 days to get certified or before the completion of the contract, whichever is less, or the prime contractor/vendor risks not receiving credit toward the minority participation goal for the said project.

COMPANY DATA	COMPANY NAME: CorVel Enterprise Comp, Inc.		CONTRACT NAME/NO: 230014198		
	CONTACT NAME: Jason Worley	PHONE # 804-837-4050	Fax#		
	Email Address: jason.worley@corvel.com				
	How long has your firm been in Business? 35 years				
If you can verify your firm has made past good faith efforts in the Public or Private Sector to engage MBE/ESB firms through subcontracting, joint venture, mentor-protégé, or apprenticeship opportunities over the past three (3) years, you may be eligible to earn additional points for this project. Please include valid documentation to support this claim. Feel free to attach additional pages, if necessary. Enter Below Code for Ownership of each MBE Firm. 1 = African American 2 = Hispanic American 3 = Asian American 4 = American Indian 5 = Other (Specify Below) ☒ Yes – may be eligible – Complete section below ☐ No – not eligible					
DEFINITIONS	CONTACT PERSON/PHONE NUMBER/PROJECT NAME / DATE	DID YOU MEET THE MBE GOAL?	SCOPE OF WORK	MBE/ESB COMPANY NAME/CONTACT PERSON/PHONE	MBE/ESB Code
	Kor Mitkovite 403-690-8600	Yes	Staffing	410-948-9480	A1
	410-948-9480 RFI-170019180				
MINORITY BUSINESS ENTERPRISE A business at least 51% of which is owned and controlled or 51% operated by minority group members or, in case of a stock corporation, at least 51% of the stock which is owned and controlled by minority group members. Minority group members are citizens of the United States who are African American, Hispanic American, Asian American and American Indian.		GOOD FAITH MBE/ESB PARTICIPATION EFFORTS The sum total of efforts by a particular business to provide equitable participation of minority business enterprise or emerging small business subcontractors. For past efforts, this sum total shall be comprised of the record of participation by minority business enterprises and emerging small businesses through subcontracting or joint ventures. For future efforts, it shall be comprised of such efforts, which are proposed to allow equitable participation of minority business enterprise or emerging small business subcontractors.		EMERGING SMALL BUSINESS A business that (1) has been certified by the Office of Minority Business Development for a period of seven years or less, (2) has annual gross receipts for each of its three fiscal years preceding application for certification of \$500,000 or less if engaged in the construction business or of \$250,000 or less if engaged in non-construction business, (3) has fewer than ten employees, (4) is not a subsidiary of another business and does not belong to a group of businesses owned and controlled by the same individuals, (5) has its principal place of business within the City of Richmond Enterprise Zone, (6) possesses a City business license, and (7) pays personal property, real estate, and business taxes to the City of Richmond.	
Bidder and the MBE/ESB agree that the MBE/ESB shall not subcontract or assign any work described herein to another entity without prior written approval of the City of Richmond.					
THE UNDERSIGNED HEREBY CERTIFIES THAT SHE HAS READ THE TERMS OF THIS COMMITMENT AND IS AUTHORIZED TO BIND THE BIDDER TO THE COMMITMENT HEREIN SET FORTH.					
SIGNATURE OF AUTHORIZED OFFICIAL: Richard Schweppa				DATE: 8/17/23	

MBE/ESB-5 Past Good Faith Efforts Participation Form - Revised Date 1/20/2021



Minority Business Development
 1500 East Main Street, 5th Floor
 Richmond, VA 23219
 Office: (804) 646-5947
 Fax: (804) 646-0136
<http://www.richmondva.gov/MBD>

**Good-Faith Minority Business Enterprise
 and Emerging Small Business Participation Efforts
 Documentation of Contacts**

All firms listed in this directory have registered with the City of Richmond as a minority owned business (MBE) or certified as an Emerging Small Business (ESB). It should be noted, that there are MBE businesses listed in this directory that are not certified. Therefore, any prime contractor/vendor desiring to use a registered MBE firm that is not certified, must be aware, that the registered MBE firm has 180 days to get certified or before the completion of the contract, whichever is less, or the prime contractor/vendor risks not receiving credit toward the minority participation goal for the said project.

Request for Qualification or Request for Proposals No.: 230014198
 Project Name: Investigative Services
 Name of Contractor: Detect Inc

Part I - Method of Contact

How did you contact each Minority Business Enterprise or Emerging Small Business?

- A. **Telephone.** For each firm contacted: ☒ YES ☐ NO How many MBE/ESB firms were contacted? 1
 - State the name of the firm, the name of the person contacted, the telephone number contacted and the date of the contact.
- B. **Fax.** For each firm contacted: ☐ YES ☒ NO How many MBE/ESB firms were faxed information regarding this project? 0

Detect Inc 1 Ken M. Irzk 8/1/23

 - State the name of the firm, the fax number contacted and the date of the contact.
 - Attach a copy of the fax transmittal sheet indicating receipt of the fax.
- C. **E-Mail.** For each firm contacted: ☐ YES ☒ NO How many MBE/ESB firms were emailed? 0
 - State the name of the firm, the name of the person contacted by e-mail, the e-mail address at which you contacted the person and the date of the contact.
 - Attach a copy of the e-mail sent. All copies of e-mails must include metadata indicating "From," "To" and "Cc" e-mail addresses as well as the date and time of the e-mail.
- D. **Newspapers and Other Publications.** For each advertisement placed in a newspaper or other publication: ☐ YES ☒ NO
 - State the name of the newspaper or other publication and the date or dates on which the advertisement was published.
 - Attach a copy of both the published advertisement and any solicitation advertised.
- E. **Other.** For methods of contact not included above: ☐ YES ☒ NO If yes, see below instructions
 - Describe the nature of the contact.
 - As applicable, state the name of the person contacted, the name of the firm contacted and the date of the contact.
 - Attach a copy of any written documentation of the contact.

Attachment A sets forth the form in which the information required above must be submitted.

MBE/ESB PARTICIPATION FORM (MBE-2)

Minority Business Development
1500 East Main Street, 5th Floor
Richmond, VA 23219
Office: (804) 646-5947
Fax: (804) 646-0136

<http://www.RichmondGov.com/MBD>

All firms listed in this directory have registered with the City of Richmond as a minority owned business (MBO) or certified as an Emerging Small Business (ESB). It should be noted, that there are MBE businesses listed in this directory that are not certified. Therefore, any prime contractor/vendor desiring to use a registered MBE firm that is not certified, must be aware, that the registered MBE firm has 180 days to get certified or before the completion of the contract, whichever is less, or the prime contractor/vendor risks not receiving credit toward the minority participation goal for the said project.

COMPANY NAME: CorVel Enterprise Comp, Inc.		PROJECT NAME/CONTRACT No. 230014198		
CONTACT NAME: Jason Worley	PHONE # 804-837-4050	Fax#	Email: jason_worley@corvel.com	
BUSINESS LICENSE No. F1754045	BUSINESS LICENSING JURISDICTION: Richmond	FED ID NO/SSN 00-2282818		
A= First, Second, and/or Third Tier Subcontracting B=Supply Purchases C=Joint Venture D= Mentor-Protégé E= Other Credibly Viable Method 1 = African American 2 = Hispanic American 3 = Asian American 4 = American Indian 5 = Other (Specify Below)				1 = First, Second, and/or Third Tier Subcontracting 2 = Supply Purchases 3 = Joint Venture 4 = Mentor-Protégé 5 = Other Credibly Viable Method
SUBCONTRACTOR NAME		PHONE	SCOPE OF WORK FOR PARTICIPATION IN CONTRACT	DOLLAR AMOUNT
ADDRESS		FED ID NO./SSN		% OF CONTRACT
1. ABC Co., Inc.		(XXX) 555-5555	Concrete Work	\$20,000
110 Main Street Anywhere, USA		84-XXXXXX	Other Excavation	10%
2. Detect, Inc			Investigation SVCS	A
Po Box 9123 Alexandria VA 22304				
*IF OWNED TYPE "S" - OTHER" SPECIFY HERE:		TOTAL DOLLAR AMOUNT		
MBE/ESB PROJECT GOAL ESTABLISHED BY THE CITY OF RICHMOND		TOTAL % OF CONTRACT		10%
Bidder and the MBE/ESB agree that the MBE/ESB shall not subcontract or assign any work described herein to another entity without prior written approval of the City of Richmond THE UNDERSIGNED HEREBY CERTIFIES THAT SHE HAS READ THE TERMS OF THIS COMMITMENT AND IS AUTHORIZED TO BIND THE BIDDER TO THE COMMITMENT HEREIN SET FORTH. SIGNATURE OF AUTHORIZED OFFICIAL: Richard Schaeffer DATE: 8/17/23				



ADDENDUM NO. 1

DATE: August 9, 2023

SUBJECT: RFP 230014198 Title Administrative Services Workers Compensation

DUE DATE: August 21, 2023

Ladies/Gentlemen:

Questions and Answers;

Question 1:

In Part II of the RFP, Section 6.1.2 says that the City *"reserves the right to make awards under this Request for Proposals to more than one offeror if the City determines that doing so is in the best interests of the City"* and that *"If the City makes multiple awards under this Request for Proposals, each contract awarded will specify the portion of the scope of services awarded to that offeror."*

Can we interpret this as allowing for the submission of a bid for a specific narrow component of the services you are seeking? In other words, are you willing to make an award for individual ancillary services such as investigation, medical case management, vocational rehabilitation services, etc., in addition to making an award(s) for total TPA activities?

Answer #1 No, the City will award to one offeror only for all services.

Question #2:

Would the City consider expanding the definition of a minority business enterprise to include Commonwealth of Virginia SWaM certified small and women-owned businesses for compliance with the minority business enterprise component of the RFP?

Answer #2: Small and women owned business can register with the OMBD. SWaM certification alone is not enough to qualify. All MBE organizations must register with the City's OMBD to qualify as a MBE. Please note that the Primer Offeror is not considered in the goal. This goal must be filled by using a registered MBE contractor,

Question #3:

Will the City want the TPA to revamp/update the listing of authorized panel physicians in partnership with the City?

Answer #3:

Yes, the TPA will work with Risk Management to update the primary and secondary panel of physicians listing.

Question #4:

Is a panel of physicians currently being issued consistently on both Indemnity and Medical only claims or just Indemnity claims?

Answer #4: Both

Jerry Tuttle
Contracting Officer
City of Richmond, Department of Procurement Services
804-646-1820
jerry.tuttle@rva.gov

Respectfully Submitted:

CORVEL ENTERPRISE COMP
Company

BY: RICHARD SCHWEPPE
PRINT

Richard Schweppe
Signature

Director and Assistant Treasurer August 25, 2023
Title Date



ADDENDUM NO. 2

DATE: August 15, 2023

SUBJECT: RFP 230014198 Title: Administrative Services Workers' Compensation

DUE DATE: August 30, 2023

Ladies/Gentlemen:

Change in RFP# 230014198:

The due date has been changed from August 21, 2023 @3 P.M. to August 30, 2023 @ 3 P.M.

Jerry Tuttle
Contracting Officer
City of Richmond, Department of Procurement Services
804-646-1820
jerry.tuttle@rva.gov

Respectfully Submitted:

CORVEL ENTERPRISE COMP
Company

BY: RICHARD SCHWEPPE
PRINT

Richard Schweppe
Signature

Director and Assistant Treasurer August 25, 2023
Title Date



ADDENDUM NO. 3

DATE: August 17, 2023

SUBJECT: RFP 230014198 Title: Administrative Services Workers' Compensation

DUE DATE: August 30, 2023

Ladies/Gentlemen:

Change in RFP# 230014198:

The due date has been changed from August 21, 2023 @3 P.M. to August 30, 2023 @ 3 P.M.

Questions and Answers

Question 1: What is the effective date of this contract?

Answer: The date cannot be determined at this time.

Question 2. Are the claim counts in the RFP based on claim complexity and adjuster assignment or Statutory definitions?

Answer: Statutory definitions

Question 3: How many open claims by type are currently in the inventory (LT/MO, BI/PD/Property)?

Answer: 274 claims assigned to Lost Time adjusters and 50 assigned claims to Medical Only.

Question 4. Can MBE requirements be met from claim funding? NCM, Surveillance, etc.?

Answer: Yes however the MBE firms must be register with the OMBD.

Question 5. What type of info is needed to report to PERI or WCRI? How often? Format?

Answer: Please tell the City what you can offer in your proposal.

Question 6. What info is needed in the "Order From" address?

Answer: All information that insures that you receive a purchase order electronically.

Question 7: Part I Statement of Needs 1.1 Does the RFP include first party property claims as well?

Answer: Yes, First Party property claims are recorded for reporting purposes.

Question 8: If so, how many are open? How many should be expected per year?

Answer: Approximately 100

Question 9: File Documentation (Liability Claims) #3 references reporting to the Workers Compensation Commission—is this a typo?

Answer: Yes

Question: 10 Investigation #3, Are there any exceptions to taking recorded statements from City employees on accidents?

Answer: Yes. If the City employee's injuring prevent them from providing a recorded statement.

Question 11: Do all City departments allow their employees to give recorded statements?

Answer: Yes

Question 12: Inspections are needed for damages over \$7,500—is this for first- & third-party claims?

Answer: For 3rd Party claims only.

Question 13: Please confirm that no inspection is needed if damages are below this threshold.

Answer: Confirmed.

Question 14: Does each USB drive submitted need the contents in Word and PDF? Please confirm.

Answer: Yes

Question 15: 3.10 Tab 12 states "[t]his section of the proposal must contain the following organization And data ..." but no list is provided. Please advise what information is required.

Answer: This section of the Tab Requirements was shortened and this line is a typo. Please ignore.

Question 16: Please provide detailed inception to date loss runs that include a detailed claim break out of new and pending claims.

Answer: The Loss Run reports are generated monthly (1st or 2nd day of the month) by the TPA and sent to Risk Management. The report list all open claims with the following category headers: Claim number; Loss location; Loss Line description; claim type; accident type; claimant name; loss incurred amount; Loss Paid to Date; Loss Reserve; claim loss paid; claim expense paid; claim total paid.

The Loss Run is reviewed by Risk Management and distributed to the appropriate city agencies (Public Works, Public Utilities, Fire, Police, Social Services etc.). Risk Management assist the TPA in obtaining the department's internal investigation report, to aid in liability determination.

Question 17: Would you prefer per claim or flat fee pricing options or both?

Answer: Flat Fee Pricing other pricing.

Question 18: If you were to move your program, would the existing open inventory (tail) move as well? If so, what is the total number of open indemnity claims and MO claims that will be transferred?

Answer: Yes; please see Question and Answer #3.

Question 19: Can the claims examiners handling claims for your program also handle claims for a different client or must they be 100% exclusively dedicated to your program?

Answer: While the examiners can handle claims for different clients, we would like the City of Richmond to be their primary client and the one the examiners delegate the majority of their time to.

Question 20: : In reference to claims amounts listed in the RFP on pages 49, 51, and 52, are these all new claims?

Answer: Yes

Question 21: If you could change or enhance three elements of your claim service program – what would they

Answer: The purpose of this RFP is for the offeror to offer suggestions in regards to change or enhancement based on that offerors capabilities.

Question 22: Please confirm that suppliers must be listed on the OMBD Vendor Registry shown on the City of Richmond website to be considered compliant as a MBE for this engagement.

Answer: The principal in regards to the proposal submitted is not required to be registered. However, any third party contractor that you use to meet the MBE goal must be registered with the City OMBD.

Question 23: Are there any caseload requirements or caps?

Answer: 150 liability claims (per adjuster) and 200 (per Workers' Comp. Lost Time adjuster

Question 24: What is your definition of medical only?

Answer: A workers compensation claim that is not considered a lost time claim, in which the claimant was not out of work greater than the 7-day waiting period (Per Code of Va.)

Question 25: Does your current TPA identify Indemnity claims that remain open solely for the administration of medical care post award or settlement?

Answer: Yes

Question 25: Average number of telephonic case management (TCM) for the past 3 years.

Answer: Telephonic case management has not been performed in the past 3 years. However, the use of TCM is a option the City of interested in using in the future.

Question 26 : What current analytics are you using to help assess/focus on injury reduction efforts?

Answer: No analytics are currently used.

Question 27: Request a detailed loss run (preferably in excel format) for the prior 3-5 years of all claims containing the following details and excluding any personal identifying information (PII):

- a. Claim type (LT, MO, Future Medical/Maintenance, COVID, incident only, etc.)
- b. Loss State
- c. Current handling location
- d. Claim status
- e. Litigation status
- f. Date of loss
- g. Date reported
- h. Date opened
- i. Date closed (required only for #2)
- j. Claim body part description/cause/nature
- k. Paid dollar amounts (broken out by indemnity, medical, expense)
- l. Reserved/Outstanding dollar amounts (broken out by indemnity, medical, expense)
- m. Total Incurred dollar amounts (broken out by indemnity, medical, expense)
- n. Claim number

Answer: The above requested information is provided to Risk Management monthly by the current TPA. To provide a loss run report for the the last 3-5 years with the above requested data, would require some time for the TPA to create and generate. This information will be provided at a different time during the evalutaiton of the proposals.

Question 28: Are there any challenges with your current program that are not being addressed by your current TPA?

Answer: Yes; however we are currently looking for what your company has to offer the City; More will be discussed during the evalauation process.

Question 29: What is the frequency for telephonic claim reviews with electronic status reports?

Answer: Quarterly

Question # 30: Can you provide an overview of you internal Risk Management/Claims structure?

Answer: The City's Risk Management is made up of four associates (Chief Risk Officer, Risk Manager, Sr. Project Management Analyst and City Safty Officer. The Chief of Risk provides overall oversight of the Risk Management function. The Risk Manager oversees the Sr. Project Management Analyst and City Safty Officer is responsible for overseeing the TPA and assisting the Chief of Risk is managing the city's risk exposures and risk program. The Risk Manager serves as the point of contact for all risk management and claims inquiries. The Sr. Project Management Analyst works with the TPA adjusters and works as a liaison between the TPA and City agencies, to aid the TPA is acquiring internal investigation reports or any other documentation needed to complete the liability determination or workers' compensation decision (compensability).

Question #31: If you could change or enhance 3 elements of your claim service program – what would they be?

Answer #31: It would be to add an additional liability claims adjuster to our account, to handle the current volume.

Question #32: What is your preference? Field case management of telephonic case management?

Answers: We currently use Field Case Managers but are interested in using both.

Question #33: Who is your current PBM vendor?

Answer: This question is not pertinant to the RFP.

Question #34: How are claims currently reported to your TPA (On-line portal, e-mail, phone, nurse triage, other)

Answer: On-line portal, email, and phone.

Question # 35: Do you have a formal structured RTW program?

Answer: Yes.

Question #36: Do you currently have dedicated or designated nurses on your program?

Answer: Designated (selected by the TPA)

Question #37: Is there a formal medical UR plan in place for treatment review? Not in-house.

Answer: The TPA performs the medical review.

Question #38: Is there a formal medical UR plan in place for treatment review?

Answer: The TPA performs the treatment review.

Question #39: Would you be open to allowing their employees to self-report claims?

Answer: No. The current procedure is for employees to notify their supervisors and the supervisors complete the required workers compensation forms, which are then sent to the Department and City Safety Officers and to Risk Management.

Question #40: Do you currently utilize any Nurse Triage services? If not, what has prevented them from utilizing?

Answer: No. The Nurse Triage function was not an offered or agreed upon service during contract negotiations or finalization.

Question #41: Do you have any direct contracts or relationships with managed care or ancillary service providers and if so, who?

Answer: No direct contracts. Any ancillary services are selected by the TPA.

Question #42: Do you have a medical control network like an HCO or MPN in place?

Answer: No.

Question #43 :Request bill review data for the prior 3-5 years that contains the following:

- a. Total number of bills by state
 - b. Total provider charges
 - I. Fee schedule/UCR charges
 - II. PPO charges
 - III. OON charges
 - c. Total savings
 - I. Fee schedule/UCR savings
 - II. PPO savings
 - III. OON savings
 - IV. Gross savings

Answer: This information is not currently available

Question #43: Request data reflecting the past 3 years history of UR, TCM and FCM referrals (#of referrals)

Answer: This information is not currently available.

Question #44: How are you managing OSHA compliance?

Answer: The City Safety Officer and Agency Department Safety Officer are responsible for OSHA compliance.

Question #45: Can I obtain the current agreement and pricing?

Answer: This is a FOIA request.

Question #46: If you were to move your program would the existing open inventory (tail) move as well?

Answer: Yes

Question #47: What is the structure of your current TPA's team that is assigned to your program (#of adjusters, supervisors, assistants, client service, etc.) and which positions are 100% dedicated versus designated(can handle other accounts)?

Answer: For Liability (1 adjuster, 1 supervisor, and 1 manager. For Workers Compensation (2 lost time adjusters, 1 Med-Only adjuster, 1 Workers' Comp. manager, 1 Client Service Manager and 1 VP of Claims).

Question #48: Are any of your TPA's staff currently working on-site with you?

Answer: No.

Question #48: Does your program have any special requirements that would impact the staffing model (reduced caseloads, settlement/reserve authority, etc.)?

Answer: Yes. Often time when the city has accepted liability settlements are required. The TPA has a set settlement limit. If the claimant demand exceeds the pre-determined settlement limit (as specified in the Special Handling Instructions), the TPA is required to contact Risk Management and seek approval from the Chief of Risk or Risk Manager before proceeding. Risk Management will provide the TPA with a written settlement authority before proceeding with settlement discussions with the claimant.

Question #49: : Are you fully paperless and if so for how long and if not, do you have an estimate of the number of open paper files?

Answer: No. New workers compensation claims are completed on paper forms. These forms are then uploaded to the TPA's claims software and sent to the Workers Comp. Commission.

Question #50: How many employees at your agency currently access and view claims data?

Answer: Approximately 20

Question #51: Do you maintain our own RMIS? If so, what is it called and are you currently exchanging data with your TPA and what is the frequency of feeds?

Answer: The City does not maintain our own RMIS. However, the City established a data feed that allows the TPA access to HR employee information when a new workers compensation claim is filed. This feed is to ensure the TPA has the employee's most current information (name, home address, DOB, Contact #)

Question #52: Could we obtain a copy of your security requirements and policies on confidentiality (data encryption, personal information security), and e-mail use?

Answer: Not at this point in the RFP process.

Question #53: How do employees at your agency currently report claims (via internet, phone, etc.) to the current TPA?

Answer: The current procedure is for employees to notify their supervisors and the supervisors complete the required workers compensation forms, which are then sent to the Department and City Safety Officers and to Risk Management.

Question #54: Would you please provide the frequency (claim count) for 2021 and 2022 for each claim type for:

Automobile Liability - 1st and 3rd party physical damage, bodily injury, collision, comprehensive, med pay, subrogation and personal injury protection.

General Liability – bodily injury, property damage, and liability

Answer: Please See Attachment A for Question #54, Addendum #3.

Question 55 : Please provide the following medical bill review information for the past 3 complete years.

- a. Total amount billed
 - b. Total amount paid
 - c. Total amount saved
 - d. Fees paid to current TPA for medical bill repricing
-
2. Please provide the following pharmacy benefit management information for the past 3 years:
 - a. Number of injured workers utilizing
 - b. Total prescription count by type (retail or mail order)
 - c. Average drug cost per claim
 - d. Generic dispensing ratio
 - e. Total drug spend
 - f. Number of injured workers utilizing mail order

Answer: This information is not available at this time in the proposal process.

CORVEL ENTERPRISE COMP
Company

Richard Schweppe
Signature

Director and Assistant Treasurer	August 25, 2023
Title	Date



ADDENDUM NO. 4

DATE: August 24, 2023

SUBJECT: RFP 230014198 Title: Administrative Services Workers' Compensation

DUE DATE: August 30, 2023

Ladies/Gentlemen:

Change in RFP# 230014198:

The due date has been changed from August 21, 2023 @3 P.M. to August 30, 2023 @ 3 P.M.

Questions and Answers Update on Question 3 of Addendum No. 3.

Additional information to Question 3. There are approximately 300 total (LT/MO, BI/PD/Property). The number is fluid given that it is changing daily due to new claims and closed claims

Question 3: How many open claims by type are currently in the inventory (LT/MO, BI/PD/Property)?

Answer: 274 claims assigned to Lost Time adjusters and 50 assigned claims to Medical Only.

ent

TPA?

Offeror must take due notice and be governed accordingly. All addenda must be acknowledged and included with the proposal submission as indicated in the RFP.

Jerry Tuttle, MBA, CPP, CGPP, VCO
Senior Procurement Analyst
City of Richmond, Department of Procurement Services
804-646-1820
jerry.tuttle@rva.gov

Respectfully Submitted:

CORVEL ENTERPRISE COMP
Company

BY: RICHARD SCHWEPPE
PRINT

Richard Schweppe
Signature

Director and Assistant Treasurer August 25, 2023
Title Date



Addendum #4

DATE: August 28, 2023

SUBJECT: RFP 230014198 Title: Administrative Services
Workers' Compensation

Question 1: In Addendum 3 for RFP RFP-21197, question 54 makes reference to "Attachment A." We could not locate Attachment A and we're wondering if you can please provide it.

Attachment A

Line	1st/3rd Party Catg	BI/PD Catg	Loss Line	7/1/21 to 6/30/22
Commercial Auto	First Party	Auto Property Damage	Auto Collision	79
			Auto Comprehensive	1
	Third Party	Bodily Injury Property Damage	Auto BI UM/UIM	6
			Auto Bodily Injury	<u>32</u>
			Auto Other Property Damage	24
Liability	Third Party	Bodily Injury Property Damage	Auto Property Damage	78
			Civil Rights BI	0
			GL- Bodily Injury	<u>30</u>
			Police Professional BI	3
		Property Damage	GL Property Damage	223
			Police Professional PD	1
		Other	Police Professional PD Reckless Pursuit	0
			Employee Benefits Liability Coverage	0
			Police Professional Other	3
			Public Official Other	0

Total number of claims where subrogation potential was identified:

7/1/21 - 6/30/22 - 39

7/1/22 - 6/30/23 - 53

Jerry Tuttle, MBA, CPP, CGPP, VCO
Senior Procurement Analyst
City of Richmond, Department of Procurement Services
804-646-1820
jerry.tuttle@rva.gov

CORVEL ENTERPRISE COMP
Company

Richard Schwepp

Signature _____

Director and Assistant Treasurer	August 28, 2023
Title	Date



Appendix K

Corporate Resolution

CERTIFICATE OF CORPORATE RESOLUTION

I, Brandon O'Brien, certify the following:

That I am the duly elected and authorized Chief Financial Officer of CorVel Enterprise Comp, Inc., (hereinafter referred to as the "corporation"), a corporation organized and incorporated to do business under the laws of the State of Delaware;

That said corporation has, through lawful resolution of the Board of Directors of the corporation, duly authorized and directed Richard Schweppe, in his official capacity as Assistant Treasurer of the corporation is authorized to enter into and execute any documents, forms or agreements for City of Richmond, Department of Procurement Services for its Request for Proposals No. 230014198 for Administration Services Workers' Compensation, general Liability, and Automobile Liability Claims and Loss Control Services.

That the foregoing Resolution of the Board of Directors has not been rescinded, modified amended or otherwise changed in any way since the adoption thereof, and in its full force and effect on the date hereof.

IN WITNESS WHEREOF, I have set my hand;

This the 9th day of August, 2023

DocuSigned by:
Brandon O'Brien
08EC3D8CB4094FF
Brandon O'Brien, Chief Financial Officer

ATTACHMENT C
To City of Richmond
Goods and Services Contract

CareMC License Agreement

This CAREMC LICENSE AGREEMENT (the “CareMC License Agreement”) is incorporated by reference into the Goods and Services Contract (the “Services Agreement”) numbered 24000012493, to which it is attached as Attachment C. The parties acknowledge and agree that the terms and conditions under which the Services are provided by CorVel and received by Customer (all as defined by the Services Agreement) shall be governed by the Services Agreement (including without limitation all additional Exhibits and applicable Schedules attached thereto), while the terms and conditions under which Customer may access and use the CareMC Application and Online Services (both as defined by the Services Agreement) shall be governed by the terms and conditions of this CareMC License Agreement. All defined terms used herein and not otherwise defined shall have the meaning ascribed to such terms in the Services Agreement. Any term defined in this CareMC License Agreement shall only apply to this CareMC License Agreement unless explicitly otherwise noted in the Service Agreement. In the event of a conflict between the terms and conditions of the CareMC License Agreement and the Services Agreement, the terms and conditions of the Services Agreement shall control.

1. ACCESS TO THE CAREMC APPLICATION

A. Registration Information. Prior to accessing the CareMC Application or Online Services, Customer shall provide CorVel with certain registration information (“Registration Information”). Customer covenants that the Registration Information that Customer provides will be true, accurate, current and complete and will be updated as necessary. Registration Information may include an Authorized End User’s (as defined below) contact information in order to receive a multi-factor authentication (MFA) passcode, which is required to be entered each time an Authorized End User accesses the CareMC Application.

B. Passwords and Levels of Access. As soon as practicable after the execution of the Services Agreement, Customer shall designate a group of authorized end users as requiring access to the CareMC Application and Online Services (each an “Authorized End User”). CorVel shall create a unique username and password for each individual Authorized End User. Customer shall then designate Authorized End Users. The Authorized End Users (“Restricted End Users”) shall have access to a “read only” for the data available on the CareMC Application that relates to claims specific to that Authorized End User and such other data that Customer specifically requests in writing be accessible to such Authorized End User. Access by Authorized End Users to data available on the CareMC Application shall be subject in all cases to any limitations imposed by applicable law.

C. Email Domain Names. If Customer requires utilizing more than one email domain name for itself or its wholly owned subsidiaries and/or affiliates this CareMC License Agreement must attach a list of such email domain names. After execution of the Agreement, any changes or modifications required by Customer for itself and its wholly owned subsidiaries and/or affiliates shall require a written amendment mutually agreed to by both parties.

D. Security of Passwords. Customer will be solely responsible for (i) selecting Authorized End Users, (ii) assigning the various levels of authority and access each Authorized End User may have to the CareMC Application, Online Services and CareMC Data (defined below), (iii) ensuring that only Authorized End Users have access to the passwords and MFA passcodes provided by CorVel or as changed from time to time by Authorized End Users, (iv) implementing a system to control, track and account for all of

Customer's CareMC Application passwords, (v) strictly maintaining the confidentiality, security and integrity of all passwords and MFA passcodes used to access the CareMC Application and Online Services, and (vi) ensuring that Authorized End Users shall at all times comply with the terms and conditions of this CareMC License Agreement. Passwords may be changed at any time by Authorized End Users and must be changed at least once every ninety (90) days. Customer further agrees that it shall make reasonable efforts to notify CorVel promptly but no longer than twenty-four (24) hours in writing if Customer knows or suspects that the confidentiality, security or integrity of a password or MFA passcode has been compromised. CorVel will provide reasonable cooperation to Customer in the event of such compromise.

E. CareMC Data. Authorized End Users shall have access to all data available through the CareMC Application relating to CorVel's provision of Services under the Service Agreement as relating to Customer ("CareMC Data"). Authorized End User shall only have access to CareMC Data regulated by Applicable Data Privacy and Protection Laws to the extent necessary for Customer to render payment on a claim, and then only to those portions or amounts of regulated CareMC Data that are determined by CorVel, in its sole discretion, to be the minimum necessary for Customer to render payment on such claim.

2. LICENSE AND RESTRICTIONS

A. Limited License. Subject to the terms and conditions of this CareMC License Agreement, CorVel grants to Customer during the License Term (as defined in Section 5A below) a limited, non-exclusive, non-transferable, non-sublicensable license to access and use, and allow Authorized End Users to access and use, the CareMC Application and Online Services solely for Customer's own internal business use and operations. Customer shall access and use the CareMC Application and Online Services in accordance with the user guides and online instruction provided to Customer by CorVel ("Documentation") and all applicable laws, statutes, rules and regulations.

B. Restrictions. Customer shall not, and shall not allow Authorized End Users or any third party to (i) rent, lease, re-license or otherwise provide access to the CareMC Application or Online Services to any third party, (ii) alter, modify or create derivative works of the CareMC Application or Online Services, (iii) use any reverse compilation, decompilation or disassembly techniques or similar methods to determine any design structure, concepts and construction method of the CareMC Application or Online Services or replicate the functionality of the CareMC Application or Online Services for any purpose, or (iv) copy the CareMC Application or Online Services or any content, materials, information and other data provided by CorVel on the CareMC Application or used in providing the Online Services and/or Documentation (together, "CorVel Content") without CorVel's prior written consent.

C. Third Parties. Customer shall not allow any third party who is not an Authorized End User to have access to the CareMC Application or Online Services without prior written consent of CorVel and ensuring that (i) such third party enters into a legally enforceable written agreement with CorVel, or (ii) CorVel and Customer enter into an agreement whereby Customer assumes all responsibility and liability for access by such third party.

D. Ownership and Changes. CorVel owns and shall retain all right, title and interest in and to the CareMC Application, Online Services, CorVel Content and any intellectual property rights inherent therein or arising therefrom. In addition to CorVel's rights in the individual elements of the CorVel Content, CorVel owns a copyright in the selection, coordination, arrangement and enhancement of the CorVel Content. Neither Customer nor any Authorized End User shall obtain any ownership rights, express or implied, or any other rights other than those expressly set forth herein in the CareMC Application, Online Services, Documentation or CorVel Content. CorVel reserves the right, at any time in its sole discretion and without liability to Customer, to update, patch, improve or adjust the CareMC Application or Online

Services provided such changes do not materially degrade the functionality of the CareMC Application or Online Services.

E. Confidentiality. The parties agree that the (i) CareMC Application, Online Services, Documentation, CorVel Content and all software, source code, source documentation, inventions, know-how, ideas, updates and any documentation and information relating thereto constitute confidential information of CorVel and (ii) this Agreement, its terms, and any exhibits attached hereto are confidential information of both parties. Each party agrees to treat all confidential information of the other party in the same manner as it treats its own similar confidential information, but in no case will the degree of care be less than reasonable care. Each party shall promptly notify the other party of receipt of a request, or of any other requirement, to disclose the other party's confidential information pursuant to governmental regulation, subpoena or other lawful process and shall cooperate with the other party in limiting such disclosure. Notwithstanding the foregoing or anything stated to the contrary herein, the parties agree that except for those records for which CorVel has complied with the requirements of City Code § 21-5 and Virginia Code § 2.2-4342, CorVel shall not require the Customer to keep confidential any records subject to disclosure under the Virginia Freedom of Information Act. The parties further agree that the Customer has no responsibility to reat as con

F. Compliance Monitoring and Audits. CorVel may monitor and perform remote audits of Customer's use of the CareMC Application and Online Services for the purpose of verifying that Customer and Authorized End Users are using the CareMC Application and Online Services in compliance with the terms of this CareMC License Agreement. To the extent CorVel requires access to Customer's facilities to conduct an audit hereunder, Customer agrees to provide such access upon reasonable advanced notice and during Customer's regular business hours.

G. Suspension of Access. CorVel shall have the right to take immediate action to ensure the confidentiality, security or integrity of the CareMC Application, feature of the Online Services and CareMC Data, including but not limited to, suspending Customer's access or the access of any individual Authorized End User where CorVel knows or suspects that the confidentiality, security or integrity of an Authorized End User's account password or MFA passcode has been compromised. CorVel further reserves the right to temporarily suspend Customer's access to the CareMC Application, feature of the Online Services or CareMC Data where CorVel determines, in its sole discretion, that there has been a violation of the terms and conditions of this CareMC License Agreement or of any applicable laws. CorVel shall, if feasible, provide notice prior to any suspension of access. If not feasible to provide notice prior to suspension, CorVel shall provide notice of suspension as soon as is commercially practicable following suspension. Upon written notice to Customer, CorVel may modify or temporarily suspend Customer's access to and use of the CareMC Application, feature of the Online Services and CareMC Data as necessary to comply with any applicable law, regulation or court order.

3. INFRASTRUCTURE, MAINTENANCE AND SUPPORT

A. CorVel Infrastructure Obligations. Subject to Customer's compliance with the terms and conditions of this CareMC License Agreement, CorVel shall be responsible for providing and maintaining the hardware, software and other equipment required to host the CareMC Application for Customer ("CareMC Infrastructure"). The CareMC Infrastructure is subject to modification by CorVel from time to time for purposes such as adding new functionality, maximizing operating efficiency and upgrading hardware, provided such modifications shall not in the aggregate degrade the performance of the CareMC Application or Online Services utilized by Customer. Customer acknowledges and agrees that such modifications may require changes to Customer's Internet access and/or telecommunications infrastructure to maintain Customer's desired level of performance. CorVel shall give Customer reasonable prior written notice of any required modifications.

B. Customer Infrastructure Obligations. Except for the CareMC Infrastructure, which will be provided by CorVel, Customer shall be responsible for obtaining and maintaining all hardware, software, equipment, Internet access and/or telecommunications services and other items or services furnished by third party vendors or providers ("Third Party Providers") required to enable Customer to access and use the CareMC Application and Online Services as contemplated hereunder.

C. Support. CorVel will provide general support regarding questions on the CareMC Application via email and by telephone from Monday through Friday between the hours of 5:00 a.m. and 6:00 p.m. Pacific Standard Time, excluding holidays.

D. Scheduled Maintenance. CorVel will use reasonable efforts to (i) perform any scheduled downtime outside of Customer's normal business hours, (ii) notify Customer of all scheduled downtimes at least seventy-two (72) hours in advance, and (iii) perform software updates to the CareMC Application with minimal disruption to Customer's use of the Online Services.

E. System Monitoring. CorVel will use reasonable efforts to continuously monitor its web servers and database servers to ensure that they are functioning properly.

F. Security. CorVel will implement and use reasonable efforts to maintain secure systems through the use of firewalls, virtual private networks (VPN) and other security technologies.

G. Disaster Recovery and Backup. CorVel will use reasonable efforts to perform nightly backups of essential data on its web servers and database servers. CorVel has implemented third party backup and restoration technology to enable high speed recovery of data.

H. Cloud Environment. Customer acknowledges and agrees that all CareMC Data may be stored and processed within a multi-tenant cloud environment.

4. APPLICATION SPECIFIC DISCLAIMERS

A. Disclaimers. TO THE EXTENT ALLOWED BY APPLICABLE LAW, EXCEPT FOR THE LIMITED WARRANTIES DESCRIBED IN THE SERVICE AGREEMENT, CORVEL MAKES NO OTHER WARRANTIES, EXPRESS, IMPLIED OR STATUTORY, AND EXPRESSLY DISCLAIMS ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, GOOD TITLE, SATISFACTORY QUALITY AND NONINFRINGEMENT.

B. Internet Usage. Customer acknowledges that the Internet is essentially an unregulated, insecure and unreliable environment, and that the ability of Customer to access and use the CareMC Application is dependent on the Internet and hardware, software and services provided by various Third Party Providers. CORVEL SHALL NOT BE RESPONSIBLE FOR CUSTOMER'S INABILITY TO ACCESS OR USE THE CAREMC APPLICATION TO THE EXTENT CAUSED BY FAILURES OR INTERRUPTIONS OF ANY HARDWARE, SOFTWARE OR SERVICES PROVIDED BY CUSTOMER OR THIRD PARTY PROVIDERS.

C. CareMC Application. CUSTOMER ACKNOWLEDGES AND AGREES THAT CORVEL DOES NOT WARRANT THAT THE CAREMC APPLICATION OR ONLINE SERVICES ARE ERROR FREE, THAT CUSTOMER WILL BE ABLE TO ACCESS OR USE THE CAREMC APPLICATION OR ONLINE SERVICES WITHOUT PROBLEMS OR INTERRUPTIONS, OR THAT THE CAREMC APPLICATION IS NOT SUSCEPTIBLE TO INTRUSION, ATTACK OR COMPUTER VIRUS INFECTION.

D. Network Intrusions. CUSTOMER AGREES THAT CORVEL WILL NOT BE LIABLE FOR DAMAGES ARISING FROM ANY BREACH, UNAUTHORIZED ACCESS TO, MISUSE OF, OR INTRUSION INTO, CAREMC DATA RESIDING ON CORVEL'S SERVER(S) OR ANY NETWORK

USED BY CUSTOMER TO THE EXTENT SUCH DAMAGES WERE BEYOND CORVEL'S REASONABLE CONTROL.

E. Notwithstanding anything contained in this CareMC License Agreement, nothing in this CareMC License Agreement shall be construed as a waiver of sovereign immunity or an indemnification by Customer.

5. LICENSE TERM AND TERMINATION

A. License Term. This CareMC License Agreement shall be effective as of the Effective Date of the Services Agreement and, unless terminated earlier as provided below, shall automatically terminate upon expiration or termination of the Services Agreement (the term of this CareMC License Agreement, the "License Term").

B. Termination for Convenience. AS PURSUANT TO THE SERVICES AGREEMENT.

C. Termination for Cause. . AS PURSUANT TO THE SERVICES AGREEMENT.

D. Effect of Termination. Expiration or termination of this CareMC License Agreement shall have the following effects: (i) all licenses granted under this CareMC License Agreement shall terminate immediately, (ii) all Customer and Authorized End User rights to use the CareMC Application and Online Services shall cease immediately, and (iii) each party shall promptly return all information, documents, manuals and other materials belonging to the other party related to this CareMC License Agreement, whether in printed or electronic form, including without limitation all confidential information of the other party then currently in its possession related to this CareMC License Agreement, provided each party may retain one (1) copy of such materials for archival purposes.

E. Assignment . AS PURSUANT TO THE SERVICES AGREEMENT

F. Survival. Except to the extent expressly provided to the contrary herein or in the Service Agreement, any right of action for breach of the CareMC License Agreement prior to termination, and the following provisions shall survive the termination of this CareMC License Agreement: Sections 2E, 4 and 5D.

PART II

INSTRUCTIONS TO OFFERORS

1.0 Interpretations.

1.1 Incorporation of City Policies and Procedures. This Request for Proposals is subject to the provisions of Chapter 21 of the Code of the City of Richmond, as amended, and the Policies and Procedures of the Department of Procurement Services, as amended, which are hereby expressly incorporated into this Request for Proposals by reference. Offerors may inspect copies of these documents at the City's website, www.rva.gov.

1.2 Explanations to Offerors.

1.2.1 Inquiry. All inquiries requesting clarification of this Request for Proposals should be made in writing no later than ten business days prior to the closing date to the Contracting Officer identified on the cover sheet of this Request for Proposals. If submitting an inquiry by electronic mail or facsimile transmission, the offeror should notify the Contracting Officer by telephone that the person is sending the inquiry by that means. All inquiries should clearly state the number of this Request for Proposals. Because each offeror may have different needs for information, that offeror must make whatever inquiries it deems necessary in order to respond to the Request for Proposals. Inquiries that the Contracting Officer determines to be pertinent to all solicited contractors will be answered by addenda to all solicited firms.

1.2.2 Form of Explanation. No oral explanation in regard to the meaning of this Request for Proposals will be made and no oral instructions will be given before the award of the contract. Any explanation, interpretation or modification of the Request for Proposals that is pertinent to all solicited offerors will be made only by an addendum duly issued by the City, a copy of which will be mailed or delivered to each offeror known to have received the Request for Proposals. The City shall not be responsible for any other explanations or interpretations anyone presumes to make on behalf of the City before the expiration of the ultimate time set for the receipt of proposals.

1.2.3 Addenda. From time to time, addenda may be issued that will provide clarifications or supplemental information about the Request for Proposals documents. All firms receiving Request for Proposals documents issued by the City will be provided copies of addenda. If an offeror fails to acknowledge any addendum that (i) has a material effect on the proposal (i.e., that relates to price, quantity, quality or delivery) and (ii) is not merely administrative, the City may consider that offeror's proposal incomplete, and the proposal thus may be rejected or receive a lower score in the evaluation process. The offeror shall acknowledge receipt of all addenda as part of its proposal and on the form provided for that purpose by the City. The offeror shall be solely responsible for verifying the existence of all addenda items.

1.3 No Contact Policy. Any contact with any City officer, employee, agent, or other representative concerning this Request for Proposals other than that outlined in section 1.2

- 1.5.4 No Contact Policy Applicable.** If a person planning to submit a response to a solicitation contacts the Chief Administrative Officer concerning such a disqualification, such person and the person's firm shall be disqualified from responding to the solicitation for violating the City's no contact policy because the person discussed the solicitation with a City representative other than the Contracting Officer responsible for the procurement.
- 1.5.5 Appeal of Disqualification.** In accordance with City Code § 21-281(d), any person who has been disqualified pursuant to this section 1.6 ("Disqualification Due to Participation in Preparation of Solicitation") and City Code § 21-281 may appeal the Chief Administrative Officer's determination of disqualification by following the administrative appeals procedure set forth in City Code § 21-168 or by instituting legal action as provided in City Code § 21-169.
- 2.0 Preparation of Proposals.**
- 2.1 General Requirements.** The proposal must be typed and bound and should be presented as described in the paragraphs that follow. All pages in the proposal must be consecutively numbered. To be considered substantive, the proposal must respond to all requirements of this part of the Request for Proposals. Information supplied must be current and up to date. Any other information thought to be relevant, but not applicable to the enumerated categories, should be provided as an appendix to the proposal. If the offeror supplies publications to respond to a requirement, the response must include reference to the document number and page number to provide a quick reference for the evaluation panel. Proposals not providing this reference will be considered to have no reference included in the additional documents. The proposal must include all the information defined below and be organized as set forth in the Statement of Needs.
- 2.2 Substantive Nature of Proposals.** Proposals must be substantive. It is not sufficient for the offeror to address the proposal in general terms or in terms other than those outlined in this Request for Proposals. Proposals should be prepared simply and economically, providing a straightforward, concise description of the offeror's ability to meet the requirements set forth in the Request for Proposals.
- 2.3 Authorized Signature.** All proposals must be signed in order to be considered. If the offeror is not an individual or a sole proprietor but rather a corporation or any other type of legal entity, the offeror must show the title of the individual executing the proposal and a resolution or other documentation clearly establishing the authority of the individual to sign the proposal and any subsequent contract.
- 2.4 MBE/ESB Participation.** When the City of Richmond establishes a goal for MBE/ESB participation on a city project, all minority and non-minority prime contractors/vendors are required to have MBE/ESB participation.

2.4.1 Policy. It is the policy of the City to encourage minority participation on all City contracts. To advance this policy, the City encourages minority participation through subcontracting, joint ventures, or other methods in contracting for services.

2.4.2 Certification.

- A. All Minority Business Enterprise subcontractors and vendors must be registered with the City of Richmond's Office of Minority Business Development (OMBD) and certified by the Commonwealth of Virginia Department of Minority Business Enterprise or a comparable certifying entity as a Minority Business Enterprise. OMBD reserves the right to accept the certification of other certifying agencies.
- B. All Emerging Small Business subcontractors and vendors must be certified by the City of Richmond's Office of Minority Business Development (OMBD).

2.4.3 Evaluation.

- A. In the proposal evaluation process, up to 30 points will be given to those proposals that have documented past good faith efforts and have proposed MBE/ESB participation that relate to the established goal. All MBE/ESB forms that relate to this matter must be included in the prime contractors/vendors response. All documentation as it relates to past good faith efforts and proposed MBE participation must be submitted on the required forms in order to expedite the evaluation process. We have attached the Participation Commitment and the Current and Past Good Faith Effort forms for completion. The offeror should complete all pertinent MBE/ESB forms or risk forfeiting the 30 points assigned to Minority Business Enterprise and Emerging Small Business participation.
- B. The City of Richmond encourages MBE/ESB participation on all City of Richmond contracts. If the City of Richmond waives the setting of goals, it is up to the prime contractor/vendor to determine whether or not they will voluntarily have MBE/ESB participation. Voluntarily committing to MBE/ESB participation allows the prime contractor/vendor to use this commitment as past good faith efforts for credit on future projects that have MBE participation with the City. When presenting MBE/ESB participation, use the forms created by the Office of Minority Business Development (OMBD) (MBE-1, MBE-2 and Good Faith Effort) in order to properly document your participation efforts.

2.5 Faith-Based Organizations. The City does not discriminate against faith-based organizations. By signing its proposal, the offeror, if a faith-based organization, agrees that it understands the requirements of City Code § 21-43 (Va. Code § 2.2-4343.1).

2.6 Licenses, Permits and Fees. All proposals submitted shall have included in the prices submitted the cost of any business or professional licenses, permits or fees required by the City of Richmond or the Commonwealth of Virginia.

2.7 **Public Inspection of Records.**

2.7.1 **In General.** All proceedings, records, contracts and other public records relating to the procurement transaction that this Request for Proposals concerns shall be open to the inspection of any citizen of the Commonwealth of Virginia or any representative of a media organization with circulation in or that broadcasts in or into the Commonwealth of Virginia in accordance with the Virginia Freedom of Information Act.

2.7.2 **Inspection by Offerors.** Any offeror, upon request, shall be afforded the opportunity to inspect proposal records within a reasonable time after the evaluation and negotiations of proposals are completed, but prior to award, except in the event that the City decides not to accept any of the proposals and to reopen the contract. Otherwise, proposal records shall be open to public inspection only after award of the contract.

2.7.3 **Proprietary Information.** Pursuant to City Code § 21-5(f) (Va. Code § 2.2-4342(F)), trade secrets or proprietary information submitted by an offeror in connection with this procurement transaction shall not be subject to the Virginia Freedom of Information Act, provided that the offeror (i) invokes the protections of section 21-5 of the Code of the City of Richmond prior to or upon submission of the data or other materials, (ii) identifies the data or other materials to be protected, and (iii) states the reasons why protection is necessary. Classifying aspects of the proposal that are not trade secrets or proprietary is cause for the City to reject the proposal. Budgets and price quotations are considered public information in proposals submitted to the City. Classifying budgets and price quotations as “proprietary” or “confidential” is cause for the City to reject the proposal.

2.8 **Use of Brand Names.** Where a brand or trade name appears in the Request for Proposals, it is understood that the brand or trade name referred to, or its approved equal, shall be furnished. If the offeror proposes similar but not identical items, it must furnish full particulars. If no mention is made of any exceptions, it is assumed that the offeror’s pricing is for the article mentioned and not an approved equal, and the offeror will be required to deliver the exact article specified. The City shall decide, in its sole discretion, if a proposed equal will be approved.

2.9 **Descriptive Literature.** Each offeror shall submit with its proposal descriptive literature of equipment or supplies that the offeror proposes to furnish if such articles are of a different manufacture than those specified in this Request for Proposals. Should the description furnished in such literature differ from the specifications submitted by the City and should no mention be made to the contrary, the description shall be construed to mean that the offeror proposes to furnish equipment or supplies in accordance with such description and not in accordance with the City’s specifications, and the City will evaluate the offeror’s proposal accordingly.

2.10 **Exceptions.**

A. An exception is any condition, limitation, qualification, restriction, term, or other deviation from the requirements of the Request for Proposals that is a condition of

the offeror's proposal or that the offeror expects to become part of a contract with the City. Offerors are neither required nor encouraged to take exceptions to the requirements of the Request for Proposals. In some cases, where permitted by law, exceptions may count against an offeror during the evaluation stage or the negotiation stage of the procurement process.

B. The offeror shall state in its proposal each exception, including the page number, the part and section numbers, the specific text at issue, and the nature of the exception, except as follows:

1. If the Request for Proposals is one for "information technology" as defined in Va. Code § 2.2-2006, the offeror shall not state in its proposal any exception to any liability provisions contained in the Request for Proposals. Instead, if the offeror is selected for negotiations, the offeror shall state any exception to any liability provisions contained in the Request for Proposals in writing, including all of the information required by this section, at the beginning of negotiations.
2. If the Request for Proposals is one for architectural or professional engineering services, the offeror shall not state in its proposal any exception to any proposed contractual term or condition unless such term or condition is required by statute, regulation, ordinance, or standards developed pursuant to Va. Code § 2.2-1132 until after the qualified offerors are ranked for negotiations. If the offeror is selected for negotiations, the offeror shall state any exception to any proposed contractual term or condition contained in the Request for Proposals in writing, including all of the information required by this section, at the beginning of negotiations.

C. If the offeror fails, neglects, or refuses to note any exception in the manner and at the time required by this section, the offeror agrees that it shall comply with the Request for Proposals as originally issued and modified by any addenda.

3.0 Warranties and Representations of Offeror.

3.1 Compliance with Request for Proposals Documents. By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that the offeror is in compliance with all terms and conditions of this Request for Proposals.

3.2 Ethics in Public Contracting By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that (i) it has not violated any provisions of federal law, the Code of Virginia, the Charter of the City of Richmond, or the Code of the City of Richmond, (ii) its proposal is made without any understanding, agreement, or connection with any other person, firm, corporation, or joint venture making a proposal for the same purposes, and is in all respects fair and without collusion or fraud, (iii) it has not offered or received any kickbacks or inducements from any other contractor, supplier, manufacturer or subcontractor in connection with its proposal and (iv) it has not conferred

on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value was exchanged. The offeror further warrants and represents that no officer, employee or other person whose salary is payable in whole or in part by the City is, shall be, or become interested, directly or indirectly, as a contracting party, partner, stockholder, surety or otherwise, in this proposal, in the performance of the contract, in the supplies, materials, or equipment and work or labor to which it relates, or in any portion of the profits thereof. In addition, the offeror warrants and represents that the provisions of City Code §§ 21-274—21-285 (Va. Code §§ 2.2-4367—2.2-4377) pertaining to offerors, contractors and subcontractors apply to this Request for Proposals and any resulting contract. The offeror agrees that if these warranties and representations are in any respect breached, such breach shall constitute a material breach of any contract that the City may award to the offeror and the offeror shall pay to the City the full price agreed by the City to be paid for the supplies, materials, equipment or services to be furnished under its proposal.

- 3.3 **Lawful Age and No Others Have Interest.** By signing its proposal in response to this Request for Proposals, the offeror represents that the offeror is of lawful age and that no other person, firm, corporation or joint venture has any interest in this proposal or in the contract proposed to be entered into.
- 3.4 **No Debts to City.** By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that it is not in arrears to the City, upon debt or contract; is not a defaulter, as surety or otherwise, upon any obligation to the City; and has not been delinquent or unfaithful in any former contract with the City.
- 3.5 **Offeror Not Debarred.** By signing its proposal in response to this Request for Proposals, the offeror warrants and represents that neither its organization nor any of its officers, directors, partners or owners is currently barred from bidding on contracts by any agency of the federal government, any agency of the Commonwealth of Virginia, any agency of any other state, or any other public body or agency thereof.
- 3.6 **No Kickbacks or Conflicts of Interest.** By signing its proposal in response to this Request for Proposals, the offeror represents and warrants that it is in compliance with the provisions of section 2.3 (“Anti-Kickback Provision”) of the General Terms and Conditions included with this Request for Proposals and, further, that the offeror’s firm has no business or personal relationships with any other companies or persons that could be considered as a conflict of interest or potential conflict of interest to the City, and that there are no principals, officers, agents, employees, or representatives of the offeror’s firm that have any business or personal relationships with any other companies or persons that could be considered as a conflict of interest or a potential conflict of interest to the City, pertaining to any and all work or services to be performed as a result of this Request for Proposals and any resulting contract with the City.
- 3.7 **State Corporation Commission Registration.**

- 3.7.1 Generally.** State law requires most business entities to register with the Commonwealth of Virginia's State Corporation Commission to obtain legal authorization to transact business in Virginia. A contractor organized as a stock or nonstock corporation, limited liability company, business trust, or limited partnership or registered as a registered limited liability partnership shall be authorized to transact business in the Commonwealth as a domestic or foreign business entity if so required by Title 13.1 or Title 50 of the Code of Virginia or as otherwise required by law. Any business entity described above that enters into a contract with the City shall not allow its existence to lapse or its certificate of authority or registration to transact business in the Commonwealth, if so required under Title 13.1 or Title 50, to be revoked or cancelled at any time during the term of the contract.
- 3.7.2 Form Required.** Each offeror organized or authorized to transact business in the Commonwealth of Virginia pursuant to Title 13.1 or Title 50 of the Code of Virginia shall include in its proposal the identification number issued to it by the State Corporation Commission. Any offeror that is not required to be authorized to transact business in the Commonwealth as a foreign business entity under Title 13.1 or Title 50 of the Code of Virginia, or as otherwise required by law, shall include in its proposal a statement describing why the offeror is not required to be so authorized. Each offeror shall indicate the above information on the State Corporation Commission Form included with the Request for Proposals.
- 3.7.3 Warranty.** By signing its proposal in response to this Request for Proposals, the offeror represents and warrants that all information the offeror submits on its completed State Corporation Commission Form is true and complete at the time the offeror submits its proposal and will remain true and complete throughout the duration of any contract between the City and the offeror that results from this Request for Proposals. The offeror agrees that the process by which compliance with Title 13.1 and Title 50 of the Code of Virginia is checked during the solicitation stage (including without limitation the State Corporation Commission Form provided) is streamlined and not definitive, and the City's use and acceptance of such form, or its acceptance of the offeror's statement describing why the offeror was not legally required to be authorized to transact business in the Commonwealth of Virginia, shall not be conclusive of the issue and shall not be relied upon by the offeror as demonstrating compliance.
- 4.0 Submission of Proposals.**
- 4.1 Copies.** Offerors shall submit an original proposal, clearly identified as such and signed in blue ink by the offeror's contractually binding authority. In addition, offerors shall submit additional copies of their proposals in such number and such electronic and paper formats as may be specified in the Statement of Needs.
- 4.2 Labeling.** All proposals must be sealed and labeled (on the outside of the sealed container), with the label displaying the following information:

Proposal for
Request for Proposals No.
Name of offeror

Address of offeror
Receipt and Closing Date:

- 4.3 **Recipient.** All proposals are to be addressed and delivered by the date and time specified on the Cover Sheet to the Contracting Officer identified on the Cover Sheet.
- 4.4 **Transmittal Letter.** The proposal should include a transmittal letter that lists the following:
- Firm's Name
 - Firm's Address
 - Contact Name and Telephone Number
 - Fax Number and E-mail Address
- 4.5 **Closing Date.** To be considered, a proposal must arrive at the address set forth in section 4.3 ("Recipient") on or before the time and date set forth on the Cover Sheet to this Request for Proposals. The City will not accept a proposal that is late. Offerors mailing proposals should allow sufficient mail delivery time to ensure timely receipt of their proposals. The offeror shall not make any other distribution of proposals. However, materials or information received from a prospective contractor as result of a request by the Contracting Officer shall not be considered a violation of this section.
- 4.6 **Multiple Proposals.** An offeror may submit more than one proposal. At least one of the proposals should be complete and should comply with all of the instructions contained in this Request for Proposals. Additional proposals may be in abbreviated form following the same format and providing only the information that is different from that in the complete proposal.
- 4.7 **Separate Proposals.** Proposals for separate Requests for Proposals shall not be combined on the same form or placed in the same envelope. At its option, the City may decline to consider such proposals.
- 4.8 **Return of Proposal.** All proposals submitted pursuant to this Request for Proposals will become the property of the City and will not be returned.
- 5.0 **Evaluation and Selection Process.**
- 5.1 **Opening.** At the designated time and date, the Department of Procurement Services will open and list the proposals for the record. This is not a public opening. The proposals will then be forwarded to the using agency and evaluation panel to initiate the review and selection process. Proposals received after the date and time specified in section 4.5 ("Closing Date") are late and will be returned unopened at the offeror's expense.
- 5.2 **Evaluation.** During the evaluation phase, an evaluation panel will review and score the proposals in accordance with the evaluation criteria set forth in the Request for Proposals. Some offerors may be eliminated at this stage. Once the evaluation panel has completed this initial scoring, the evaluation panel may engage in discussions with offerors not eliminated by the initial scoring to clarify specific matters presented in those offerors' proposals.

Discussions may include oral interviews or presentations or written communications as specified in the Request for Proposals or, if not so specified, at the sole discretion of the City. The evaluation panel will use information gained during these discussions together with information presented in the proposal to rank offerors in accordance with the evaluation criteria stated in the Request for Proposals. The evaluation panel reserves the right to visit the premises of the offeror if the evaluation panel determines that it is necessary to do so.

- 5.3 **Samples.** The offeror shall furnish the City with samples of items, if requested, without charge, upon request and within ten calendar days of such request. The offeror's failure to provide such samples within the specified time frame or to otherwise comply with this section shall be sufficient cause for the City, at its sole option, to reject the offeror's proposal. If not destroyed and upon request at the time of submission, the City will return samples at the offeror's expense.
- 5.4 **Tests.** The City reserves the right to conduct any test it may deem advisable and to make all evaluations necessary.
- 5.5 **Negotiation with Offerors.**
 - 5.5.1 **In General.** The City may undertake negotiations with offerors whose proposals show them to be qualified, responsible and capable of performing the work in accordance with the stated criteria.
 - 5.5.2 **Procedure.** Unless the Director of Procurement Services determines that only one offeror is fully qualified or that one offeror is clearly more highly qualified than the others under consideration, selection shall be made of two or more offerors deemed to be fully qualified and best suited among those submitting proposals, on the basis of the factors involved in the Request for Proposals, including price if so stated in the Request for Proposals. Negotiations shall then be conducted with each of the offerors so selected. (See City Code § 21-67.)
- 6.0 **Award and Execution of Contract.**
 - 6.1 **Award.**
 - 6.1.1 **In General.** The City will make the award to the responsible and responsive offeror whose proposal is determined in writing to be the most advantageous to the City, taking into consideration price and the evaluation factors set forth in this Request for Proposals.
 - 6.1.2 **Multiple Awards.** The City reserves the right to make awards under this Request for Proposals to more than one offeror if the City determines that doing so is in the best interests of the City. If the City makes multiple awards under this Request for Proposals, each contract awarded will specify the portion of the scope of services awarded to that offeror.

- 6.2 **Rejection of Proposals.** The City reserves the right to reject any or all proposals, in whole or in part, and to delete items prior to making the award, whenever it is deemed in the sole opinion of the City to be in its best interest.
- 6.3 **Nondiscrimination in Award.** The City shall not discriminate against any offeror in the solicitation or award of a contract based on this Request for Proposals because of race, religion, color, sex, national origin, age, disability, faith-based organizational status or any other basis prohibited by state law relating to discrimination in employment or because the offeror employs ex-offenders unless the using agency has made a written determination that employing ex-offenders on the specific contract is not in its best interest.
- 6.4 **Notice of Award.** A contract is awarded only when the Director of Procurement Services signs the contract. The Contracting Officer may provide notice of the City's decision to award a contract prior to award of that contract by posting a notice of intent to award on the website of the Department of Procurement Services. A notice of intent to award means that the City intends to award the contract to the offeror named in the notice ten calendar days after the notice is posted. Offerors are responsible for monitoring the website of the Department of Procurement Services for content posted thereon.
- 6.5 **Contractual Obligation.** The proposal submitted by the selected contractor and this Request for Proposals shall become an attachment to the contract signed by the City and the selected offeror. Price quotations and other time-dependent information contained in proposals should be valid for a minimum of 90 days from the closing date of this Request for Proposals. The City may undertake negotiations with offerors whose proposals show them to be qualified, responsible and capable of performing the work in accordance with the stated criteria. The City shall not be liable for any costs incurred by offerors in connection with the preparation or submission of proposals and related materials or negotiations.
- 6.6 **When Contractual Obligation Arises.** No contract shall result from the submission of any proposal and no liability shall accrue with respect thereto until a written contract and any other necessary documents have been fully and completely executed by both the successful offeror and the City.
- 6.7 **Contract Execution Requirements.** Upon notice of the award of a contract pursuant to this Request for Proposals, the successful offeror shall sign the final contract document, a sample of which is included with this Request for Proposals, upon receipt thereof from the Contracting Officer, register in the City's online Supplier Portal, and furnish the insurance documents required by the General Terms and Conditions included with this Request for Proposals. The offeror shall furnish the City with the signed contract and the required insurance documents and must have registered in the City's online Supplier Portal within 15 calendar days after the date of the notice of award or within such further time as the City may allow. Once the City has received the signed contract and insurance documents from the successful offeror, the City's representative will then sign the contract. The signature of the City's representative on the contract constitutes the award of the contract.

END OF INSTRUCTIONS TO OFFERORS